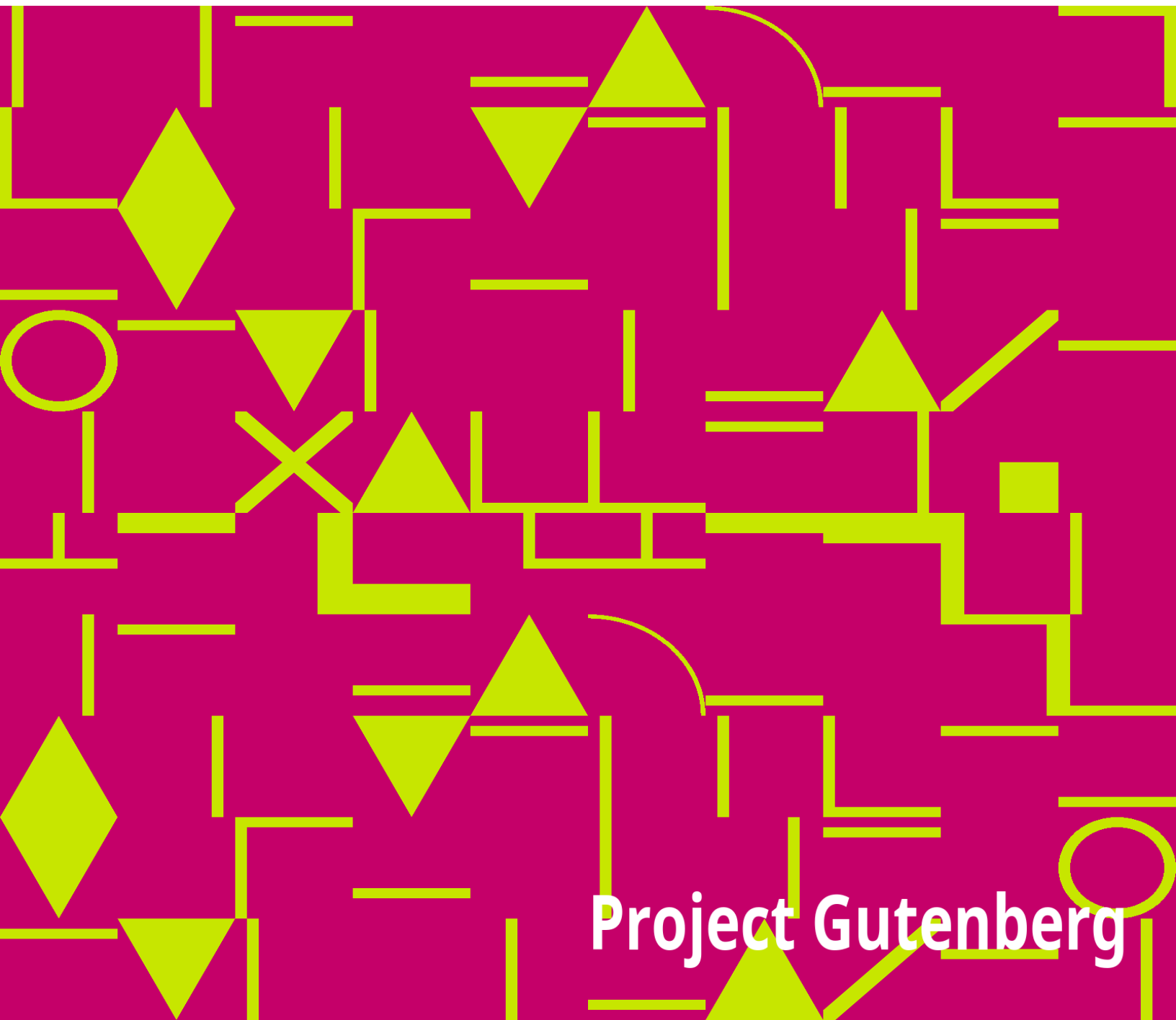


The Fair Play Settlers of the West Branch Valley, 1769-1784

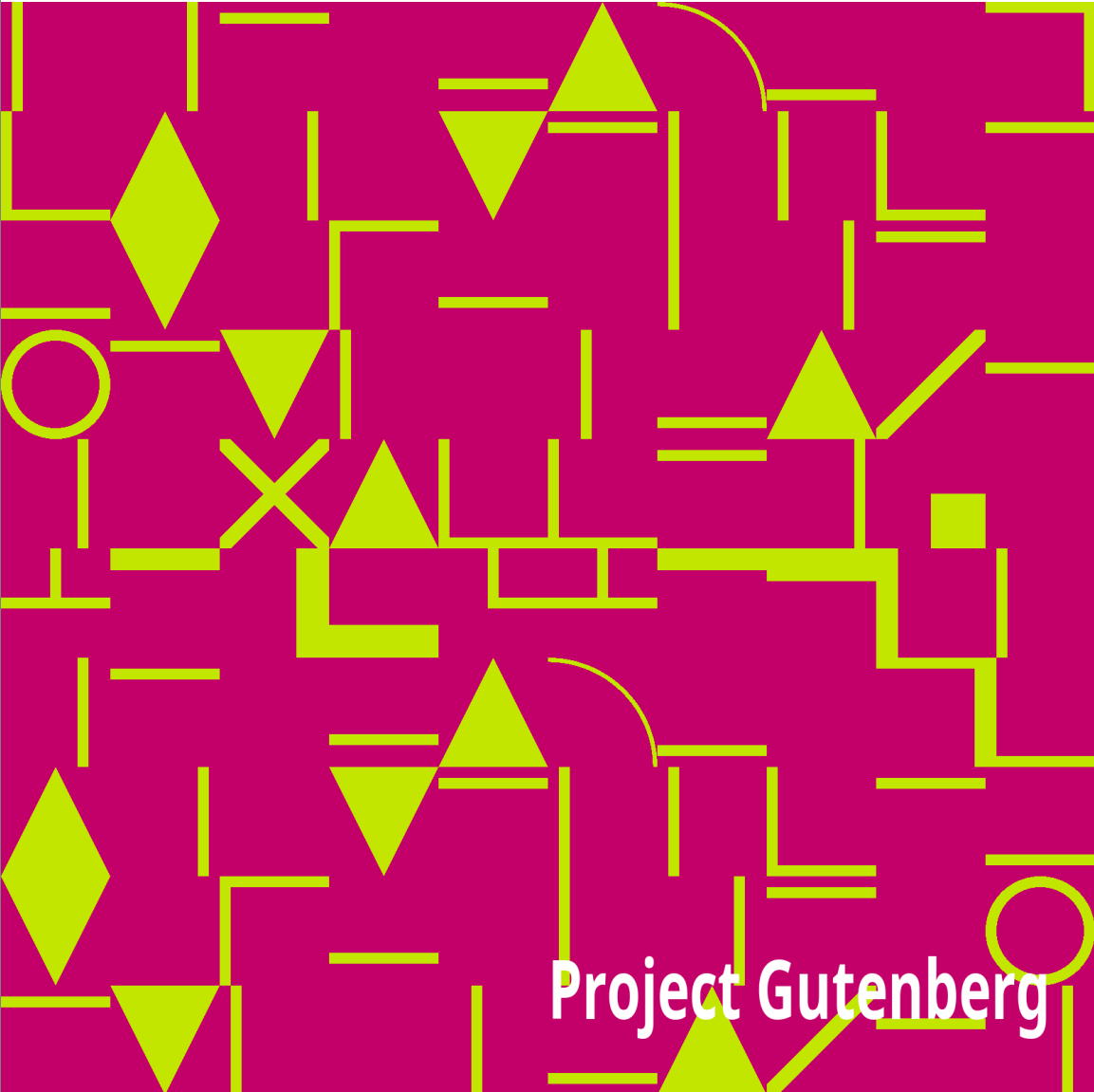
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The Fair Play Settlers of the West Branch Valley, 1769-1784

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SETTLERS OF THE WEST BRANCH VALLEY, 1769-1784 ***

The Fair Play Settlers of the West Branch Valley,

1769-1784:
A Study of Frontier Ethnography

BY

GEORGE D. WOLF

Commonwealth of Pennsylvania
THE PENNSYLVANIA HISTORICAL
AND MUSEUM COMMISSION

Harrisburg, 1969

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Preface

In an Age when man's horizons are constantly being widened to include hitherto little-known or non-existent countries, and even other planets and outer space, there is still much to be said for the oft-neglected study of man in his more immediate environs. Intrigued with the historical tale of the "Fair Play settlers" of the West Branch Valley of the Susquehanna River and practically a life-long resident of the West Branch Valley, this writer felt that their story was worth telling and that it might offer some insight into the development of democracy on the frontier. The result is an ethnography of the Fair Play settlers. This account, however, is not meant to typify the frontier experience; it is simply an illustration, and, the author hopes, a useful one.

No intensive research can be conducted without the help and encouragement of many fine and wonderful people. This author is deeply indebted to librarians, archivists and historians, local historians and genealogists, local and county historical societies, and collectors of manuscripts, diaries, and journals pertinent to the history of the West Branch Valley. A comprehensive listing of all who have assisted in this effort would be too extensive, but certain persons cannot be ignored. My grateful appreciation is here expressed to a few of these; but my gratitude is no less sincere to the many persons who are not here mentioned.

Librarians who have been most helpful in providing bibliographies, checking files, and obtaining volumes from other libraries include Miss Isabel Welch, of the Ross Library in Lock Haven; Mrs. Kathleen Chandler, formerly of the Lock Haven State College library; and Miss Barbara Ault, of the Library of Congress.

Archivists and historians who have been most generous in their aid are the late Dr. Paul A. W. Wallace, of the Pennsylvania Historical and Museum Commission; Mrs. Phyllis V. Parsons, of Collegeville; Dr. Alfred P. James, of the University of Pittsburgh; and Mrs. Solon J. Buck, of Washington, D. C.

Perhaps the most significant research support for this investigation was provided by a local historian and genealogist, Mrs. Helen Herriott Russell, of Jersey Shore.

Dr. Samuel P. Bayard, of the Pennsylvania State University, analyzed the Fair Play settlers using linguistic techniques to determine their national origins. This help was basic to the demographic portion of this study.

Dr. Charles F. Berkheimer and Mrs. Marshall Anspach, both of Williamsport, magnanimously consented to loan this author their copies, respectively, of William Colbert's *Journal* and the Wagner Collection of Revolutionary War Pension Claims.

County and local historical societies which opened their collections for study were the Clinton County Historical Society, the Lycoming Historical Society, the Northumberland County Historical Society, the Centre County Historical Society, the Greene County Historical Society, and the Muncy Historical Society and Museum of History.

For his refreshing criticisms and constant encouragement, Dr. Murray G. Murphey, of the University of Pennsylvania, will find me forever thankful. Without him, this study would not have been possible.

The author would like to thank the members of the Pennsylvania Historical and Museum Commission and its Executive Director, Dr. S. K. Stevens, for making possible this publication; he would also like to thank Mr. Donald H. Kent, Director of the Bureau of Archives and History, and Mr. William A. Hunter, Chief of the Division of History, who supervised publication; and members of the staff of the Division of History: Mr. Harold L. Myers, Associate Historian and Chief of the Editorial Section, who readied the manuscript for publication; Mrs. Gail M. Gibson, Associate Historian, who prepared the index; and Mr. George R. Beyer, Assistant Historian.

My sincerest thanks are also extended to Mrs. Mary B. Bower, who typed the entire manuscript and offered useful suggestions with regard to style.

Finally, for providing almost ideal conditions for carrying on this work and for sustaining me throughout, my wife, Margaret, is deserving of a gratitude which cannot be fully expressed.

GEORGE D. WOLF



Introduction

Between 1769 and 1784, in an area some twenty-five miles long and about two miles wide, located on the north side of the West Branch of the Susquehanna River and extending from Lycoming Creek (at the present Williamsport) to the Great Island (just east of the present Lock Haven), some 100 to 150 families settled. They established a community and a political organization called the Fair Play system. This study is about these people and their system.

The author of a recent case study of democracy in a frontier county commented on the need for this kind of investigation.^[1] Cognizant of the fact that a number of valuable histories of American communities have been written, he noted that few of them deal explicitly with the actual relation of frontier experience to democracy:

No one seems to have studied microscopically a given area that experienced transition from wilderness to settled community with the purpose of determining how much democracy, in Turner's sense, existed initially in the first phase of settlement, during the process itself, and in the period that immediately followed.

This research encompasses the first two stages of that development and includes tangential references to the third stage.

The geography of the Fair Play territory has been confused for almost two centuries. The conclusions of this analysis will not prove too satisfying to those who unquestioningly accept and revere the old local legends. However, it will be noted that these conclusions are based upon the accounts of journalists and diarists rather than hearsay. This should put the controversial "question of the Tiadaghton" to rest.

A statistical analysis has been made as a significant part of the demography of the Fair Play settlers. However, limitations in data may raise some questions regarding the validity of the conclusions. Nevertheless, the

national and ethnic origins of these settlers, their American sources of emigration, the periods of immigration, the reasons for migration, and population stability and mobility have all been investigated. The result offers some surprises when compared with the trends of the time—in the Province and throughout the colonies.

The *politics* of Fair Play is the principal concern of this entire study—appropriately, it was from their political system that these frontiersmen derived their unusual name. This was not the only group to use the name, however. Another "fair play system" existed in southwestern Pennsylvania during the same period, and perhaps a similar study can be made of those pioneers and their life. As for the Fair Play community of the West Branch, we know about its political structure through the cases subsequently reviewed by established courts of the Commonwealth. From these cases, we have reconstructed a "code" of operation which demonstrates certain democratic tendencies.

In addition to studying the political system, an effort has been made to validate the story of the locally-famed Pine Creek Declaration of Independence. Although some evidence for such a declaration was found, it seems inconclusive.

The West Branch Valley was part of what Turner called the second frontier, the Allegheny, and so this agrarian frontier community has been examined for evidence of the democratic traits which Turner characterized as particularly American. This analysis is not meant to portray a typical situation, but it does provide support for Turner's evaluation. As this was a farmer's frontier, and as transportation and communication facilities were extremely limited, a generally self-sufficient and naturally self-reliant community developed as a matter of survival. The characteristics which this frontier nurtured, and the non-English—even anti-English—composition of its population make understandable the sentiment in this region for independence from Great Britain. This, of course, is supremely demonstrated in the separate declaration of independence drawn, according to the report, by the settlers of the Fair Play frontier.

Fair Play *society* is, perhaps, the second-most-important facet of this ethnographic analysis. An understanding of it necessitated an inquiry into

the social relationships, the religious institutions, the educational and cultural opportunities, and the values of this frontier community. The results, again, lend credence to Turner's hypothesis. Admittedly, Turner's bold assertion that "the growth of nationalism and the evolution of American political institutions were dependent on the advance of the frontier" is somewhat contradicted by the nature of this Pennsylvania frontier. Western lands in Pennsylvania were either Provincial, Commonwealth, or Indian lands, but never national lands. As a result, western land ordinances, and the whole controversy which accompanied the ratification of the Articles of Confederation, had no real significance in Pennsylvania. However, in subsequent years, the expansion of internal improvement legislation and nationalism sustains Turner's thesis, as does the democratic and non-sectional nature of the middle colonial region generally.^[2]

The *intellectual character* which the frontier spawned has been described as rationalistic. However, this was a rationalism which was not at odds with empiricism, but which was more in line with what has been called the American philosophy, pragmatism. Or, to put it in the vernacular, "if it works, it's good." The frontiersman was a trial-and-error empiricist, who believed in his own ability to fathom the depths of the problems which plagued him. If the apparent solution contradicted past patterns and interpretations, he justified his actions in terms of the realities of the moment. It is this pragmatic ratio-empiricism which we imply when we use the term "rationalistic."

An examination of the role of *leadership*, suggested by the Curti study, presents the first summary of this type for the West Branch Valley. Here, too, the limited numbers of this frontier population, combined with its peculiar tendency to rely upon peripheral residents for top leadership, prevents any broad generalizations. The nature of its leadership can only be interpreted in terms of this particular group in this specific location.

The last two chapters of this study are summary chapters. The first of these is an analysis of democracy on one segment of the Pennsylvania frontier. Arbitrarily defining democracy, certain objective criteria were set up to evaluate it in the Fair Play territory. Political democracy was investigated in terms of popular sovereignty, political equality, popular consultation, and

majority rule, and the political system was judged on the basis of these principles. Social democracy was ascertained through inquiries concerning religious freedom, the social class system, and economic opportunity. The conclusion is that, for this frontier at least, democratic tendencies were displayed in various contexts.

The final chapter, although relying to a large extent upon Turner's great work, is in no way intended to be a critical evaluation of that thesis. Its primary objective is to test one interpretation of it through a particular analytic technique, ethnographic in nature. Frontier ethnography has proved to be a reliable research tool, mainly because of its wide scope. It permits conclusions which a strictly confined study, given the data limitations of this and other frontier areas, would not allow.

Democracy, it is no doubt agreed, is a difficult thing to assess, particularly when there are so many conflicting interpretations of it. But an examination of it, even in its most primitive stages in this country, can give the researcher a glimpse of its fundamentals and its effectiveness. In a time when idealists envision a world community based upon the self-determination which was basic in this nation's early development, it is essential to re-evaluate that principle in terms of its earliest American development. If we would enjoy the blessings of freedom, we must undergo the fatigue of attempting to understand it.

Some seventy years ago, a great American historian suggested an interpretation of the American ethos. Turner's thesis is still being debated today, something which I am certain would please its author immensely. But what is needed today is not the prolongation of the debate as to its validity so much as the investigation of it with newer techniques which, it might be added, Turner himself suggested. This is the merit of frontier ethnography, and, perhaps, the particular value of this study.

To me, Robert Frost implied as much in his wonderful "Stopping by Woods on a Snowy Evening." Yes, the "woods" of contemporary history are "lovely, dark and deep,

But I have promises to keep,
And miles to go before I sleep,
And miles to go before I sleep."

It is hoped that this investigation is the beginning of the answer to that promise, but it is well-recognized that there are miles to go.

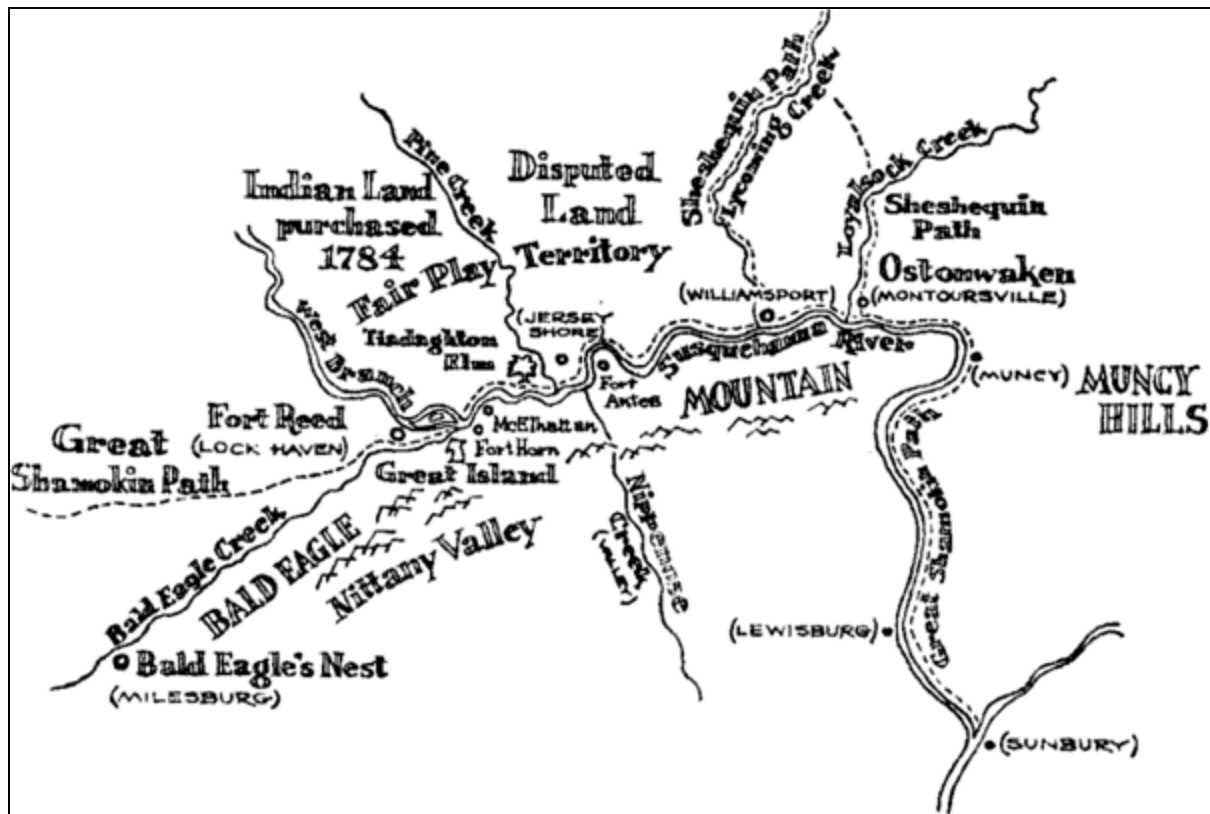
FOOTNOTES:

[1] Merle Curti *et al.*, *The Making of an American Community: A Case Study of Democracy in a Frontier County* (Stanford, 1959), p. 3.

[2] *Frontier and Section: Selected Essays of Frederick Jackson Turner*, intro. by Ray Allen Billington (Englewood Cliffs, N. J., 1961), pp. 52-55.

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CHAPTER ONE

Fair Play Territory: Geography and Topography

The Colonial period of American history has been of primary concern to the historian because of its fundamental importance in the development of American civilization. What the American pioneers encountered, particularly in the interior settlements, was, basically, a frontier experience. An ethnographic analysis of one part of the Provincial frontier of Pennsylvania indicates the significance of that colonial influence. The "primitive agricultural democracy" of this frontier illustrates the "style of life" which provided the basis for a distinctly "American" culture which emerged from the colonial experience.^[1]

While this writer's approach is dominantly Turnerian, this study does not necessarily contend that this Pennsylvania frontier was typical of the general colonial experience, nor that this ethnographic analysis presents in microcosm the development of the American ethos. However, on this farmer's frontier there was adequate evidence of the composite nationality, the self-reliance, the independence, and the nationalistic and rationalistic traits which Turner characterized as American.

In his famed essay on "The Significance of the Frontier," Turner saw the frontier as the crucible in which the English, Scotch-Irish, and Palatine Germans were merged into a new and distinctly American nationality, no longer characteristically English.^[2] The Pennsylvania frontier, with its dominant Scotch-Irish and German influence, is a case in point.

The Fair Play territory of the West Branch Valley of the Susquehanna River, the setting for this analysis, was part of what Turner called the second frontier, the Allegheny Mountains.^[3] Located about ninety miles up the Susquehanna from the present State capital at Harrisburg, and extending some twenty-five-odd miles westward between the present cities of Williamsport and Lock Haven, this territory was the heartland of the central Pennsylvania frontier in the decade preceding the American Revolution.

The term "Fair Play settlers," used to designate the inhabitants of this region, is derived from the extra-legal political system which these democratic forerunners set up to maintain order in their developing community. Being squatters and, consequently, without the bounds of any established political agency, they formed their own government, and labeled it "Fair Play."

However, despite the apparent simplicity of the above geographic description, the exact boundaries of the Fair Play territory have been debated for almost two centuries. Before we can assess the democratic traits of the Fair Play settlers, we must first clearly define what is meant by the Fair Play territory.

The terminal points in this analysis are 1768 and 1784, the dates of the two Indian treaties made at Fort Stanwix (now Rome), New York. The former opened up the Fair Play territory to settlement, and the latter brought it within the limits of the Commonwealth of Pennsylvania, thus legalizing the *de facto* political structure which had developed in the interim.

According to the treaty of 1768, negotiated by Sir William Johnson with the Indians of the Six Nations, the western line of colonial settlement was extended from the Allegheny Mountains, previously set by the Proclamation of 1763, to a line extending to the mouth of Lycoming Creek, which empties into the West Branch of the Susquehanna River. The creek is referred to as the Tiadaghton in the original of the treaty.^[4] The question of whether Pine Creek or Lycoming Creek was the Tiadaghton is the first major question of this investigation. The map which faces page one outlines the territory in question.

Following the successful eviction of the French in the French and Indian War, the American counterpart of the Seven Years' War, the crown sought a more orderly westward advance than had been the rule. Heretofore, the establishment of frontier settlements had stirred up conflict with the Indians and brought frontier pleas to the colonial assemblies for military support and protection. The result was greater pressure on the already depleted exchequer. The opinion that a more controlled and less expensive westward advance could be accomplished is reflected in the Royal Proclamation of 1763.

This proclamation has frequently been misinterpreted as a definite effort to deprive the colonies of their western lands. The very language of the document contradicts this. For example, the expression "for the present, and until our further pleasure be known" clearly indicates the tentative nature of the proclamation, which was "to prevent [the repetition of] such irregularities for the future" with the Indians, irregularities which had prompted Pontiac's Rebellion.^[5] The orderly advancement of this colonial frontier was to be accomplished through subsequent treaties with the Indians. The Treaty of Fort Stanwix in 1768 is one such example of those treaties.^[6]

The term "Fair Play settlers" refers to the residents of the area between Lycoming Creek and the Great Island on the north side of the West Branch of the Susquehanna River, and to those who interacted with them, during the period 1769-1784, when that area was outside of the Provincial limits. The appellation stems from the annual designation by the settlers of "Fair Play Men," a tribunal of three with quasi-executive, legislative, and judicial authority over the residents.

The relevance of the first Stanwix Treaty to the geographic area of this study is a matter of the utmost importance. The western boundary of that treaty in the West Branch Valley of the Susquehanna has been a source of some confusion because of the employment of the name "Tiadaghton" in the treaty to designate that boundary. The question, quite simply, is whether Pine Creek or Lycoming is the Tiadaghton. If Pine Creek is the Tiadaghton, an extra-legal political organization would have been unnecessary, for the so-called Fair Play settlers of this book would have been under Provincial jurisdiction.^[7] The designation of Lycoming Creek as the Tiadaghton tends to give geographic corroboration for the Fair Play system.

First and foremost among the Pine Creek supporters is John Meginness, the nineteenth-century historian of the West Branch Valley. His work is undoubtedly the most often quoted source of information on the West Branch Valley of the Susquehanna, and rightfully so. Although he wrote when standards of documentation were lax and relied to an extent upon local legendry as related by aged residents, Meginness' views have a general validity. However, there is some question regarding his judgment concerning the boundary issue.

Quoting directly from the journal of Moravian Bishop Augustus Spangenburg, who visited the West Branch Valley in 1745 in the company of Conrad Weiser, David Zeisberger, and John Schebosh, Meginness describes the Bishop's travel from Montoursville, or Ostonwaken as the Indians called it, to the "Limping Messenger," or "Diadachton Creek," where the party camped for the night.^[8] It is interesting to note that the Moravian journalist refers here to Lycoming Creek as the Tiadaghton, some twenty-three years prior to the purchase at Fort Stanwix, which made the question a local issue. Yet Meginness, in a footnote written better than a hundred years later, says that "It afterwards turned out that the true *Diadachton* or *Tiadachton*, was what is now known as Pine Creek."^[9]

Perhaps Meginness was influenced by the aged sources of some of his accounts. It may be, however, that he was merely repeating the judgment of an earlier generation which had sought to legalize its settlement made prior to the second Stanwix Treaty. The Indian description of the boundary line in the Fort Stanwix Treaty of 1768 may also have had some impact upon Meginness. Regardless, a comparison of data, pro and con, will demonstrate that the Tiadaghton is Lycoming Creek.

John Blair Linn, of Bellefonte, stood second to Meginness in popular repute as historian of the West Branch Valley. However, he too calls Pine Creek the Tiadaghton, though the reliability of his sources is questionable. Unlike Meginness, whose judgment derived somewhat from interviews with contemporaries of the period, Linn based his contention upon the statements made by the Indians at the second Stanwix Treaty meeting in 1784.^[10]

At those sessions on October 22 and 23, 1784, the Pennsylvania commissioners twice questioned the deputies of the Six Nations about the location of the Tiadaghton, and were told twice that it was Pine Creek.^[11] In the first instance, Samuel J. Atlee, speaking for the other Pennsylvania commissioners, called attention to the last deed made at Fort Stanwix in 1768 and asked the question about the Tiadaghton:

This last deed, brothers, with the map annexed, are descriptive of the purchase made sixteen years ago at this place; one of the boundary lines calls for a creek by the name of *Tyadoghton*, we wish our brothers the Six Nations to explain to us clearly which

you call the *Tyadoghton*, as there are two creeks issuing from the *Burnet's Hills*, *Pine* and *Lycoming*.^[12]

Captain Aaron Hill, a Mohawk chief, responded for the Indians:

With regard to the creek called *Tyadoghton*, mentioned in your deed of 1768, we have already answered you, and again repeat it, it is the same you call *Pine Creek*, being the largest emptying into the west branch of the *Susquehannah*.^[13]

This, of course, was the "more positive answer" which the Indians had promised after the previous day's interrogation.^[14] It substantiated the description given in the discussions preceding the Fort Stanwix Treaty of 1768.^[15] However, the map illustrating the treaty line, although tending to support this view, is subject to interpretation.^[16] Regardless, this record of the treaty sessions provides the strongest evidence to sustain the Pine Creek view.

There is little doubt that Meginness and Linn were influenced by the record. This is certainly true of D. S. Maynard, a lesser nineteenth-century historian, whose work is obviously based upon the research of Meginness. Maynard repeated the evidence of his predecessor from the account of Thomas Sergeant by describing the Stanwix Treaty line of 1768 as coming "across to the headwaters of Pine Creek." Maynard's utter dependence upon Meginness suggests that his evidence is more repetitive than substantive.^[17]

A more recent student of local history, Eugene P. Bertin, of Muncy, gives Pine Creek his undocumented support, which appears to be nothing more than an elaboration of the accounts of Meginness and Linn.^[18] Dr. Bertin's account appears to be better folklore than history.^[19]

Another twentieth-century writer, Elsie Singmaster, offers more objective support for Pine Creek, although her argument appears to be better semantics than geography.^[20]

Edmund A. DeSchweinitz, in his biography of David Zeisberger, errs in his interpretation of the term "Limping Messenger" (*Tiadaghton*), used by Bishop Spangenburg in his account of their journey to the West Branch Valley in 1745. He notes that on their way to Onondaga (Syracuse) after leaving "Ostonwaken" (Montoursville) they passed through the valley of

Tiadaghton Creek. They were following the Sheshequin Path. But he identifies the Tiadaghton with Pine Creek. There was an Indian path up Pine Creek, but it led to Niagara, not Onondaga.^[21]

Aside from the designation by the Indians at the second Stanwix Treaty, there is only one other source which lends any credibility to the Pine Creek view, and that is Smith's *Laws of the Commonwealth of Pennsylvania*. After the last treaty was made acquiring Pennsylvania lands from the Indians, the legislature, in order to quell disputes about the right of occupancy in this "New Purchase,"^[22] passed the following legislation:

And whereas divers persons, who have heretofore occupied and cultivated small tracts of land, without the bounds of the purchase made, as aforesaid, in the year of our Lord one thousand seven hundred and sixty-eight, and within the purchase made, or now to be made, by the said commissioners, have, by their resolute stand and sufferings during the late war, merited, that those settlers should have the pre-emption of their respective plantations:

Be it therefore enacted by the authority aforesaid, That all and every person or persons, and their legal representatives, who has or have heretofore settled on the north side of the west branch of the river Susquehanna, upon the Indian territory, between Lycomick or Lycoming creek on the east, and Tyagaghton or Pine creek on the west, as well as other lands within the said residuary purchase from the Indians, of the territory within this state, excepting always the lands herein before excepted, shall be allowed a right of pre-emption to their respective possessions, at the price aforesaid.^[23]

It may be worth observing, however, that legislation tends to reflect popular demand rather than the hard facts of a situation. In this case the settlers of the region prior to 1780 stood to benefit by this legislation and formed an effective pressure group.

The contrary view in this long-standing geographical debate is based, for the most part, upon the records of journalists and diarists who traveled

along the West Branch *prior* to the first Stanwix Treaty and who thus had no axe to grind.

That the Lycoming Creek was in fact the Tiadaghton referred to by the Indians at Fort Stanwix in 1768 is strongly indicated by the weight of evidence derived from the journals of Conrad Weiser (1737), John Bartram (1743), Bishop Spangenburg (1745), Moravian Bishop John Ettwein (1772), and the Reverend Philip Vickers Fithian (1775). In addition, the maps of Lewis Evans (1749) and John Adlum (1792), the land applications of Robert Galbreath and Martin Stover (1769), and a 1784 statute of the Pennsylvania General Assembly all tend to validate Lycoming's claim to recognition as the Tiadaghton. Each datum has merit in the final analysis, which justifies the specific examination which follows:

Supporting evidence is found in Weiser's German journal, which was meant for his family and friends, and translated into English by his great-grandson, Hiester H. Muhlenberg. (Weiser also kept an English journal for the Council at Philadelphia.) Weiser wrote: "The stream we are now on the Indians call Dia-daclitu, (die berirte, the lost or bewildered) which in fact deserves such a name."^[24] (This is an obvious misspelling of Diadachton.) Weiser was following the Sheshequin Path with Shickellamy to Onondaga and this entry is recorded on March 25, 1737, long before there was any question about the Tiadaghton.

There seems to be some confusion over Bishop Spangenburg's use of the term "Limping Messenger" in his journal for June 8, 1745. He too was traveling the Sheshequin Path with David Zeisberger, Conrad Weiser, Shickellamy, Andrew Montour, *et al.* He describes the "Limping Messenger" as a camp on the "Tiadachton" (Lycoming), whereas DeSchweinitz in his *Zeisberger* interprets the term to mean Pine Creek.^[25]

Another traveler along the Sheshequin Path was the colonial botanist, John Bartram. Bartram, in the company of Weiser and Lewis Evans, the map maker, notes in his diary of July 12, 1743, riding "down [up] a valley to a point, a prospect of an opening bearing N, then down the hill to a run and over a rich neck lying between it and the Tiadaughton."^[26] Incidentally, the editor of this extract from Bartram's journal makes the quite devastating point that Meginness did not know of Bartram's journal, which was

published in London in 1751 but which did not appear in America until 1895.^[27]

One of the Moravian journalists who visited the scenic Susquehanna along the West Branch was Bishop John Ettwein, who passed through this valley on his way to Ohio in 1772. He wrote of "Lycoming Creek, [as the stream] which marks the boundary line of lands purchased from the Indians."^[28]

Perhaps the most interesting and informative diarist who journeyed along the West Branch was the Reverend Philip Vickers Fithian. Fithian came to what we will establish as Fair Play country on July 25, 1775, at what he called "Lacommon Creek." His conclusion was that this creek was the Tiadaghton.^[29] It is this same Fithian, it might be added, whose Virginia journals were the primary basis for the reconstruction of colonial Williamsburg.

The work of colonial cartographers also substantiates the claim that Lycoming Creek is the Tiadaghton. Both Lewis Evans, following his 1743 journey in the company of Bartram and Weiser, and John Adlum, who conducted a survey of the West Branch Valley in 1792 for the Commonwealth of Pennsylvania, failed to label Pine Creek as the "Tiadaghton" on their maps.^[30] In fact, Adlum's map of 1792, found among the papers of William Bingham, designates the area east of Lycoming Creek as the "Old Purchase." Furthermore, as is the case with Evans' map, Adlum does not apply the Tiadaghton label to either Pine Creek or Lycoming Creek.^[31]

Two applications in 1769 for land in the New Purchase show that the Tiadaghton, or in this case "Ticadaughton," can only be Lycoming Creek. The application of Robert Galbreath (no. 1823) is described as "Bounded on one side by the Proprietor's tract at Lycoming." Martin Stover applied for the same tract (application no. 2611), which is described as "below the mouth of Ticadaughton Creek."^[32] The copies of these two applications, together with the copy of the survey, offer irrefutable proof of the validity of Lycoming's claim.

Perhaps the final note is the action of the General Assembly of the Commonwealth of Pennsylvania on December 12, 1784.^[33] The legislators affirmed the judgments of the frontier journalists, whose recorded journeys

offer the best proof that the Lycoming is the Tiadaghton. Prior to this action, the Provincial authorities had issued a proclamation on September 20, 1773, prohibiting settlement west of Lycoming Creek by white persons. Violators were to be apprehended and tried. The penalties were real and quite severe: £500 fine, twelve months in prison without bail, and a guarantee of twelve months of exemplary conduct after release.^[34] Court records, however, fail to indicate any prosecutions.

Finally, the latest scholar to delve into the complexities of the Stanwix treaties, Professor Peter Marshall, says that there was no prolonged and close discussion about the running of the treaty line in Pennsylvania (the Tiadaghton question), no discussion in any way comparable to that which took place over its location in New York.^[35]

In summary then, it appears that the Treaty of Fort Stanwix in 1768 was responsible for opening the West Branch Valley to settlement, such settlement being stimulated by the opening of the Land Office in Philadelphia on April 3, 1769. James Tilghman, secretary of the Land Office, published the notice of his office's willingness "to receive applications from all persons inclinable to take up lands in the New Purchase."^[36] The enthusiasm generated by the opening of the Land Office is shown by the better than 2,700 applications received on the very first day. However, the question of the Tiadaghton came to be a source of real contention. The ambiguity of the Indian references to the western boundary of the first Stanwix Treaty led the eager settlers, who were seeking to legitimize claims in the area between Lycoming and Pine creeks, to favor Pine Creek. There was substance to the settlers' claim.

The significance of the boundary question to this study is better understood when it is recognized that the so-called Fair Play system of government in lands beyond the Provincial limits must have a definable locale. It is this writer's firm conviction that Fair Play territory extended from Lycoming Creek, on the north side of the West Branch of the Susquehanna, to the Great Island, some five miles west of Pine Creek. The foundation for the establishment of Lycoming Creek as the Tiadaghton, and consequently, as the eastern boundary of the Fair Play territory is apparent once all the evidence is examined. Aside from the comments of the Indians at the treaty negotiations and Smith's *Laws of the Commonwealth of Pennsylvania*, there

are only secondary accounts with little documentation to sustain the Pine Creek argument.

On the other hand, the Lycoming Creek claim is buttressed by such primary sources as the journals of Weiser, Bartram, Spangenberg, Ettwein, and Fithian, three of which were written before the location of the Tiadaghton became a subject of dispute. Since none of these men was seeking lands, they can be considered impartial observers. Furthermore, the cartographic efforts of Lewis Evans and John Adlum followed actual visits to the region and say nothing to favor the Pine Creek view.

Perhaps the Indians were merely accepting an already accomplished fact at the meeting in 1784. Dr. Paul A. W. Wallace says that this would have been expected from the subservient, pacified Indian. Regardless, the Provincial leadership made no effort to settle the lands in what some called "the disputed territory" until after the later agreement at Stanwix; in fact, they discouraged it.^[37] The simple desire for legitimacy gives us very little to go on in the light of more than adequate documentation of the justice of the Lycoming view.

This evidence might suggest changing the name of the long-revered "Tiadaghton Elm" to the "Pine Creek Elm" and bringing to a close the vexatious question of the Tiadaghton. However let us strike a note of caution, if not humility. Indian place names had a way of shifting, doubling, and moving, since they served largely as descriptive terms and not as true place names. It is not at all unusual to find the same name applied to several places or to find names migrating. The Tiadaghton could have been Lycoming Creek to some Indians at one time, and Pine Creek to others at the same or another time. Consider, for example, that there were three Miami rivers in present Ohio, which are now known as the Miami, the Little Miami, and the Maumee. It hardly makes any real difference to the geography of the Fair Play territory, or to the delimiting of its boundaries, which stream was the Tiadaghton. Actually, it was the doubt about it which drew in the squatters and created Fair Play. These settlers justified their contention that the Tiadaghton was Pine Creek by moving into the territory and holding onto it. This may be reason enough for calling the famous tree the Tiadaghton Elm, even if early travelers and the proprietary officials said that the Tiadaghton was Lycoming Creek.^[38]

The topography of the region also influenced the delineation of what we call Fair Play territory. The jugular vein which supplies the life-blood to this region is undoubtedly the West Branch of the Susquehanna River. This branch of the great river, which drains almost fifty per cent of the State, follows a northeasterly course of some forty miles from the Great Island, which is just east of present Lock Haven, to what is now Muncy, then turns southward.^[39]

The West Branch of the mighty Susquehanna, which has plagued generations of residents with its spring floodings, was the primary means of ingress and egress for the area. Rich bottom lands at the mouths of Lycoming, Larrys, and Pine creeks drew the hardy pioneer farmers, and here they worked the soil to provide the immediate needs for survival. Hemmed in on the north by the plateau area of the Appalachian front and on the south by the Bald Eagle Mountains, these courageous pioneers of frontier democracy carved their future out of the two-mile area (more often less) between those two forbidding natural walls. With the best lands to be found around the mouth of Pine Creek, which is reasonably close to the center of this twenty-five-mile area, it seems quite natural that the major political, social, and economic developments would take place in close proximity—and they did.^[40]

Thus, an area never exceeding two miles in width and spanning some ten miles (presently from Jersey Shore to Lock Haven) was the heartland of Fair Play settlement. Lycoming Creek, Larrys Creek, and Pine Creek all run south into the West Branch, having channeled breaks through the rolling valley which extends along the previously defined territory.

"The land was ours before we were the land's," the poet said, and it seems apropos of this moment in history.^[41] Fair Play territory, possessed before it was owned and operated under *de facto* rule, would be some time in Americanizing the sturdy frontiersmen who came to bring civilization to this wilderness.

FOOTNOTES:

[1] Carl L. Becker, *Beginnings of the American People* (Ithaca, N. Y., 1960), p. 182.

[2] Turner, *Frontier and Section*, p. 51.

[3] Frederick Jackson Turner, *The Frontier in American History* (New York, 1963), p. 9.

[4] E. B. O'Callaghan, *Documentary History of the State of New York* (Albany, 1849), I, 587-591.

[5] Henry Steele Commager, *Documents of American History* (New York, 1958), I, 49.

[6] An earlier twentieth-century historian misinterprets the first Stanwix Treaty in much the same manner as earlier colonial historians erred in their judgments of the Proclamation of 1763. Albert T. Volwiler, *George Croghan and the Westward Movement, 1741-1782* (Cleveland, 1926), p. 250, really overstates his case, if the Fair Play settlers are any example, when he claims that the Fort Stanwix line, by setting a definite boundary, impeded the western advance. Establishing friendships with the Indians and then persuading them to sell their lands proved valuable to more than speculators, whose case Volwiler documents so well, as West Branch settlements after 1768 will attest.

[7] The extension of Provincial authority to Pine Creek would have taken in three-fourths of what we have labeled Fair Play territory.

[8] John F. Meginness, *Otzinachson: A History of the West Branch Valley of the Susquehanna* (Williamsport, 1889), p. 106. The full passage from the Bethlehem Diary (now in the Moravian Archives) was translated by the late Dr. William N. Schwarze for Dr. Paul A. W. Wallace, historian of the Pennsylvania Historical and Museum Commission, as follows: "In the afternoon [June 8, New Style] our brethren left that place [beyond Montoursville] and came in the evening to the Limping Messenger on the Tiadachton Creek, where they spent the night." In the *Pennsylvania Magazine of History and Biography*, II (1878), 432 (hereafter cited as *PMHB*), Zeisberger's account is translated in this manner: "In the afternoon we proceeded on our journey, and at dusk came to the 'Limping Messenger,' or Diadachton Creek [a note identifies this as Lycoming], and encamped for the night." Here the error is in identifying the Limping Messenger with the stream. Meginness, of course, repeated the error in his *Otzinachson* (1889), p. 106. Referring the passage to Vernon H. Nelson of the Moravian Archives, through Dr. Wallace, resulted in a clarification of the translation and the affirmation of the "Limping Messenger" as a camp on the stream. In the Bethlehem Diary, under June 8, 1754, the sentence appears as follows: "des Nachm. reissten unsre Brr Wieder von da weg u kamen Abends zum hinckenden Boten an der Tiatachton Creek, u lagen da uber Nacht." In the original travel journal the passage reads: "des Nachm. reissten wir wieder von da weg, u kamen Abends zum *hinckenden Boten* an der Tiatachton Crick u lagen da uber Nacht." De Schweinitz in his *Zeisberger* further confused the issue in his description of the journey. He takes the adventurers (Zeisberger, Spangenburg, Conrad Weiser, Shickellamy, and Andrew Montour) through the valley of the Tiadaghton Creek on the Sheshequin Path to Onondaga (Syracuse). There was an Indian path up Pine Creek, but it led to Niagara, not Onondaga.

[9] Meginness, *Otzinachson* (1889), p. 106. This is an added note of Meginness' commentary upon the citation noted above.

[10] John Blair Linn, *History of Centre and Clinton Counties, Pennsylvania* (Philadelphia, 1883), p. 468. Linn also deals with the Tiadaghton question in his "Indian Land and Its Fair Play Settlers," *PMHB*, VII (1883), 420-425. Here he simply defines Fair Play territory as "Indian Land" encompassing the Lycoming-Pine Creek region.

[11] *Minutes of the First Session of the Ninth General Assembly of the Commonwealth of Pennsylvania ...* (Philadelphia, 1784), Appendix, Proceedings of the Treaties held at Forts Stanwix and McIntosh, pp. 314-322.

[12] *Ibid.*, Oct. 23, p. 319.

[13] *Ibid.*

[14] *Ibid.*, Oct. 22, p. 316.

[15] E. B. O'Callaghan, *Documents Relative to the Colonial History of the State of New York*, VIII (Albany, 1857), 125. In the discussions preceding the Fort Stanwix Treaty of 1768, the Indians' description of the boundary line could be interpreted as favoring Pine Creek: "... to the Head of the West Branch of Susquehanna thence down the same to Bald Eagle Creek thence across the River at Tiadaghta Creek below the great Island, thence by a straight Line to Burnett's Hills and along the same...." The juxtaposition of Bald Eagle Creek, the Great Island, and "Tiadaghta" Creek makes this conclusion plausible.

[16] *See also ibid.*, Guy Johnson's map illustrating the treaty line, opposite p. 136.

[17] D. S. Maynard, *Historical View of Clinton County, From Its Earliest Settlement To The Present Time* (Lock Haven, 1875), p. 8. The line is given by Maynard as follows: "... and took in the lands lying east of the North Branch of the Susquehanna, beginning at Owego, down to Towanda, thence up the same and across to the headwaters of Pine Creek; thence down the same to Kittanning...."

[18] Eugene P. Bertin, "Primary Streams of Lycoming County," *Now and Then*, VIII (1947), 258-259.

[19] Dr. Bertin, former associate secretary of the Pennsylvania State Education Association, adds nothing to the Meginness and Linn accounts, his probable sources. He speaks of settlements as early as 1772, whereas it is a matter of record that Cleary Campbell squatted in what is now north Lock Haven sometime shortly after 1769. He refers to the establishment of homes, properly, but then goes on to add churches and schools. The source for his "Children and elders met together periodically to recite catechism to the preacher, who was a travelling missionary, one being Phillip Fithian," was J. B. Linn. But Fithian, an extremely accurate diarist, fails to mention the occasion during his one-week visit to this area in the summer of 1775. However, the real value of this article is the editorial note by T. Kenneth Wood on the Tiadaghton question. In it he refers to John Bartram's journal of 1743, twenty-five years before the Stanwix Treaty at Rome, N. Y., with the Iroquois, which recounts his travels with the Oneida

Chief Shickellamy and Conrad Weiser. Lewis Evans was also in the party, making notes for his map of 1749. The party, on its way to Onondaga (Syracuse), was approaching Lycoming Creek at a point just south of Powys, via the Sheshequin Indian path. Bartram, the first American botanist, who wrote in his journal nightly after checking with his two guides, gives this account, T. Kenneth Wood (ed.), "Observations Made By John Bartram In His Travels from Pennsylvania to Onondaga, Oswego and the Lake Ontario in 1743," *Now and Then*, V (1936), 90: "Then down a hill to a run and over a rich neck of land lying between it and the Tiadaughton." No contact was made with Pine Creek. Dr. Wood contends in his note to the Bertin article, and this writer is inclined to agree, that the Indian of 1743 and the Indian of 1768 were telling the truth and that the white settlers of 1768, and for sixteen years thereafter, were wrong, either through guile and design or ignorance. He says, "The original Indian principals signing the treaty had retreated westward and sixteen years of fighting over the question (and possibly a few bribes) had settled it to the white man's satisfaction. The Indians always had to yield or get out." This is essentially the point which Dr. Wallace made to me in his letter of Feb. 16, 1961.

[20] Elsie Singmaster, *Pennsylvania's Susquehanna* (Harrisburg, 1950), p. 87. Her Pine Creek description (while describing tributaries of the Susquehanna) speaks of the gorge as the upper course of Pine Creek, which is now part of Harrison State Park. Here, she says, "The rim is accessible by a paved highway, and from there one may look down a thousand feet and understand why the Indians called the stream Tiadaghton or Lost Creek."

[21] Edmund A. DeSchweinitz, *The Life and Times of David Zeisberger* (Philadelphia, 1871), p. 133. Further evidence of DeSchweinitz' confusion is found in his Geographical Glossary in the same book. On page 707, he calls the Great Island, Lock Haven; on page 709, he calls Long Island, Jersey Shore; and on page 713, he refers to Pine Creek as the Tiadaghton, "also called Diadaghton."

[22] The term "New Purchase" was frequently used, both officially and otherwise, to designate the area on the north side of the West Branch of the Susquehanna from Lycoming Creek to the Great Island, although in actuality the purchase line terminated at Lycoming Creek.

[23] Charles Smith, *Laws of the Commonwealth of Pennsylvania* (Philadelphia, 1810), II, 274.

[24] Paul A. W. Wallace, *Conrad Weiser, Friend of Colonist and Mohawk* (Philadelphia, 1945), p. 81.

[25] Wallace mistakenly attaches the appellation "Limping Messenger" to "a foot-sore Indian named Anontagketa," *ibid.*, p. 220. However, this error was corrected in a letter to this writer, August 24, 1962.

[26] Wood (ed.), "Observations Made By John Bartram," p. 90.

[27] *Ibid.*, p. 79.

[28] Meginness, *Otzinachson* (1889), p. 411.

[29] Robert Greenhalgh Albion and Leonidas Dodson (eds.), *Philip Vickers Fithian: Journal, 1775-1776* (Princeton, 1934), pp. 69-76.

[30] Hazel Shields Garrison, "Cartography of Pennsylvania before 1800," *PMHB*, LIX (1935), 255-283. Information on Adlum's maps was obtained from [T. Kenneth Wood], "Map Drawn by John Adlum, District Surveyor, 1792, Found Among the Bingham Papers," *Now and Then*, X (July, 1952), 148-150.

[31] [Wood], "Map Drawn by John Adlum," pp. 148-150.

[32] Bureau of Land Records, Harrisburg, Pennsylvania, New Purchase Applications, Nos. 1823 and 2611, April 3, 1769.

[33] *Pennsylvania Archives*, First Series, XI, 508.

[34] *Colonial Records*, X, 95.

[35] In a letter to this writer, May 19, 1962, Professor Marshall states: "It was my opinion that the treaty marked, in one aspect, a bargain between Johnson and the Six Nations. I do not accept Billington's charge of betrayal of their interests. But it does seem to me that this meant hard bargaining in New York, when the state of Indian and colonial lands was precisely known to both sides, and indifference and ignorance beyond this point.... As far as I am aware, there was no prolonged and close discussion about the running of the line in Pennsylvania in the least comparable to that which took place over its location in New York." See Peter Marshall, "Sir William Johnson and the Treaty of Fort Stanwix, 1768," *The Journal of American Studies*, I (Oct., 1967), pp. 149-179.

[36] Meginness, *Otzinachson* (1889), p. 340.

[37] Helen Herritt Russell, "Signers of the Pine Creek Declaration of Independence," *The Northumberland County Historical Society Proceedings and Addresses*, XXII (1958), 1-15.

[38] The fame of this historic elm stems from the fact that it is reputed to be the site of a local declaration of independence made the same day as the adoption of Jefferson's draft in Philadelphia, July 4, 1776. The author is indebted to Donald H. Kent, Director of the Bureau of Archives and History, Pennsylvania Historical and Museum Commission, for the idea and some of the expression in this paragraph.

[39] Paul A. W. Wallace, *Pennsylvania: Seed of a Nation* (New York, 1962) p. 3. This delightful book in the "Regions of America" series, edited by Carl Carmer, contains an excellent chapter on the significance of Pennsylvania's "Three Rivers."

[40] Gristmills—meeting places of the Fair Play tribunal—a school, and a church would all be found in this Pine Creek region. However, the church (Presbyterian) would not be built until the territory became an official part of the Commonwealth following the second Stanwix Treaty in 1784.

[41] Robert Frost, *Complete Poems of Robert Frost* (New York, 1949), p. 467. This poem somehow characterizes the experiences of the settlers of this frontier and many frontiers to come.

CHAPTER TWO

The Fair Play Settlers: Demographic Factors

James Logan, president of the Proprietary Council of Pennsylvania, 1736-1738, once declared that "if the Scotch-Irish continue to come they will make themselves masters of the Province."^[1] His prediction, which was to be generally proven in the Province during the French and Indian War, was to be demonstrated particularly in the West Branch Valley during the Revolutionary period. The Scotch-Irish were the dominant national or ethnic group in the Fair Play territory from 1769 to 1784. This dominance is demonstrated in Chart 1, which indicates the national origins of eighty families in the Fair Play territory.

CHART 1

National Origins of Fair Play Settlers^[2]
Expressed in Numbers and Percentages

Total	Scotch-Irish	English	German	Scots	Irish	Welsh	French
80	39	16	12	5	4	2	2
%	48.75	20	15	6.25	5	2.5	2.5

Not only were the Scotch-Irish the most numerous national stock among the Fair Play settlers of the West Branch Valley, but they also represented a plurality and almost a majority of the entire population. The significance of this finding in terms of the "style of life" of the Fair Play settlers cannot be over-emphasized. It influenced the politics, the religion, the family patterns, and thus the values of this frontier society.

Several other important conclusions can be drawn from this chart. In contrast to the population of Pennsylvania in general and the assumptions

regarding frontier areas in particular, the English, rather than the Germans, were the second most numerous national stock group. The Germans, however, made up the third-largest segment of the West Branch Valley population. The Scots, Welsh, Irish, and a few French inhabitants formed the remaining sixteen per cent of the population. Obviously, this was a dominantly Anglo-Saxon Protestant area of settlement.

The impact of this Scotch-Irish hegemony upon the religion, politics, family life, and social values in general will be dealt with in a later chapter. However, it can be noted at this juncture that the strong-willed individualism which characterized these sturdy people was as much influenced by their national origin as by their experience on the American frontier. Furthermore, Presbyterianism influenced and was influenced by a developing democratic political system, which paralleled the American Presbyterian system of popular rather than hierarchical church government. [3] A prominent immigration historian has pointed out that "the theory of Presbyterian republicanism, as a matter of church policy, could easily be reconciled with demands of the more radical democrats of 1776." [4] Finally, the social life and customs and, hence, the values of this frontier society were governed for the most part by this majority group. Thus, dogmatic faith, political equality, social and economic independence, respect for education, and a tightly-knit pattern of family relationships express appropriately the institutional patterns by which the Scotch-Irish of the West Branch operated.

It is interesting to contrast the national stock groupings of this Susquehanna frontier with the results of a study of national origins of the American population made by the American Council of Learned Societies and published in 1932: [5]

CHART 2

Classification of the White Population into Its National Stocks
in the Continental United States and Pennsylvania: 1790; and
in the Fair Play Territory: 1784 (Expressed in Percentages).

	Scotch-Irish	English	German	Scots	Irish	Welsh	French	Other
Continental								
United States	5.9	60.1	8.6	8.1	3.6	0	2.3	10.6
Pennsylvania	11.0	35.3	33.3	8.6	3.5	0	1.8	6.5
Fair Play Territory	48.75	20	15	6.25	5	2.5	2.5	0

From this comparison it can readily be seen that the national origins of the Fair Play settlers in no way conform to either the national pattern or the State pattern of just a few years later. Although this limited frontier area can be recognized as having its own individual ratio of component stocks, it is representative rather than unique in its culture and values. The reaction of those of other national stocks to the frontier experience buttresses the conclusion that their values were influenced more by the frontier than by national origin. It is this common reaction to the problems of the frontier which gives rise to the conclusion that this West Branch Valley environment was characterized by and that its inhabitants held values which Turner evaluated as democratic. The nature of those democratic values is, however, dealt with in greater detail in subsequent chapters.

The American sources of emigration form the next question to be considered in examining the origins of the Fair Play settlers. Lacking adequate statistical data for a complete picture of migration in terms of percentages, the following chart indicates only the probable origins of the three most numerous national stock groupings in the Fair Play territory:

CHART 3

American Sources of Emigration^[6]

National Stock	Percentage of Population	American Source of Emigration
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Scotch-Irish	48.75	Chester, Cumberland, Dauphin, Lancaster counties
English	20	New Jersey, New York, southeastern Pennsylvania (Philadelphia and Bucks counties)
German	15	Chester, Lancaster, Philadelphia, and York counties
Total	83.75	

Obviously, the primary sources for the West Branch settlements were the lower Susquehanna Valley and southeastern Pennsylvania. However, an appreciable number of English settlers appear to have come originally from New Jersey to settle in what they called "Jersey Shore," immediately east of the mouth of Pine Creek. One explanation for the migration of the dominant stock, the Scotch-Irish, is probably the fact that the Provincial government refused to sell more lands in Lancaster and York counties to the Scotch-Irish. In effect, they were driven to use squatter tactics in the Fair Play territory.^[7]

The internal origins of sixteen of these settlers can be verified in either Meginness or Linn. Four came from Chester County, three each from the Juniata Valley and Lancaster County, two each from Cumberland County and New Jersey, and one each from Dauphin County and from Orange County in New York. Nine of these settlers, incidentally, were Scotch-Irish. Although these data are insufficient for any valid generalization, they do conform to the characteristic migratory trends indicated in Chart 3.

In analyzing the migration of settlers into the West Branch Valley beyond the line of the "New Purchase," it becomes apparent that the Scotch-Irish came from the fringe areas of settlement, whereas the English and Germans tended to migrate from more settled areas. Furthermore, the English migrants often came from outside the Province of Pennsylvania, either from

New Jersey or New York. In fact, if one were to construct a pattern of concentric zones, with the core in the southeastern corner of the Province and the lines radiating in a north-westerly direction, the English would be found at the core, the Germans in the next zone, and the Scotch-Irish in the outlying area. This zoning offers no real contradiction of the usual pattern of Pennsylvania migrations. However, when one combines the data of internal movements with those of external origins, certain contradictions do appear. The most noteworthy of these is, of course, the prominence of English settlers on this Fair Play frontier vis-à-vis the Germans.

Since the Pennsylvania frontiersmen of the Wyoming Valley were of English stock, and immigrated from New England, it might have been assumed that some of these Connecticut settlers came into the West Branch Valley. Here, however, all evidence points to the fact that Connecticut settlers did not migrate west of Muncy, which is located at the juncture of Muncy Creek and the West Branch of the Susquehanna River (where the bend in the river turns into a directly western pattern). Thus the Connecticut boundary dispute of 1769-1775, which erupted into the Pennamite Wars, did not involve the Fair Play settlers.^[8] Nevertheless, at least one Fair Play settler looked forward to the possibility of an advance of the Connecticut settlement along the West Branch.^[9]

The impact of events upon the settlement of the Fair Play territory is particularly apparent when one examines the periods of immigration to and emigration from the region. Three events seemed to have had the greatest influence upon the immigration: the Treaty of Fort Stanwix in 1768, which extended the Provincial limits to Lycoming Creek in this region, and the resultant opening of the Land Office for claims in the "New Purchase" on April 3, 1769;^[10] the almost complete evacuation of the territory in the "Great Runaway" of the summer of 1778, which was prompted by Indian attacks and the fear of a great massacre comparable to the "Wyoming Valley Massacre" of that same year;^[11] and finally, the Stanwix Treaty of 1784, which brought the Fair Play area within the limits of the Province.^[12]

The first Stanwix Treaty, made by Sir William Johnson with the Six Nations in November of 1768, extended the legitimate line of English colonial settlement from the line established by the Proclamation of 1763 to a point on the West Branch of the Susquehanna River at the mouth of Lycoming

Creek (the Tiadaghton, as it was so ambiguously labeled).^[13] This extension, ostensibly for the purpose of providing lands for the colonial veterans of the French and Indian War, became a boon to speculators and an inducement to the Scotch-Irish squatters who took lands beyond the limits of this "New Purchase" in what was to become the Fair Play territory.

In the summer of 1778 the war whoop once again caused the settlers of the West Branch Valley to flee from their homes for fear of a repetition of the Wyoming Massacre. The peril of the moment is vividly described in this communication to the Executive Council in Philadelphia from Colonel Samuel Hunter, commander of Fort Augusta:

The Carnage at Wioming, the devastations and murders upon the West branch of Susquehanna, On Bald Eagle Creek, and in short throughout the whole County to within a few miles of these Towns (the recital of which must be shocking) I suppose must have before now have reached your ears, if not you may figure yourselves men, women, and children, Butchered and scalped, many of them after being promised quarters, and some scalped alive, of which we have miserable Instances amongst us.... I have only to add that A few Hundreds of men well armed and immediately sent to our relief would prevent much bloodshed, confusion and devastation ... as the appearance of being supported would call back many of our fugitives to save their Harvest for their subsistence, rather than suffer the inconveniences which reason tells me they do down the Country and their with their families return must ease the people below of a heavy and unprofitable Burthen.^[14]

Robert Covenhoven, who lived at the mouth of the Loyalsock Creek and who fled to Sunbury (Fort Augusta) also, described the flight:

Such a sight I never saw in my life. Boats, canoes, hog-troughs, rafts hastily made of dry sticks, every sort of floating article, had been put in requisition, and were crowded with women, children, and plunder. There were several hundred people in all.... The whole convoy arrived safely at Sunbury, leaving the

entire range of farms along the West Branch to the ravages of the Indians.^[15]

In this eighteenth-century Dunkirk, the West Branch Valley was practically cleared of settlers.

The Indians, it is true, proved troublesome to the entire advancing American frontier; but unlike the French, whose menacing forts had been removed in the recent wars, the Indians were unable to halt the westward penetration. An expedition under the leadership of Colonel Thomas Hartley was sent out expressly for the purpose of boosting morale in the West Branch Valley following the Wyoming Massacre and the Great Runaway. Colonel Hartley's letter to Thomas McKean, chief justice of Pennsylvania and a member of the Continental Congress, gives bitter testimony to the conditions which he observed in September of 1778:

You heard of the Distresses of these Frontiers they are truly great—The People which we found were Difident and timid The Panick had not yet left them—many a wealthy Family reduced to Poverty & without a home, some had lost their Husbands their children or Friends—all was gloomy... the Barbarians do now and then attack an unarmed man a Helpless Mother or Infant....

The colonel indicated, however, that strong militia support and some offensive action would restore confidence and cause the people to return to the valley. His interpretation of the significance of his mission is quite clearly stated in the conclusion of his letter: "We shall not have it in our Power to gain Honour or Laurels on these Frontiers but we have the Satisfaction to think we save our Country...." Hartley's solution to the Indian problem, which had driven off the settlers, was to expel them "beyond the Lakes" excepting only the more civilized Tuscaroras and Oneidas.^[16]

Despite the danger from the Indians, the Fair Play settlers began trickling back to their homes, or what was left of them, toward the end of the Revolutionary War. Once the war was ended and the Fair Play territory was annexed by subsequent purchase, the mass movement of settlers to the West Branch Valley resumed.

Incidentally, Dr. Wallace in his *Conrad Weiser* assesses one John Henry Lydius with the major responsibility for the Indian massacres in central and northeastern Pennsylvania. Wallace notes that Lydius' Connecticut purchase from the Indians in 1754 caused "war between Pennsylvania and Connecticut and ... [precipitated] the Massacre of Wyoming in 1778." This massacre, as West Branch historians know, had its subsequent impact on the West Branch Valley in the Great Runaway, although the Winters Massacre of June 10, 1778, which prompted the evacuation of the valley, actually preceded the Wyoming affair.^[17]

Finally, the purchase of the remaining Indian lands in Pennsylvania (except for the small corner of the Erie Triangle) was made on October 3, 1784, in a second Stanwix Treaty. This accession ended the Pennsylvania boundary dispute with the Six Nations; and it also ended the need for any extra-legal system of government in the West Branch Valley, for this new treaty encompassed the Fair Play territory.^[18] However, this treaty raised the troublesome Tiadaghton question once again, a question only partly resolved by the Legislature's designation of Lycoming Creek as the Tiadaghton and the recognition of the squatters' right of pre-emption to their settlements along the West Branch of the Susquehanna.^[19] The land office was opened for the sale of this purchase July 1, 1785; by 1786 fifty heads of families were listed for State taxes in Northumberland County.^[20] Approximately fifty per cent of these taxables had been in the area earlier.

Perhaps the only significant nationality trend to be noted in this important sequence of events is the tenacity of the Scotch-Irish and the subsequent increase of English and German settlers following this last "New Purchase."^[21] Over half of the taxables in Pine Creek Township, the new designation for much of the Fair Play territory after it became an official part of the Province, were Scotch-Irish. As a result, these Scots from the north of Ireland continued to maintain their position of leadership even after the area was included in the Commonwealth.

The reasons for migrating to the West Branch Valley in this fifteen-year period from 1769 to 1784 were varied and numerous. For the most part, the various nationality groups which emigrated from Europe came for economic opportunity and because of religious and political persecutions. Their movement to the frontier regions was prompted by similar problems.

In fact, much the same as the earlier settlers of Jamestown and Plymouth, the squatters of the West Branch Valley came for gain and for God. Furthermore, the promise of Penn's "Holy Experiment," in which men of diverse backgrounds could live together peacefully in religious freedom and political equality, encouraged them to come to Pennsylvania. However, once the dominant group of the Fair Play frontier, the Scotch-Irish, arrived in Pennsylvania, they found themselves unsuited to the settled areas. The natural enemy of the English, who had oppressed them at home, these settlers soon found themselves repeating the Old World conflicts. In addition, the German Pietists caused them further embarrassment in their new homes. Their Calvinism, fierce political independence, and earnest desire for land and opportunity soon made them *personae non gratae* in the established areas. Hence, they migrated to the frontier areas and even beyond the limits of Provincial interference and control.^[22]

The paucity of population data makes impossible any extensive analysis of the stability and mobility of the Fair Play settlers. However, the tax lists, both in the published archives and in the files of the county commissioners in Northumberland County, offer limited evidence for the early years, though they provide ample data for the years after 1773. Prior to the Great Runaway in 1778, tax lists are available for the entire county of Northumberland; the lists simply indicate the taxable's township, acreage, and tax. Records in the Northumberland County courthouse give the assessments for 1773, 1774, 1776, and 1778.

Due to the fact that the Fair Play territory was outside the Provincial limits until after the purchase of Fort Stanwix in 1784, the assessment lists give only those persons residing within Northumberland County. As a result, there were only six to twelve settlers who associated with the Fair Play men who were included in the lists for 1773-1778. Chart 4 indicates the names, national origins, and years listed for those settlers.

CHART 4

Fair Play Settlers on the Tax Rolls 1773-1778.^[23]

Name	National Origin	1773	1774	1776	1778
James Alexander	Scotch-Irish	x	x		
George Calhoun	Scotch-Irish	x	x	x	x
Cleary Campbell	Scotch-Irish		x		
William Campbell, Jr.	Scotch-Irish	x	x	x	x
William Campbell, Jr.	Scotch-Irish			x	x
John Clark	English		x		
Thomas Forster	English	x	x	x	x
James Irwin	Scotch-Irish	x	x	x	x
John Jamison	English				x
Isaiah Jones	Welsh		x		
Robert King	German	x		x	x
John Price	Welsh		x	x	
Totals		6	8	7	7

From these limited data one obviously concludes that the Scotch-Irish were not only the most numerous but also the most persistent of these frontiersmen. Also, nine of these men, that is all except Clark, Jones, and King, appear on the tax lists for Northumberland County for the year 1785. [24] Interestingly enough, six of these nine were Scotch-Irish; and although our sample is limited, it is readily apparent that the stalwart Scots had a way of "hanging on." It would be presumptuous to conclude that seventy-five per cent of the residents before 1778 returned by 1785; but it is fact that some forty families had made improvements in the area by 1773 when William Cooke was sent out by the Land Office to "Warn the People of[f] the unpurchased Land." [25] Furthermore, as indicated earlier, some fifty families appear on the assessments for 1786, more than half of whom had been in the region before.

Any effort to analyze the population in terms of stability and mobility runs head-on into the creation of new townships in the 1780's, the inability to establish death rates for this frontier, and the inadequacy of probate records. The result is that the data are intuitively rather than statistically sound. Chart 5 offers a comparison of tax lists over a period of nine years as the basis for some conclusions regarding the stability and mobility of the Fair Play settlers.

CHART 5

Population Stability and Mobility Based Upon a Comparison of Tax Lists For the Period From 1778 to 1787.[\[26\]](#)

	1778- 80	1781	1783- 84	1786	1787
Number of residents assessed	27	29	34	40	68
Number appearing on previous assessments	6	19	21	14	33

Except for the 1783-84 figures, all of the tax data are for State taxes. The exception is the listing for the federal supply tax in 1783-84. The steady growth rate of the area is easily recognizable both in raw figures and in percentages. Beginning with an increase of a little more than seven per cent between the first two listings, we find a seventy per cent increase in the final figures. The tremendous increase in the last two assessments may be due to the purchase of 1784 and the subsequent legitimizing of claims through the establishment of pre-emption rights.

The stability of the population is particularly noted in the consistently high percentage of residents with some tenure in the valley. Furthermore, the apparent contradiction of this statement by the decline to fourteen residents in the 1786 listing who had once left and then returned is offset when one examines the neighboring township assessments for that same year. Here fourteen additional names of former Fair Play settlers are to be found which

would sustain the characteristic pattern of tenure. The statistical problem is complicated by the creation of new townships following the purchase of 1784. Pine Creek and Lycoming were the new designations for the former Fair Play territory, Pine Creek running from the creek of that same name west, and Lycoming extending from Pine Creek east to Lycoming Creek.

Petitions from the area in 1778, 1781, and 1784 give a similar picture. Almost half of the names which are found on the tax lists appear on two or more of these appeals. These include a distress petition in June of 1778, and petitions asking recognition of pre-emption rights in 1781 and 1784.^[27] The signatures on the petitions range in number from thirty-nine to fifty-one, and at least twenty-four of these settlers signed two or more of these documents. The very nature of these petitions, particularly the later ones, indicates the tremendous desire on the part of these sturdy pioneers to remain in or return to their homes in the West Branch Valley. Here too, however, this tenacity of purpose is not strictly confined to the Scotch-Irish.

What conclusions can be drawn from this analysis of the demographic factors in the Fair Play settlement? Particularly evident is the dominance of the Scotch-Irish, who numerically composed the greatest national stock group in the population. This dominance, as we have already noted, greatly influenced the political and social institutions of the area. Secondly, one might consider the numbers of English settlers, as compared with the number of Germans, surprising. As a matter of fact, if one adds the numbers of Scots and Welsh inhabitants to the English and Scotch-Irish, the result is an "English" percentage of seventy-seven and one half for the entire population. Thus it is quite logical to assume that English customs and language would prevail, and they did. Incidentally, it should be added that the "English" nature of the population, combined with the Scotch-Irish plurality, meant that the Scotch-Irish were more representative of this frontier than they were innovators of its customs and values.

If a majority of the Fair Play settlers came from the British Isles, from where did they emigrate in America? Here it is quite clear that these frontiersmen were predominantly from the lower Susquehanna Valley and southeastern Pennsylvania. Pennsylvania was to them a land of liberty and opportunity;^[28] and when they failed to find these privileges in the settled areas, they moved out on the frontier where they could make their own

rules, that is to say, establish their own familiar institutions. The result was the Fair Play system.

Although the Fair Play settlers came to America and central Pennsylvania for the usual political, economic, and social reasons, the two Stanwix treaties and the Indian raids of 1778 had the most influence on population fluctuations. The pioneers came into the territory over-reaching the limits of the "New Purchase" of 1768. They were driven out, almost to a man, in the Great Runaway of 1778. And finally, they returned after the second "New Purchase" in 1784, which resulted in the recognition of their pre-emption claims for their earlier illegal settlements. It is interesting to note that pre-emption claims were recognized in the West Branch Valley some forty-five years prior to federal legislation to that effect.^[29]

Despite fluctuations in the population, the Scotch-Irish were able to maintain their hold over the valley and thus influence the pattern of development for this frontier outpost. Horace Walpole, addressing the English Parliament during the American Revolution, said, "There is no use crying about it. Cousin America has run off with a Presbyterian parson, and that is the end of it."^[30] The Scotch-Irish with their Presbyterianism had run off with the West Branch Valley as well; and their independent spirit would see them in the foreground of the "noblest rupture in the history of mankind." That independent spirit and leadership is particularly noted in the political system which they established along the West Branch of the Susquehanna River. Their "Fair Play system" is the primary concern of the next chapter.

FOOTNOTES:

^[1] E. Melvin Williams, "The Scotch-Irish in Pennsylvania," *Americana*, XVII (1923), 382.

^[2] This chart was compiled by making a list of eighty names appearing in an article on the genealogy of the Fair Play men, Helen Herritt Russell, "The Documented Story of the Fair Play Men and Their Government," *The Northumberland County Historical Society Proceedings and Addresses*, XII (1958), 16-43. Mrs. Russell is genealogist of the Fort Antes chapter of the Daughters of the American Revolution in Jersey Shore, Pa. The names were checked in Meginness and Linn for possible national origin. Approximately one-

fourth were verified in these sources. Although this writer questioned the validity of the geographic conclusions of Meginness and Linn, both have ample documentation for their findings regarding genealogy and national origins. These findings can be validated in the published archives. The entire sample of names was submitted to Dr. Samuel P. Bayard, a folklore specialist and professor of English at the Pennsylvania State University, whose determination was made on the basis of linguistic techniques.

[3] Popular control was an American rather than a Scottish influence necessitated by the absence of sufficient numbers of ministers. In Scotland, the minister chose his elders and thus dominated the session; in America, the selection was made by the congregation. See James G. Leyburn, *The Scotch-Irish: A Social History* (Chapel Hill, 1962), p. 150.

[4] Carl Wittke, *We Who Built America* (Cleveland, 1963), p. 57.

[5] American Council of Learned Societies, "Report of Committee on Linguistic and National Stocks in the Population of the United States," *Annual Report of the American Historical Association for the Year 1931* (Washington, 1932), I, 124.

[6] This summary has been prepared from three main sources: Wayland F. Dunaway, *The Scotch-Irish of Colonial Pennsylvania* (Hamden, Conn., 1962), pp. 89-91; Meginness, *Otzinachson* (1889), pp. 161-167; and John B. Linn, *History of Centre and Clinton Counties, Pennsylvania* (Philadelphia, 1883), pp. 447, 481-482.

[7] Williams, "The Scotch-Irish in Pennsylvania," p. 382.

[8] Wayland F. Dunaway, *A History of Pennsylvania* (Englewood Cliffs, N. J., 1948), pp. 131-137. According to John Bacon Deans, "The Migration of the Connecticut Yankees to the West Branch of the Susquehanna River," *The Northumberland County Historical Society Proceedings and Addresses*, XX (1954), 34-35, eighty-two Yankees came to Warrior's Run in September of 1775, but none went farther west.

[9] Wyoming Historical and Geological Society, Wilkes-Barre, Pa., The Zebulon Butler Papers, Jonas Davis to Zebulon Butler, March 16, 1773.

[10] Meginness, *Otzinachson* (1889), p. 340.

[11] Linn, *History of Centre and Clinton Counties*, p. 475; Meginness, *Otzinachson* (1889), pp. 508-511.

[12] Linn, *History of Centre and Clinton Counties*, p. 477; Meginness, *Otzinachson* (1889), p. 666.

[13] O'Callaghan, *Documentary History of the State of New York*, I, 587-591.

[14] Meginness, *Otzinachson* (1889), p. 509. This July 12, 1778, communication from Colonel Hunter did not fall on deaf ears, for Colonel Thomas Hartley was ordered to the area with his regiment before the summer was out.

[15] Linn, *History of Centre and Clinton Counties*, p. 475.

- [16] Richmond D. Williams, "Col. Thomas Hartley's Expedition of 1778," *Now and Then*, XII (1960), 258-259.
- [17] Wallace, *Conrad Weiser*, pp. 362-363. Lydius had gotten the Indians drunk following the settlement at Albany between the Six Nations and the Proprietaries. This boundary line (Albany) "crossed the West Branch below the Big Island," p. 374.
- [18] *Pennsylvania Archives*, First Series, XI, 508.
- [19] Meginness, *Otzinachson* (1889), p. 667.
- [20] Linn, *History of Centre and Clinton Counties*, p. 477. *Pennsylvania Archives*, Third Series, XIX, 711-713.
- [21] The ambiguity of the term "New Purchase" becomes apparent once it is recognized that territorial acquisitions of both Stanwix treaties adopted that appellation.
- [22] Dunaway, *The Scotch-Irish of Colonial Pennsylvania*, pp. 28-49.
- [23] Northumberland County Courthouse, Sunbury, Pa., Penns & C. 1782-1811 Tax Assessments, Cabinet #1. This book, found in the cellar of the courthouse, also contains the Pine Creek assessment for 1789.
- [24] *Pennsylvania Archives*, Third Series, XIX, 618-622.
- [25] *Pennsylvania Archives*, First Series, XII, 286-287. The squatters, apparently warned in advance, had practically all vacated the premises. However, neighbors across the river willingly gave their names.
- [26] *Pennsylvania Archives*, Third Series, XIX, 437, 468, 557, 711, 790.
- [27] *Pennsylvania Archives*, Second Series, III (1875), 217, 518-522. The original petitions of 1781 and 1784 are located in the State Archives, Harrisburg.
- [28] Penn's colony was well advertised, and the emphasis upon liberty of conscience, when contrasted with the restrictions of the Test Act, gives ample support for the significance of liberty as a motivating factor. However, economic causes predominated.
- [29] Ray Allen Billington, *Westward Expansion* (New York, 1960), p. 380. Billington refers here to the distribution-pre-emption measure of 1841, whereas Congress actually recognized squatters' rights in the act of 1830.
- [30] Williams, "The Scotch-Irish in Pennsylvania," p. 382.
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CHAPTER THREE

The Politics of Fair Play

The political system of these predominantly Scotch-Irish squatters in the Susquehanna Valley, along the West Branch, offers a vivid demonstration of the impact of the frontier on the development of democratic institutions. Occupying lands beyond the reach of the Provincial legislature, with some forty families of mixed national origin in residence by 1773, these frontier "outlaws" had to devise some solution to the question of authority in their territory.^[1] Their solution was the extra-legal creation of *de facto* rule historically known as the Fair Play system. The following is a contemporary description of that system:

There existed a great number of locations of the third of April, 1769, for the choicest lands on the West Branch of Susquehanna, between the mouths of *Lycoming* and *Pine creeks*; but the proprietaries, from extreme caution, the result of that experience, which had also produced the very penal laws of 1768, and 1769, and the proclamation already stated, had prohibited any surveys being made beyond the *Lycoming*. In the mean time, in violation of all law, a set of hardy adventurers, had from time to time, seated themselves on this doubtful territory. They made improvements, and formed a very considerable population. It is true, so far as regarded the rights to real property, they were not under the protection of the laws of the country; and were we to adopt the visionary theories of some philosophers, who have drawn their arguments from a supposed state of nature, we might be led to believe that the state of these people would have been a state of continual warfare; and that in contests for property the weakest must give way to the strongest. To prevent the consequences, real or supposed, of this state of things, they formed a mutual compact among themselves. They annually elected a tribunal, in rotation,

of three of their settlers, whom they called *fair play men*, who were to decide all controversies, and settle disputed boundaries. From their decision there was no appeal. There could be no resistance. The decree was enforced by the whole body, who started up in mass, at the mandate of the court, and execution and eviction was as sudden, and irresistible as the judgment. Every new comer was obliged to apply to this powerful tribunal, and upon his solemn engagement to submit in all respects, *to the law of the land*, he was permitted to take possession of some vacant spot. Their decrees were, however, just; and when their settlements were recognized by law, and *fair play* had ceased, their decisions were received in evidence, and confirmed by judgments of courts.^[2]

The idea of authority from the people was nothing new; in fact, it is as old as the Greeks. Nor is the concept of a "social compact," here implied, particularly novel to the American scene. The theory was that people hitherto unconnected assembled and gave their consent to be governed by a certain ruler or rulers under some particular form of government.^[3] Theoretically justified by John Locke in his persuasive defense of the Glorious Revolution, it had been practiced in Plymouth, Rhode Island, Connecticut, and New Hampshire, where practical necessity had required it for settlements occasionally made outside charter limits. The frontier, whether in New England or in the West Branch Valley, created a practical necessity which made popular consent the basis of an actual government.

They were not "covenanters" in the Congregational sense of having brought an established church with them to the Fair Play territory. But the Fair Play settlers understood and subscribed to the principle of popular control, which was fundamental to such solemnly made and properly ratified agreements. Separated from the authority of the crown, detached from the authority of the hierarchy of the church by the Protestant Reformation, possessing no American tradition of extensive political experience, these settlers could only depend upon themselves as proper authorities for their own political system.

Furthermore, the great majority of the settlers who came to the Fair Play territory came from families who had left their homes in the old country to

escape political, economic, and social restrictions, only to be made unwelcome in their new homes in the settled areas of Pennsylvania. Displaced persons in a new country, they were forced by lives of conflict to seek better opportunity by moving to undeveloped lands. As a result, they settled along the West Branch of the Susquehanna, beyond the authority of the crown and outside the pressures of the Provincial legislature.

If man is a predatory beast in his natural state, a belief some expressed in the eighteenth century, then it follows naturally that every society must have some agency of authority and control. The universally standardized solution to the problem of social control is government. The Fair Play system was the answer on this Susquehanna frontier to the need for some legitimate agency of force.^[4] This system vested authority in the people through annual elections of a tribunal of three of their number. The members of the tribunal were given quasi-executive, legislative, and judicial powers over all the settlers in the West Branch Valley "beyond the purchase line."^[5]

Although no record of any of these elections has been preserved, the composition of the Fair Play tribunal in 1776 has been established and verified by subsequent reviews of land claims in the county courts.^[6] Also, two of the members of the tribunal of 1775 are identified in a pre-emption claim made before the Lycoming County Court in 1797.^[7] It is interesting to note that among these five men are represented the three most prominent national stock groups in the area, with the Scotch-Irish, as our earlier sample demonstrated, in the majority.

Lacking returns of the annual elections of the tribunal and minutes of its actual meetings, we have only Smith's *Laws of the Commonwealth of Pennsylvania*, petitions from the Fair Play settlers, and the subsequent review of land questions by the Northumberland and Lycoming County courts to evaluate the tribunal, its members, and its procedures. However, these data are more than adequate in giving us a picture of this *de facto*, though illegal, rule, which existed in the West Branch Valley until the Treaty of Fort Stanwix in 1784 brought the territory under Commonwealth jurisdiction. The composition of the electorate varied with the fluctuations in population caused by the two Stanwix treaties, the Revolution, and the Great Runaway.

Since property and religious qualifications were the primary prerequisites to voting at this time, it seems logical to assume that a similar basis for suffrage operated in the West Branch Valley.^[8] Having no regular church—the first, a Presbyterian, was not organized until 1792—property qualifications appear to have been the basis for what, in this area, was practically universal manhood suffrage. Due to the fact that the entire settlement consisted of squatters, practically all of the heads of households were property holders, regardless of the questionable legality of their holdings. The tax lists indicate holdings of some 100 to 300 acres on the average for residents, so it is particularly difficult to know whether or not a minimum holding requirement prevailed. The Provincial suffrage requirement in this period was generally fifty acres of land or £50 of personal property.^[9]

Although this study encompasses a fifteen-year period from 1769 to 1784, it appears that the Fair Play system functioned for about five years, from 1773 to 1778. This is due to the fact that only "fourty Improvements,"^[10] meaning forty family settlements, existed in the area by 1773, and that following the Great Runaway of 1778, the territory was almost devoid of settlers. The void was filled, however, when settlers began returning toward the end of the Revolution and following the accession of the territory in the second Stanwix Treaty, in 1784. Thus, for all practical purposes, the functioning of the Fair Play system was confined to this more limited time. Furthermore, the system was supplemented in 1776 by the introduction of the Committee of Safety, and later that year by the Council of Safety.^[11]

As is indicated in Smith's *Laws*, annual meetings were held to select the governing tribunal of three for the ensuing year. Generally convened at some readily accessible place, these sessions were presumably held in the open or at one of the frontier forts erected in the area: Fort Antes, across the river from Jersey Shore; or Fort Horn, located on the south side of the Susquehanna about eight miles west of Jersey Shore. There were frontier forts in the vicinity of the present Muncy—Fort Muncy—and Lock Haven—Fort Reed; but Fort Muncy was some twenty-odd miles east of the Fair Play territory and Fort Reed was beyond the Great Island at its western extremity. As a result, these outposts were unlikely meeting places for the tribunal or for its election.^[12] Unfortunately, there is no recorded evidence of a specific meeting of the Fair Play men.

The authority of the Fair Play tribunal extended across the entire territory from Lycoming Creek to the Great Island on the north side of the West Branch of the Susquehanna. However, most of the disputed cases, which can be verified by subsequent court reviews in either Northumberland or Lycoming counties, seem to have involved land claims in the area between Lycoming and Pine creeks. The tribunal accepted or rejected claims for settlement in the area and decided boundary questions and other controversies among settlers.^[13] As to a specific code of laws, there is none of record. However, the cases subsequently reviewed in the established county courts refer to some of their regular practices. For example, any man who left his improvement for six weeks without leaving someone to continue it, lost his right to the improvement;^[14] any man who went into the army could count on the Fair Play men (the tribunal) to protect his property;^[15] any man who sought land in the territory was obliged to obtain not only the approval of the Fair Play men but also of his nearest potential neighbors;^[16] and the summary process of ejectment which the Fair Play men exercised was real and certain and sometimes supported by the militia.^[17]

The specific membership of the Fair Play tribunal is rather difficult to ascertain due to its failure to keep minutes of its proceedings and the absence of any recorded code. However, as indicated earlier,^[18] the existence of the tribunal between the years 1773 and 1778, and its actual composition in 1775 and 1776, have already been established from the review of its decisions by the Circuit Court of Lycoming County. Assuming the principle of rotation from a contemporary description, some eighteen settlers held the positions of authority during the years noted.^[19] The cases reviewed reveal the names of five of these eighteen. Recognizing the limitations of our twenty-eight per cent sampling, however, it is interesting to note that the three major national stocks are represented in this restricted sample. Furthermore, as was mentioned previously,^[20] the Scotch-Irish settlers, being in the majority, enjoyed the majority representation on the tribunal. An analysis of leadership in the territory, to be developed more fully later, leads one to conclude that the Scotch-Irish, in the main, were the political leaders of the area.^[21]

A diligent search of some sixty cases in the Court of Common Pleas in both Northumberland and Lycoming counties yielded some documentary

evidence regarding the procedures of the Fair Play tribunal.^[22] Three cases in Lycoming County and one from Northumberland County contain depositions which describe the activities of the Fair Play men in some detail. One case, *Hughes vs. Dougherty*, was appealed to the Supreme Court of the Commonwealth. All of the cases deal with the question of title to lands in the Fair Play territory following the purchase of these lands at the Treaty of Fort Stanwix in 1784. The depositions taken in conjunction with these cases indicate the processes of settlement and ejectment, in addition to the policies regarding land tenure. The fairness of the Fair Play decisions is noted by the fact that the regular courts concurred with the earlier judgments of the tribunal.^[23]

An anecdote involving one of the Fair Play men, Peter Rodey, illustrates the nature of this frontier justice. According to legend, Chief Justice McKean of the State Supreme Court was holding court in this district, and, curious about the principles or code of the Fair Play men, he inquired about them of Peter Rodey, a former member of the tribunal. Rodey, unable to recall the details of the code, simply replied: "All I can say is, that since your Honor's courts have come among us, *fair play* has entirely ceased, and law has taken its place."^[24]

The justice of "fair play" and the nature of the system can be seen from an analysis of the cases reviewed subsequently in the established courts. As mentioned previously, these cases describe the procedures regarding settlement, land tenure, and ejectment. Although no recorded code of laws has been located, references to "resolutions of the Fair Play men" regularly appear in the depositions and summaries of these cases.^[25] According to Leyburn, a customary "law" concerning settlement rights operated on the frontier, particularly among the Scotch-Irish.^[26] This "law" recognized three settlement rights: "corn right," which established claims to 100 acres for each acre of grain planted; "tomahawk right," which marked off the area claimed by deadening trees at the boundaries of the claim; and, "cabin right," which confirmed the claim by the construction of a cabin upon the premises. If the decisions of the regular courts are at all indicative, Fair Play settlement was generally based upon "cabin right." However, the frequent allusion to "improvements" implies some secondary consideration to what Leyburn has defined as "corn right."

In the case of *Hughes vs. Dougherty*, the significance of "improvements," or "corn rights," vis-à-vis "cabin rights" is particularly noted.^[27] The following summary of that case, found in *Pennsylvania Reports*, emphasizes that significance, in addition to defining a Fair Play "code" pertaining to land tenure:

THIS was an ejectment for 324 acres of land, part of the Indian lands in *Northumberland* county.

The plaintiff claimed under a warrant issued on the 2d *May* 1785, for the premises, and a survey made thereon upon the 10th *January* 1786. The defendant, on the 20th *June* 1785, entered a caveat against the claims of the plaintiff, and on the 5th *October* following, took out a warrant for the land in dispute, on which he was then settled. Both claimed the pre-emption under the act of 21st *December* 1784,^[28] and on the evidence given the facts appeared to be:

That in 1773, one *James Hughes*, a brother of the plaintiff, settled on the lands in question and made some small improvements. In the next year he enlarged his improvement, and cut logs to build an house. In the winter following he went to his father's in *Donegal* in *Lancaster* county, and died there. His elder brother *Thomas* was at that time settled on the Indian land, and one of the "Fair Play Men," who had assembled together and made a resolution, (which they agreed to enforce as the law of the place,) that "if any person was absent from his "settlement for six weeks he should forfeit his right." [Quotation marks as published.]

In the spring of 1775 the defendant came to the settlement, and was advised by the Fair Play Men to settle on the premises which *Hughes* had left; this he did, and built a cabin. The plaintiff soon after came, claiming it in right of his brother, and aided by *Thomas Hughes*, took possession of the cabin; but the defendant collecting his friends, an affray ensued, in which *Hughes* was beaten off and the defendant left in possession. He continued to improve, built an house and stable, and cleared about ten acres. In 1778 he was driven off by the enemy and entered into the army. At the close of the war, both plaintiff and defendant returned to the settlement, each claiming the land in dispute.

The warrant was taken out in the name of *James Hughes*, (the father of the plaintiff who is since dead,) for the benefit of his children.

After argument by Mr. *Charles Smith* and Mr. *Duncan* for the plaintiff, and Mr. *Daniel Smith* and Mr. *Read* for the defendant, Justice *Shippen* in the charge of the court to the jury, said—

The dispute here, is between a first improvement, and a subsequent but much more valuable improvement. But neither of the parties has any legal or equitable right, but under the act of the 21st *December* 1784. The settlement on this land was against law. It was an offence that tended to involve this country in blood. But the merit and sufferings of the actual settlers cancelled the offence, and the legislature, mindful of their situation, provided this special act for their relief. The preamble recites their "resolute stand and sufferings," as deserving a right of pre-emption. The legislature had no eye to any person who was not one of the occupiers after the commencement of the war, and a transient settler removed, (no matter how,) is not an object of the law. This is our construction of the act. *James Hughes* under whom the plaintiff claims, died before the war, the other occupied the premises after, and in the language of the act, "stood and suffered." If this construction be right, the cause is at an end.

Besides, the plaintiff claims as the heir of *Thomas*, who was the heir of *James*, the first settler. I will not say that the fair play men could make a law to bind the settlers; but they might by agreement bind themselves. Now *Thomas* was one of these, and was bound by his conduct, from disputing the right of the defendant.

This warrant it seems, is taken out in the name of the father, and it is said, as a trustee for his children. It is sometimes done for the benefit of all concerned. If this be the case, it may be well enough; but still it is not so regular, as it might have been[.] With these observations, we submit it to you.

Verdict for the defendant.^[29]

This case, although originated in the Northumberland County Court in 1786, was appealed to the State Supreme Court, where the lower court decision was affirmed in 1791. The summary runs the gamut of Fair Play procedures from settlement, through questions of tenure, to ejectment. Its completeness indicates its usefulness. Partial and occasional depositions in the other cases cited help to round out the picture of the Fair Play "code."

For example, the right of settlement included not only the approval of the Fair Play men, but also the acceptance of the prospective landholder by his neighbors. Allusions to this effect are made in the Coldren deposition as well as in the Huff-Latcha case. Eleanor Coldren's deposition, made at Sunbury, June 7, 1797, concerns the disputed title to certain lands of her deceased husband, Abraham Dewitt, opposite the Great Island. Her comments about neighbor approval demonstrate the point. She says, for instance, that

... in the Spring of 1775, Henry Antes and Cookson Long, two of the Fair-Play Men, with others, were at the deponent's house, next below Barnabas Bonner's Improvement, where Deponent's Husband kept a Tavern, and heard Antes and Long say that they (meaning the Fair-Play Men) and the Neighbors of the Settlement had unanimously agreed that James Irvin, James Parr, Abraham Dewitt and Barnabas Bonner should ... have their Improvement Rights fitted....

She speaks of the resolution of the claims problem "as being the unanimous agreement of the Neighbors and Fair-Play Men...."^[30]

William King, who temporarily claimed part of the land involved in the dispute between Edmund Huff and Jacob Latcha, also refers to neighbor approval in his deposition taken in that case. He said, "I first went to Edmund Huff, then to Thomas Kemplen, Samuel Dougherty, William McMeans, and Thomas Ferguson, and asked if they would accept me as a neighbor...."^[31]

Land tenure policy is noted by this same William King in the case of *James Grier vs. William Tharpe*. Repeating what we have already pointed out in

the case of *Hughes vs. Dougherty*, King testified that "there was a law among the Fair-play men by which any man, who absented himself for the space of six weeks, lost his right to his improvement."^[32] In the Huff-Latcha case, King recounts the case of one Joseph Haines who "had once a right ... but had forfeited his right by the Fair-play law...."^[33]

The forfeiture rule was tempered, however, in cases involving military service. Bratton Caldwell's deposition in *Grier vs. Tharpe* is a case in point. Caldwell, one of the Fair Play men in 1776, declared that "Greer went into the army in 1776 and was a wagon-master till the fall of 1778.... In July, 1778, the Runaway, John Martin, had come on the land in his absence. The Fair-play men put Greer in possession. If a man went into the army, the Fair-play men protected his property."^[34] Meginness mentions a similar decision in the case of John Toner and Morgan Sweeney.^[35] Sweeney had attempted to turn a lease for improvements in Toner's behalf to possession for himself, but the Northumberland County Court honored the Fair Play rule concerning military service and decided in favor of Toner.

The summary process of ejectment utilized by the Fair Play men, occasionally with militia support, is evident from William King's deposition in the Huff-Latcha case. King, having sold his right to one William Paul, recounts the method as follows:

William Paul went on the land and finished his cabin. Soon after a party b[r]ought Robert Arthur and built a cabin near Paul's in which Arthur lived. Paul applied to the Fair-play men who decided in favor of Paul. Arthur would not go off. Paul made a complaint to the company at a muster at Quinashahague^[36] that Arthur still lived on the land and would not go off, although the Fair-play men had decided against him. I was one of the officers at that time and we agreed to come and run him off. The most of the company came down as far as Edmund Huff's who kept Stills. We got a keg of whisk[e]y and proceeded to Arthur's cabin. He was at home with his rifle in his hand and his wife had a bayonet on a stick, and they threatened death to the first person who would enter the house. The door was shut and Thomas Kemplen, our captain, made a run at the door, burst it open and instantly seized Arthur by the neck. We pulled down

the cabin, threw it into the river, lashed two canoes together and put Arthur and his family and his goods into them and sent them down the river. William Paul then lived undisturbed upon the land until the Indians drove us all away.^[37] William Paul was then (1778) from home on a militia tour.^[38]

Although land disputes offer documentary evidence of the Fair Play system, it seems quite likely that the tribunal's jurisdiction extended to other matters. A few anecdotes, obviously based quite tenuously upon hearsay, will suffice to illustrate. Joseph Antes, son of Colonel Henry Antes, used to tell this story: It seems that one Francis Clark, who lived just west of Jersey Shore in the Fair Play territory, gained possession of a dog which belonged to an Indian. Upon learning of this, the Indian appealed to the Fair Play men, who ordered Clark's arrest and trial for the alleged theft. Clark was convicted and sentenced to be lashed. The punishment was to be inflicted by a person decided by lot, the responsibility falling upon the man drawing the red grain of corn from a bag containing grains of corn for each man present. Philip Antes was the reluctant "winner." The Indian, seeing that the decision of the "court" was to be carried out immediately, magnanimously suggested that banishment would serve better than flogging. Clark agreed and left for the Nippenose Valley, where his settlement is a matter of record.^[39]

Another anecdote, if true, gives further testimony to the justice of Fair Play. In this instance, a minister and school teacher named Kincaid faced the Fair Play tribunal on the charge of abusing his family. Tried and convicted, he was sentenced to be ridden on a rail for his offense.^[40] Here again, the tale, though legendary, is made plausible by the established fact of Kincaid's residence in the area.^[41]

Doubtless the most notable political action of the Fair Play settlers is their declaration of independence, which Meginness calls "a remarkable coincidence" because "it took place about the same time that the Declaration was signed in Philadelphia!"^[42] Aware, as were many of the American colonists in the spring and summer of 1776, that independence was being debated in Philadelphia, these West Branch pioneers decided to absolve themselves from all allegiance to the Crown and declare their own independence. Meeting under a large elm on the west bank of Pine Creek,

mistakenly known as the "Tiadaghton Elm," the Fair Play men and settlers simply resolved their own right of self-determination, a principle upon which they had been acting for some time. Unfortunately, no record of the resolution has been preserved—if it was actually written. However, the names of the supposed signers, all bona fide Fair Play settlers, have been passed down to the present.^[43]

As every careful historian knows, no declaration was signed in Philadelphia on July 4, 1776, except by the clerk and presiding officer of the Continental Congress. Consequently, the Pine Creek story arouses justifiable skepticism. However, there does seem to be some evidence to substantiate this famous act.

First of all, Fithian's *Journal* gives insight into the possible motivation for such independent action. In an entry for Thursday, July 27, 1775, he writes of reviewing "the 'Squires Library," noting that "After some Perusal I fix'd in the Farmer's memorable Letters."^[44] Fithian was reading John Dickinson's *Letters from a Farmer in Pennsylvania*, which he had come across in the library of John Fleming, his host for a week in the West Branch Valley. Dickinson's dozen uncompromising epistles in opposition to the Grenville and Townshend programs both inspired and incited liberty-lovers. Furthermore, Fleming himself was a leader among the Fair Play settlers, and may have been aroused to action by the eloquence of Dickinson's expression. Every idea is an incitement to action and the ideas of *Letters from a Farmer*, which made Dickinson the chief American propagandist prior to Thomas Paine, reached into the frontier of the West Branch Valley.

The best contemporary evidence in support of the Pine Creek declaration is found in the widow's pension application of Anna Jackson Hamilton, daughter-in-law of Alexander Hamilton, who was one of the early settlers and a prominent leader along the West Branch of the Susquehanna. Mrs. Hamilton, whose pension application and accompanying statement were made in 1858, lived within one mile of the reputedly historic elm. In her sworn statement she says, "I remember well the day independence was declared on the plains of Pine Creek, seeing such numbers flocking there, and Independence being all the talk, I had a knolege of what was doing."^[45] Her son John corroborates this in his statement that "She and an old colored

woman are the only persons now living in the country who remembers the meeting of the 4th of July, 1776, at Pine Creek. She remembers it well."^[46] Mrs. Hamilton was ninety years old at the time of her declaration, which was made some eighty-two years after the celebrated event.^[47]

Following the outbreak of the Revolution and the meeting of the Second Continental Congress, the Fair Play system of the West Branch Valley was soon augmented by another extra-legal organization, the Committee of Safety. Ostensibly created for the purpose of raising and equipping a "suitable force to form Pennsylvania's quota of the Continental Army," it soon exercised executive authority dually with the assembly.^[48] The Council of Safety was instituted as the successor to the Committee of Safety by a resolution of the Provincial Convention of 1776, then meeting in Philadelphia to draw up a new constitution for Pennsylvania. It was continued by an act of the assembly that same year. It functioned from July 24, 1776, until it was dissolved on December 6, 1777, by a proclamation of the Supreme Executive Council.^[49] Locally, however, the township branches continued to function and were still referred to as "committees."

It appears from the resolutions and actions of the local committee that the Fair Play men maintained jurisdiction in land questions, but that all other cases were within the range of the committee's authority. In fact, a resolution dated February 27, 1776, asserted that "the committee of Bald Eagle is the most competent judges of the circumstances of the people of that township."^[50] This resolution was made in conjunction with an order from the county committee to prevent the loss of rye and other grains which were being "carried out of the township for stilling."^[51] Although cautioned against "using too much rigor in their measures," the committee was advised to find "a medium between seizing of property and supplying the wants of the poor."^[52] The county committee even went so far as to recommend the suppression of such practices as "profaning the Sabbath in an unchristian and scandalous manner."^[53] In April of 1777, the county committee required an oath of allegiance from one William Reed, who had refused military service for reasons of conscience.^[54]

Although Bald Eagle Township did not, at this time, extend into Fair Play territory,^[55] it is interesting to note that the local committee, whose three members frequently changed, often included settlers from that territory or

those who were in close association with the Fair Play men.^[56] The Revolution apparently gave a certain quasi-legality to the claims of the "outlaws" of the West Branch Valley.

One further political note is worthy of mention. After Lexington and Concord and the formation of the various committees of safety, the civil officers of Bald Eagle Township, that is to say the constable, supervisor, and overseers, were often chosen from among settlers on the borders of, or actually in, Fair Play territory.^[57]

The politics of fair play then was nothing more than that—fair play. It was a pragmatic system which the necessities of the frontier experience, more than national or ethnic origin, had developed. The "codes" of operation represented a consensus, equally, freely, and fairly arrived at—a common "law" based upon general agreement and practical acceptance. There were subsequent appeals to regular courts of law, but, surprisingly enough, in every instance the fairness of the judgments was sustained. No Fair Play decision was reversed. Furthermore, the frequency of elections and the use of the principle of rotation in office were additional assurances against the usurpation of power by any small clique or ruling class. Popular sovereignty, political equality, and popular consultation—these were the basic elements of fair play.

FOOTNOTES:

[1] *Colonial Records*, X, 95. The Fair Play settlers were outlawed by a proclamation of the Council signed by Governor John Penn on Sept. 20, 1773. The proclamation was issued "strictly enjoyning and requiring all and every Person and Persons, already settled or Residing on any Lands beyond the Boundary Line of the Last Indian Purchase, immediately to evacuate their illegal Settlements, and to depart and remove themselves from the said Lands without Delay, on pain of being prosecuted with the utmost rigour of the Law." The "Last Indian Purchase" referred to here is, of course, the Stanwix Treaty of 1768.

[2] Smith, *Laws*, II, 195.

[3] Richard W. Leopold and Arthur S. Link (eds.), *Problems in American History* (Englewood Cliffs, N. J., 1957), p. 22. The entire first problem in this excellent text deals with the question of authority in American government.

[4] This Fair Play system was certainly not unique, for other frontier societies employed the same technique, even down to the ruling tribunal of three members. See Solon and Elizabeth Buck, *The Planting of Civilization in Western Pennsylvania* (Pittsburgh, 1939), pp. 431, 451. However, it must be pointed out that the Bucks' "Fair Play" reference is based on Smith, *Laws*, II, 195, which Samuel P. Bates used in "a general application of the practice to W. Pa. areas after 1768," in his *History of Greene County, Pennsylvania* (Chicago, 1888). This was the interpretation given in a letter from Dr. Alfred P. James to the author, July 17, 1963. Dr. James also says that "It is possible that there are evidences of Fair Play Men titles in the court records of Washington and Greene Counties."

[5] This designation was often employed to classify those settlers who took up lands beyond the limits of the Treaty of Fort Stanwix in 1768, that is to say, west of Lycoming Creek on the north side of the West Branch of the Susquehanna.

[6] Russell, "Signers of the Pine Creek Declaration of Independence," p. 5. Mrs. Russell, whose historical accuracy can be verified through her indicated sources, refers to old borough minutes of Jersey Shore as her source for the names of the tribunal of 1776, namely, Bartram Caldwell, John Walker, and James Brandon. Upon discussing the matter with her, I learned that a clipping from an old Jersey Shore paper, now lost, which described the minutes, was her actual source. However, adequate documentation and meticulous research characterize her work. Furthermore, Bratton Caldwell (he signed his name Bartram) is also labeled a Fair Play official by Linn, "Indian Land and Its Fair Play Settlers, 1773-1785," p. 422. Linn's identification comes in the case of *Greer vs. Tharpe*, Greer's case being a pre-emption claim on the basis of military service.

[7] "Eleanor Coldren's Deposition," *Now and Then*, XII (1959), 220-222. The deposition reads "That in the Spring of 1775, Henry Antes and Cookson Long, two of the Fair-Play Men, with others, were at the deponent's house...."

[8] Oscar T. Barck, Jr. and Hugh T. Lefler, *Colonial America* (New York, 1958), pp. 258-260. Although Barck and Lefler indicate in this section on "The Colonial Franchise" that universal suffrage did not prevail in the colonies, they do note the significance of "free land," of which Fair Play territory was an excellent example.

[9] *Ibid*, p. 260.

[10] William Cooke to James Tilghman, *Pennsylvania Archives*, First Series, XII, 286-287.

[11] *Pennsylvania Archives*, Fourth Series, III, 545-546.

[12] *Report of the Commission to Locate the Site of the Frontier Forts of Pennsylvania* (Harrisburg, 1896), I, 390, 392, 394-418.

[13] Smith, *Laws*, II, 195.

[14] Linn, "Indian Land and Its Fair-Play Settlers," p. 424. This six weeks provision is noted in the deposition of John Sutton in the case of *William Greer vs. William Tharpe*, dated March 13, 1797.

[15] *Ibid.*, 422. Bratton Caldwell, one of the Fair Play men, indicates this practice in his deposition in the *Greer vs. Tharpe* case.

[16] "Eleanor Coldren's Deposition," pp. 220-222.

[17] Linn, "Indian Land and Its Fair-Play Settlers," pp. 422-424. William King, in his deposition taken March 15, 1801, in *Huff vs. Satcha* [sic], in the Circuit Court of Lycoming County, notes the use of a company of militia, of which he was an officer, to eject a settler. Linn errs in his reference to the defendant as "Satcha." The man's name was Latcha, according to the Appearance Docket Commencing 1797, No. 2, Lycoming County.

[18] See nn. 6 and 7, p. 33.

[19] Smith, *Laws*, II, 195. See also, pp. 31 and 32, this chapter, in which the excerpt from this source is quoted verbatim.

[20] *Supra*, p. 33.

[21] *Infra*, Chapter Six. The question of leadership in conjunction with the problems of this frontier is discussed in Chapter Six.

[22] The Appearance Dockets and Files were checked for Northumberland County from 1784 to 1795 and for Lycoming County from 1795 to 1801. These records, obtained in the offices of the respective prothonotaries, produced thirty-seven cases in Northumberland and twenty-two in Lycoming County dealing with former Fair Play settlers. Unfortunately, only four were reviews of actual Fair Play decisions.

[23] Northumberland County originated in 1772 and Lycoming County in 1795. Clinton County was not created until 1839.

[24] Meginness, *Otzinachson* (Philadelphia, 1857), p. 172.

[25] The cases referred to here are: *Hughes vs. Dougherty*, *Huff vs. Satcha*, and *Grier vs. Tharpe*. They were located in the Appearance Dockets of Lycoming and Northumberland counties in the respective prothonotaries' offices. *Hughes vs. Dougherty* appears in the Northumberland County Docket for November, 1783, to August, 1786, in the February term of the Court of Common Pleas, file 42. Both the Huff and Grier cases were found in the Lycoming County Docket No. 2, commencing 1797, court terms and file numbers indicated as follows: *Huff vs. Satcha*, February, 1799, #2, and *Grier vs. Tharpe*, May, 1800, #41. A partial deposition by Eleanor Coldren, *Now and Then*, XII (1959), 220-222, was also employed. Although the case appears to be *Dewitt vs. Dunn*, I could not locate it in the Appearance Dockets. Depositions taken in the Huff and Grier cases were published in Linn, "Indian Land and Its Fair-Play Settlers," pp. 422-424.

[26] Leyburn, *The Scotch-Irish*, p. 205.

[27] Jasper Yeates, *Pennsylvania Reports*, I (Philadelphia, 1817), 497-498.

[28] Smith, *Laws*, II, 195.

[29] Yeates, *Pennsylvania Reports*, I, 497-498.

- [30] "Eleanor Coldren's Deposition," pp. 220-222.
- [31] Linn, "Indian Land and Its Fair-Play Settlers," p. 422.
- [32] *Ibid.*
- [33] *Ibid.*
- [34] *Ibid.*
- [35] Meginness, *Otzinachson* (1889), p. 469.
- [36] Now Linden, in Woodward Township, a few miles west of Williamsport.
- [37] King refers here to the Great Runaway of 1778.
- [38] Linn, "Indian Land and Its Fair-Play Settlers," p. 423-424.
- [39] Meginness, *Otzinachson* (1889), p. 470.
- [40] *Ibid.*, p. 471.
- [41] D. S. Maynard, *Historical View of Clinton County* (Lock Haven, 1875), pp. 207-208. Maynard has reprinted here some excerpts from John Hamilton's "Early Times on the West Branch," which was published in the *Lock Haven Republican* in 1875. Unfortunately, recurrent floods destroyed most of the newspaper files, and copies of this series are not now available. John Hamilton was a third-generation descendant of Alexander Hamilton, one of the original Fair Play settlers.
- [42] Meginness, *Otzinachson* (1857), p. 193.
- [43] *Ibid.* An alleged copy of the declaration published in *A Picture of Clinton County* (Lock Haven, 1942), p. 38, is clearly spurious. The language of this Pennsylvania Writers' project of the W.P.A. is obviously twentieth-century, and it contains references to events which had not yet occurred.
- [44] *Fithian: Journal*, p. 72.
- [45] Muncy Historical Society, Muncy, Pa., Wagner Collection, Anna Jackson Hamilton to Hon. George C. Whiting, Commissioner of Pensions, Dec. 16, 1858.
- [46] *Ibid.*, John Hamilton to Hon. George C. Whiting, Commissioner of Pensions, May 27, 1859.
- [47] The veracity of the witness is an important question here. Meginness, in his 1857 edition, devotes a footnote, p. 168, to this remarkable woman who was in full possession of her faculties at the time. The Rev. John Grier, son-in-law of Mrs. Hamilton and brother of Supreme Court Justice Robert C. Grier, wrote to President Buchanan on Nov. 12, 1858, (Wagner Collection), stating that "Mrs. Hamilton is one of the most intelligent in our community." Buchanan then wrote an affidavit in support of Grier's statements to the Commissioner of Pensions, Nov. 27, 1858, (Wagner Collection). Aside from the declarations of Mrs. Hamilton and her son, the only other support, and this is hearsay, is found in the account of an alleged conversation between W. H. Sanderson and Robert Couvenhoven, the famed scout. W. H. Sanderson, *Historical Reminiscences*, ed.

Henry W. Shoemaker (Altoona, 1920), pp. 6-8. Here again, the fact that the reminiscences were not recorded until some seventy years after the "chats" raises serious doubts.

[48] *Pennsylvania Archives*, Fourth Series, III, 545.

[49] *Ibid.*, p. 546.

[50] Linn, *History of Centre and Clinton Counties*, p. 473.

[51] *Ibid.*

[52] *Ibid.*

[53] *Ibid.*

[54] *Ibid.* See also John H. Carter, "The Committee of Safety of Northumberland County," *The Northumberland County Historical Society Proceedings and Addresses*, XVIII (1950), 44-45.

[55] See [map](#) of the Fair Play territory in Chapter One.

[56] Linn, *History of Centre and Clinton Counties*, p. 469. See also, Carter, "The Committee of Safety," pp. 33-45, for a full account of the activities of the Committee. Carter notes that the county committee consisted of thirty-three members, three from each of the eleven townships chosen for a period of six months.

[57] *Ibid.*, pp. 472-474.

CHAPTER FOUR

The Farmers' Frontier

The economy of the West Branch Valley was basically agrarian—a farmers' frontier. The "new order of Americanism"^[1] which arose on this frontier was in part due to the cultural background of its inhabitants, the knowledge and traditional values which they had brought with them. It was further influenced by the frontier status of the region itself—an area of virgin land in the earliest stages of development. And finally, it was affected by the physical characteristics of the territory, particularly the mountains which separated these settlers from the more established settlements. It has been said that "many of the enduring characteristics of the American creed and the American national character originated in the way of life of the colonial farmer."^[2] The Fair Play territory was typical of this development.

The early pioneer, particularly if he was Scotch-Irish, generally came into the area from the Cumberland Valley, the "seed-plot and nursery" of the Scotch-Irish in America, the "original reservoir" of this leading frontier stock, via the Great Shamokin Path.^[3] Since there were no roads, only Indian trails, the frontier traveler customarily followed the Indian paths which had been cleared along the rivers and streams. The Great Shamokin Path followed the Susquehanna from Shamokin (now Sunbury) to the West Branch, then out along the West Branch to the Allegheny Mountains.^[4] Loading his wife and smaller children on a pack horse, his scanty possessions on another horse, the prospective settler drove a cow or two into the wild frontier at the rate of about twenty miles a day.^[5] This meant that a trip of approximately two days brought him from Fort Augusta to the Fair Play country.

Indian paths were the primary means of ingress and egress, although supplemented by the waterways which they paralleled. In addition to the Great Shamokin Path, there were paths up Lycoming Creek (the Sheshequin Path), and up Pine Creek, besides the path which followed Bald Eagle Creek down into the Juniata Valley. These trails and adjoining water routes

were usually traveled on horseback or in canoes, depending upon the route to be followed. However, the rivers and streams were more often passages of departure than courses of entry.

Established roads, that is authorized public constructions, were not to reach the West Branch region until 1775, although the Northumberland County Court ordered such construction and reported on it at the October term in 1772.^[6] Appointments were made at the August session of 1775 "to view, and if they saw cause, to lay out a bridle road from the mouth of Bald Eagle Creek to the town of Sunbury."^[7] It was not until ten years later that extensions of this road were authorized, carrying it into the Nittany Valley and to Bald Eagle's Nest (near Milesburg, on the Indian path from the Great Island to Ohio).^[8]

Travel was usually on horseback or on foot. Canoes and flatboats, or simply rafts, were used on the rivers and creeks where available. Wagons, however, appeared after the construction of public roads and were seen in the Great Runaway of 1778.^[9]

The problem of communication between the frontier and the settled areas was a difficult one compounded by the natural geographic barriers and the fact that post and coach roads did not extend into this central Pennsylvania region. As a result the inhabitants had to depend upon occasional travelers, circuit riders, surveyors, and other Provincial authorities who visited them infrequently. Otherwise, the meetings of the Fair Play tribunal, irregular as they were, and the communications from the county Committee of Safety were about the only sources of information available. Of course, cabin-building, cornhusking, and quilting parties provided ample opportunities for the dissemination of strictly "local" news.

Newspapers were not introduced into the upper Susquehanna Valley until around the turn of the century. The *Northumberland Gazette* was published in Sunbury in 1797 or 1798.^[10] The first truly West Branch paper was not circulated until 1802, when the *Lycoming Gazette* was first published in Williamsport.^[11] On the eve of the Revolution there were only seven newspapers available in the entire Province, none of which circulated as far north as the Fair Play territory.^[12] As a matter of fact, there were only

thirty-seven papers printed in all thirteen colonies at the beginning of the Revolution.^[13]

The Fair Play settler was an "outlaw," a squatter who came into this central Pennsylvania wilderness with his family and without the benefit of a land grant, and who literally hacked and carved out a living. The natural elements, the savage natives, and the wild life all resisted him; but he conquered them all, and the conquest gave him a feeling of accomplishment which enhanced his independent spirit.

If the story of the Great Plains frontier can be told in terms of railroads, barbed-wire fences, windmills, and six-shooters,^[14] then the cruder tale of the West Branch frontier can be told in terms of the rifle, the axe, and the plow. The rifle, first and foremost as the weapon of security, was the basic means of self-preservation in a wild land where survival was a constant question.^[15] The axe, which Theodore Roosevelt later described as "a servant hardly standing second even to the rifle,"^[16] was the main implement of destruction and construction. It was used for clearing the forest of the many trees which encroached upon the acreage which the settler had staked out for himself, and for cutting the logs which would provide the rude, one-room shelter the pioneer constructed for himself and his family. The crude wooden plow was the implement which made this frontiersman a farmer, although its effectiveness was extremely limited. However, the soil was so fertile, and the weeds so sparse, that scratching the earth and scattering seeds produced a crop.^[17]

A contemporary description of squatter settlements in Muncy Hills, some twenty-odd miles east of the Fair Play territory, but in the West Branch Valley, gives a vivid picture of the nature of these early establishments:

They came from no Body enquires where, or how, but generally with Families, fix on any Spot in the Wood that pleases them. Cut down some trees & make up a Log Hut in a Day, clear away the underweed & girdle.... The Trees they have no use for if cut down after their Hut is made. They dig up & harrow the Ground, plant Potatoes, a Crop which they get out in three Months, sow Corn, etc., (& having sown in peace by the Law of the Land they are secured in reaping in peace) & continue at Work

without ever enquiring whose the Land is, until the Proprietor himself disturbs & drives them off with Difficulty.^[18]

This experience was duplicated in the Fair Play territory where there were no immediate neighbors whose permission was necessary for settlement, or until a dispute was carried to the tribunal for adjudication. This procedure was detailed in the last chapter.

Having selected a site, preferably on or near a stream, and obtained approval from the Fair Play men and his neighbors, the prospective settler was faced with the long and tedious work of clearing the land for his home and farm. This was an extended effort for he could clear only a few acres a year. In the meantime, his survival depended upon the few provisions he brought with him—some grain for meal, a little flour, and perhaps some salt pork and smoked meat. These supplies, combined with the wild game and fish which abounded in the area, served until such a time as crops could be produced. It was a rigorous life complicated by the fact that the meager supplies often ran out before the first crop was brought in. The first month's meals were too often variations on the limited fare of water porridge and hulled corn, as described by a later pioneer.^[19]

Homes in the Fair Play territory were built "to *live* in, and not for *show*...."^[20] The following description, by the grandson of one of the original settlers, illustrates the cooperative nature of the enterprise, in addition to giving a clear picture of the type of construction which replaced the early lean-to shelter with which the frontiersman was first acquainted:

Our buildings are made of hewn logs, on an average 24 feet long by 20 wide, sometimes a wall of stone, a foot or more above the level of the earth, raised as a foundation; but in general, four large stones are laid at the corners, and the building raised on *them*. The house is covered sometimes with shingles, sometimes with clapboards. [The latter required no laths, rafters, or nails, and was put on in less time.] ... The ground logs being laid saddle-shaped, on the upper edge, is cut in with an axe, at the ends, as long as the logs are thick, then the end logs are raised and a "notch" cut to fit the saddle. This is the only kind of tie or binder they have; and when the building is raised as many

rounds as it is intended, the ribs are raised, on which a course of clapboards is laid, butts resting on a "butting pole." A press pole is laid on the clapboards immediately over the ribs to keep them from shifting by the wind, and the pole is kept to its berth by stay blocks, resting in the first course against the butting-pole. The logs are run upon the building on skids by the help of wooden forks. The most experienced "axe-man" are placed on the buildings as "cornermen;" the rest of the company are on the ground to carry the logs and run them up.^[21]

In this fashion, the frontier cabin was raised and covered in a single day, without a mason, without a pound of iron, and with nothing but dirt for flooring. The doors and windows were subsequently cut out of the structure to suit the tastes of its occupants.

In this one-room cabin lived the frontier settler and his family, who might be joined by guests. Small wonder, then, that additions to this construction took on such significance that they were items of mention in later wills.^[22]

Once having cleared a reasonable portion of his property, raised his cabin, and scratched out an existence for his first few months of occupation, the pioneer was now ready to get down to the business of farming. Working around the stumps which cluttered his improvement, the frontier farmer planted his main crops, which were, of course, the food grains—wheat, rye, with oats, barley, and corn, and buckwheat and corn for the livestock. Some indication of the planting and harvesting seasons can be seen from this account:

I find Wheat is sown here in the Fall (beginning of Sept.) Clover & timothy Grass is generally sown with it. The Wheat is cut in June or beginning of July after which the Grass grows very rapidly & always affords two Crops. Where Grass has not been sown they harrow the Ground well where the Wheat is taken off & sow Buck Wheat which ripens by the beginning & through September is excellent food for Poultry & Cattle & makes good Cakes.^[23]

The amazing fertility of the soil, as noted by more than one journalist, eased the difficulties of the crude wooden implements which were the farmer's

tools. Reference is made to "one [who] plowed the same spot ... for eight years ... [taking] double Crops without giving it an Ounce of Manure."^[24] Scientific farming had not yet come to the West Branch Valley, although the Philadelphia area had been awakened to its possibilities through the publications of Franklin's American Philosophical Society.

Fertile soil was practically essential when one considers the crude implements with which the frontier farmer carried on his hazardous vocation. In addition to the crude wooden plow, which we have already mentioned, the agrarian pioneer of the West Branch possessed a long-bladed sickle, a homemade rake, a homemade hay fork, and a grain shovel.^[25] All of these items were made of wood and were of the crudest sort.^[26] As time went on, he added a few tools of his own invention, but these, and his sturdy curved-handled axe, constituted the essential instruments of the farmer's craft.

July was the month of harvest for the mainly "subsistence" farmers scattered along the West Branch. The uncertainties of the weather and the number of acres planted had some influence upon the harvesting, so that it was not unusual to see the wheat still swaying in the warm summer breezes in the last week of July. However, if possible, the grain was generally cut the first part of the month in order that buckwheat, or other fodder, might be sown and harvested in the fall.

Harvesttime was a cooperative enterprise and whole families joined in "bringing in the sheaves." The grain had to be cut and raked into piles, and the piles bundled into shocks tied together with stalks of the grain itself. This took "hands" and the frontier family was generally the only labor force available. In time, however, field work was confined to the men of the family among the Scotch-Irish, who attached social significance to the type of work done by their women.

Fithian's *Journal* reveals, however, that class-consciousness was not yet apparent in the division of labor on this frontier. On two occasions he describes daughters of leading families engaged in other than household tasks. Arriving at the home of Squire Fleming, with whom he was to stay for a week, Fithian notes on July 25, 1775, that Betsey Fleming, his host's daughter, "was milking."^[27] The very next day, upon visiting the Squire's

brother, who had "two fine Daughter's," this Presbyterian journalist found "One of them reaping."^[28] If Leyburn's comment that social status among the Scotch-Irish depended in part upon the work done by the women of the family, then these examples attest to the fact that "status" was a luxury which the Fair Play settlers could not yet afford.^[29]

Threshing was either done by hand with flails, or, if the family had a cow or two (and the tax lists indicate that they did), the grain was separated by driving the livestock around and around over the unbundled straw. Finally, the chaff was removed by throwing the grain into the air while the breeze was flowing. The grain was then collected and readied for milling.

Gristmills were available in the West Branch Valley almost from the outset of settlement due to the many fine streams which flowed through the territory. As a result, few farmers had to travel more than five miles, generally on horseback, to carry their bags of grain to the mill. If the farmer had no horse, he had to carry his sack of grain on his shoulder. If the settler lived on or near a stream, he put his sacks of grain in a canoe and paddled downstream to the nearest mill. In the early days before the mills, the grain was pounded into meal by using a heavy pestle and a hollowed-out stump, a crude mortar which served the purpose.

In time, the gristmill owners also operated distilleries, converting the pioneer's wheat, rye, and barley into spirited beverages which were freely imbibed along this and other frontiers. By the time of the Revolution, distilling was so common as to cause the Committee of Safety to take action to conserve the grain.^[30] "Home brew," however, was quite the custom, and it was not long before most farmers operated their own stills.

Self-sufficiency was both a characteristic and a necessity among these Scotch-Irish, English, and German settlers of central Pennsylvania. Bringing their agrarian traditions with them from the "old country," where they had operated small farms, they were bound to a "subsistence farming" existence by the inaccessibility of markets to the frontier. One diarist found this conducive to a "perfect Independence" which made a "Market to them, almost unnecessary."^[31] This economic independence carried over into frontier manufacturing, if it can be called that, because the industry, except for the gristmills and their distilleries, was strictly domestic.

It has often been said that the frontier farmer was a "jack-of-all trades," and the West Branch settler of the Fair Play territory was a typical example. With no market of skilled labor, or any other market for that matter,^[32] he was his own carpenter, cooper, shoe-maker, tailor, and blacksmith. Whatever he wanted or needed had to be made in his own home. Thus, frontier industry was of the handicraft or domestic type, with tasks apportioned among the various members of the family in accordance with their sex and talent. It was truly a "complete little world" in which the pioneer family supplied its every demand by its own efforts.^[33]

Although the role of the women was to take on status significance as the frontier areas became more stable, in the earlier years of settlement their tasks were extensive and varied. Though they were busy with household duties such as churning butter, making soap, pouring candles, quilting, and weaving cloth for the family's clothing, it was not uncommon for the women to join the men in the field at harvesttime. The domesticity of the American housewife may be one impact on American life made by the Germans.^[34]

The children, too, were important persons in the economic life of the frontier family. Their labors lightened the load for both father and mother. With no available labor market from which to draw farm hands and household help, it was both necessary and useful to give the boys and girls a vocational apprenticeship in farming or homemaking. The girls' responsibilities were usually, although not exclusively, related to the hearth; the efforts of the boys were generally confined to the field and the implements employed there, although they did service too as household handymen, hauling wood, making fires, and the like.^[35]

In addition to their farming and domestic industry, the other economic activities of these agrarian pioneers included the care of their livestock and the exploitation of the available natural resources in their subsistence pattern of living. The tax lists for Northumberland County indicate the possession of two or three horses and a like number of cows for each head of a household.^[36] There were also "various Breeds of Hogs" although they were not listed by the tax assessor.^[37] Mr. Davy's comment that "Sheep are not well understood ... often destroyed by the Wolves ... few ... except

[those] of good Capital keep them" may explain their absence from these same assessments.^[38]

Maple syrup provided the sugar supply, a fact noted by land speculators who touted this "Country Abounding in the Sugar Tree."^[39] Anti-slave interests later thought that maple sugar would replace the slave-produced cane sugar.^[40] Mr. Davy described the process as he observed it at Muncy:

The Maple Trees yield about 5 w of Sugar each on an average annually, some give as much as 15 ws but these are rare. It is drawn off in April & May by boring holes in the Tree into which Quills & Canes are introduced to convey the Juice to a Trough placed round the bottom of it. This juice is boiled down to Sugar & clarified with very little trouble & is very good.^[41]

Honey also existed in great quantities in the area and was used extensively. Apparently the "sweet tooth" of the West Branch settlers was well satisfied by the ample resources for saccharine products.

The trade and commerce of the West Branch Valley were strictly confined to its own locale. Mountain barriers, limited transportation facilities, and insufficient contact with the settled areas of the Province only served to heighten the essential self-sufficiency of the Fair Play settlers. The result was an economic independence which doubtless had its political manifestations.^[42]

Economic conditions have their political implications, but it was the total impact of the frontier and not simply the commercial restrictions of some outside authority which made the Fair Play settlers self-reliant and independent "subsistence" farmers. The farmers' frontier did not result from the impact of any particular national stock groups, for Scotch-Irish, English, and German settlers reacted similarly. As the most recent historian of the Scotch-Irish, the most numerical national stock on this frontier, suggests, "authentically democratic principles, when the Scotch-Irish exhibited them in America, were rather the result of their experiences on colonial frontiers than the product of the Scottish and Ulster heritage."^[43] The farmers' frontier with its characteristics of individualistic self-reliance was a product of the frontier itself.

FOOTNOTES:

- [1] Turner, *The Frontier in American History*, p. 18.
- [2] Henry Bamford Parkes, *The American Experience* (New York, 1959), p. 44.
- [3] Dunaway, *The Scotch-Irish of Colonial Pennsylvania*, p. 59.
- [4] Paul A. W. Wallace, *Indian Paths of Pennsylvania* (Harrisburg, 1965), pp. 66-72, includes two maps.
- [5] Chester D. Clark, "Pioneer Life in the New Purchase," *The Northumberland County Historical Society Proceedings and Addresses*, VII (1935), 18.
- [6] Meginness, *Otzinachson* (1889), p. 400.
- [7] *Ibid.*, p. 401.
- [8] Linn, *History of Centre and Clinton Counties*, p. 472.
- [9] Meginness, *Otzinachson* (1889), p. 401.
- [10] Meginness, *Otzinachson* (1857), p. 454.
- [11] *Ibid.*, p. 458
- [12] Carl and Jessica Bridenbaugh, *Rebels and Gentlemen: Philadelphia in the Age of Franklin* (New York, 1962), p. 76.
- [13] Barck and Lefler, *Colonial America*, p. 409.
- [14] Walter Prescott Webb, *The Great Plains* (New York, 1931), pp. 238-244.
- [15] Herbert H. Beck, "Martin Meylin, A Progenitor of the Pennsylvania Rifle," *Papers Read Before The Lancaster County Historical Society*, LIII (1949), 33-61.
- [16] Clark, "Pioneer Life in the New Purchase," p. 19.
- [17] Lewis E. Theiss, "Early Agriculture," *Susquehanna Tales* (Sunbury, 1955), p. 89.
- [18] Norman B. Wilkinson (ed.), "Mr. Davy's Diary," *Pennsylvania History*, XX (1953), 261.
- [19] James W. Silver (ed.), "Chauncey Brockway, an Autobiographical Sketch," *Pennsylvania History*, XXV (1958), 143.
- [20] Maynard, *Historical View of Clinton County*, p. 11.
- [21] *Ibid.*
- [22] The probate records of Northumberland and Lycoming counties, found in the respective offices of the Register of Wills and Recorder of Deeds, contain entries leaving to the widow the "best room in the house," or, "her choice of

rooms." No doubt, the simplicity of the earlier home accentuated the value of the additions.

[23] "Mr. Davy's Diary," p. 259.

[24] *Ibid.*, p. 341. The Reverend Philip Vickers Fithian notes the richness of the land in the journal of his one-week visit to the area in the summer of 1775. He was also surprised to find that "many have their Grain yet in the Field," a notation for the 26th of July. *Fithian: Journal*, p. 71.

[25] Theiss, *Susquehanna Tales*, p. 88.

[26] The Museum of the Muncy Historical Society contains examples of these early farm implements and offers vivid evidence of their crudeness.

[27] *Fithian: Journal*, p. 71.

[28] *Ibid.*, p. 72.

[29] Leyburn, *The Scotch-Irish*, p. 262.

[30] Linn, *History of Centre and Clinton Counties*, p. 469.

[31] "Mr. Davy's Diary," p. 258.

[32] Dunaway, *The Scotch-Irish of Colonial Pennsylvania*, p. 171. Even in the more settled areas of the Susquehanna Valley markets were slow to develop as this note from "Mr. Davy's Diary," p. 338, reported on Oct. 3, 1794: "At present there is no Market here but if many English Families settle this will soon follow as there is an excellent supply of every necessary & even Luxury in the Neighbourhood."

[33] J. E. Wright and Doris S. Corbett, *Pioneer Life in Western Pennsylvania* (Pittsburgh, 1940), p. 74.

[34] Arthur W. Calhoun, *A Social History of the American Family* (New York, 1960), I, 202.

[35] Wright and Corbett, *Pioneer Life in Western Pennsylvania*, pp. 86-92.

[36] *Pennsylvania Archives*, Third Series, XIX, 405-805.

[37] "Mr. Davy's Diary," p. 265.

[38] *Ibid.*

[39] *Ibid.*, pp. 263-264.

[40] *Ibid.*, p. 264.

[41] *Ibid.*, p. 263.

[42] One student of the commerce of the Susquehanna Valley made sweeping generalizations about its significance which can hardly be substantiated. See Morris K. Turner, *The Commercial Relations of the Susquehanna Valley During the Colonial Period* (Ph.D. Thesis, University of Pennsylvania, 1916). This dissertation, although claiming to deal with the Susquehanna Valley, never gets

much beyond Harrisburg and seldom reaches as far north as Fort Augusta. Its accounts of roads, navigation improvements, and trade fail to reach the Fair Play settlers. This lends further support to their independent and self-sufficient existence. Turner's concluding paragraph is, however, a gem of economic determinism and bears repeating in full. Found on page 100, it reads as follows:

"If then, the commercial relations of the Susquehanna Valley were so far reaching affecting as they did in the pre-Revolutionary period the attitude of the people on all the questions, practically, of the day it is only fair to say that it was these relations which promoted the Revolution in the Province and drove the old government out of existence. The political issues were aided and abetted, yes, were created, were born from the womb of the neglected commercial relations of the Province and no other section at the time had such extensive relations as the Susquehanna Valley. No other conclusion can be reached after a serious study of the history of the period."

[43] Leyburn, *The Scotch-Irish*, p. 150.

CHAPTER FIVE

Fair Play Society

The society of the Fair Play territory, between the year 1769 and 1784, was indeed simple. There were no towns or population clusters, either in the territory or within a range of some thirty-five or forty miles. Furthermore, as we have already noted, transportation and communication facilities were so limited as to make contact with the "outside world" an exception rather than the rule. As we have also seen, economic functions on this farmers' frontier were not highly specialized. Even the political system, with its tribunal of Fair Play men, operated without the benefit of any formal code.

But it would be easy, from these indications, to magnify the simplicity of the social structure and of social relationships in the West Branch Valley. If we are to consider the development of democracy on this frontier, we must take into account the various national stock groups who settled this area and, in so doing, weigh their relative economic and social status, the amount of intermarriage between them, and the ease and frequency with which they visited each other. These and other social relationships, such as their joint participation in voluntary associations, their prejudices and conflicts, and the assimilation of alien groups, must all be evaluated. The leadership, the existence of social classes, and the family patterns must, of necessity, be a part of our inquiry. And finally, the religious institutions, the educational and cultural opportunities, and the system of values have to be considered in arriving at a judgment regarding the democratic nature of Fair Play society.

Fair Play society was composed of Scotch-Irish (48.75 per cent), English (20 per cent), German (15 per cent), Scots (6.25 per cent), Irish (5 per cent), Welsh (2.5 per cent) and French (2.5 per cent) settlers.^[1] Due to the pioneering conditions under which all of these national stock groups developed their "improvements," economic privilege was rather difficult to attain. Furthermore, even after the legislature granted pre-emption in the act of December, 1784, the grants were limited to 300 acres.^[2] In consequence

of this, massive holdings were impossible to maintain legally, as the customary holdings of two to three hundred acres indicate in the tax lists for the years after 1784.^[3] In fact, the tax lists suggest that absentee-owners or persons outside the actual geographic limits of the Fair Play territory who participated with the Fair Play settlers were the only ones to possess 700 to 1,000 acres or more.^[4] This fact, combined with the "subsistence farming" which all of the area settlers pursued, suggests a relatively comparable economic status for the members of the Fair Play society. Consequently, social status was not necessarily dependent upon economic status.

Social status on this frontier depended more upon achieved status than ascribed status. This may have been an influence of the Scotch-Irish, who judged, and thus classified, a neighbor by the size and condition of his dwelling, the care of his farm, the work done by the women in the family, his personal characteristics and morality, and his diversions.^[5] Journalists, pension claimants, and the operative, although unwritten, code of the Fair Play men all give corroborative evidence in this regard.^[6] Of all these criteria, personal character and morality seemed to have been most important. The Scotch-Irish, who, like the people of other national stocks, accepted social classes as the right ordering of society, shifted their emphasis, as a result of the frontier experience, from family heritage to individual achievement.^[7]

Intermarriages provide a further key to the social relationships of the Fair Play settlers. If a small sample is any indication, the cases of intermarriages among the various national stock groups were relatively high, with better than one-third of the marriages sampled falling within this classification.^[8] The fact that the Scotch-Irish frequently married within their own group was probably due to their being more "available" in terms of numbers. Industry and good character were the prime criteria for selecting a frontier mate, as Dunaway points out.^[9]

The ease and frequency of neighborly visits is vividly demonstrated in the characteristically cooperative cabin-raising, barn-raising, cornhusking and similar activities in which joint effort was usual. The women, too, exchanged visits and, on occasion, gathered at one place for quilting or other mutually shared activities.^[10] Furthermore, the frontier journalists

often noted the fine hospitality and congeniality of their backwoods hosts.
[11]

Further evidence of the egalitarian influence of this frontier is found in the joint participation of Fair Play settlers in voluntary associations.[12] This is particularly noticeable in their attendance at outdoor sermons and involvement in the various political activities. At a time when fewer than 100 families lived in the territory, Fithian observed that "There were present about an Hundred & forty" people for a sermon which he gave on the banks of the Susquehanna, opposite the present city of Lock Haven, on Sunday, July 30, 1775.[13] Although William Colbert, a Methodist, later "preached to a large congregation of willing hearers" within the territory, he did not think that it was "worth the preachers while to stop here." [14] This may have been due to the fact that they were mainly Presbyterians. Colbert's reception was apparently fair for he makes a point of saying, "I know not that there is a prejudiced person among them." [15] No regular church was established in this region until 1792, so it appears that the settlers generally participated in group religious activities regardless of the denominational affiliation of the preacher conducting the services. However, as we will point out later, this is not to suggest that there was no friction between denominations.

The political activities of the Fair Play settlers demonstrate the mass participation, at least of the adult males, in this type of voluntary association. The annual elections of the Fair Play men were conducted without discrimination against any of the settlers by reason of religion, national origin, or property. In addition, the decisions of the tribunal were carried out, as Smith reports, "by the whole body, who started up in mass, at the mandate of the court." [16] Special occasions, such as the Pine Creek Declaration of Independence, were also marked by the participation *en masse* of these West Branch pioneers. Mrs. Hamilton, in her widow's pension application, speaks of "seeing such numbers flocking there" (along the banks of Pine Creek in July of 1776). [17] Apparently, as Mrs. Hamilton says, most of the settlers "had a knolege of what was doing," particularly with regard to political affairs. [18]

These evidences of group participation in religious and political activities should not mislead one into thinking that conflict, legal or otherwise, was alien to the West Branch frontiersmen. The cases brought before the Fair

Play "court" and the friction between Methodists and Presbyterians affirm this strife. The first settler in the territory, Cleary Campbell, was an almost constant litigant, both as plaintiff and defendant, in the Northumberland County Court from the time of his arrival in 1769.^[19] His name, along with the names of other Fair Play settlers, appeared regularly on the Appearance Dockets of the Northumberland and Lycoming County courts. The cases usually involved land titles and personal obligations or debts.

The religious conflict is clearly seen in the journal of the Reverend William Colbert. An incident which occurred about twenty miles south of the West Branch illustrates this friction:

This is a town [present-day Milton] with three stores, three taverns, two ball allies. Agreeable to its size it appears to be one of the most dissipated places I ever saw. I could not tell how to pass them—I inquired at one of the ball allies if preaching was expected—A religious old Presbyterian standing by where they were playing answered that he did not know. I then asked them that were playing ball, they answered no. I farther asked them if they did not think they would be better employed hearing preaching than playing ball. Their answer was a laugh, that there was time for all things and that they went to preachings on Sundays. I told them they would not be willing to go to judgment from that exercise—they said they ventured that. So after a little conversation with the old man I left them ripening for destruction....^[20]

Colbert's journal is filled with snide remarks and caustic comments about Presbyterians in general and Calvinist doctrines in particular.^[21] He was especially concerned for the "lost souls" of the Presbyterians of the West Branch Valley. A twentieth-century theologian suggests that Presbyterian dogmatism had driven the Scotch-Irish to the frontier; this same problem complicated their social relationships in the backwoods country.^[22]

The process of acculturation of the frontier was marked by the impact of the aborigines upon the new white settlers in terms of the developing style of life in the West Branch Valley. In fact, the culture of the Indian may have affected the white settlers more than theirs affected that of the Indian. For

instance, Mr. Davy says that "the Dress & manners of the People more nearly assimilate to those of the Indians than lower down, but the purest English Language is universally spoken."^[23]

The West Branch Valley was a new world whose experiences made new men, rather than a transplanted old world with its emphasis on heritage and tradition.^[24] However, the English language and Scots Presbyterianism were basic ingredients in the melting pot of this and other frontiers where the American character emerged.

The social class structure of Fair Play society is rather difficult to assess. Extensive land holdings and material possessions were not characteristic of these "squatter" settlements. Consequently, property was not the distinguishing factor in stratifying the social levels of the Fair Play community. Furthermore, there was no slave population or indentured servant class to be confined to the lowest rung of the social ladder. Here, each man either owned his "improvement" or operated under some condition of tenancy. However, both indentured servitude and Negro slavery existed in the "New Purchase" of 1768 in nearby Muncy.^[25] Thus, it was a two-class pattern, in the main, which constituted the Fair Play society—landholders and tenants. In addition, though, there was a further delineation within the landholding class on the basis of character and morality. This characteristically Scotch-Irish differentiation may have been due to the predominance of the Ulsterites in the West Branch population.^[26] In consideration of this fact, a three-class structure, consisting of an elite, other landholders, and tenants, would best describe the social class system of the Fair Play territory.

The elite of the Fair Play society were generally the political and economic leaders as well. They owned the "forts," operated the gristmills, and held the prominent political positions in the vicinity. Surprisingly enough, though, they frequently resided on the fringe areas of the territory and were thus able to acquire more land.^[27] A fuller description of this elite and its leadership is given in the next chapter.

The frontier family was undoubtedly the key social institution in transmitting this new "American" culture to subsequent generations. Regardless of national origin, the families were closely-knit, well-

disciplined units, whose members formed rather complete social and economic entities. As we have already noted, the agrarian family had its own division of labor, with each member carrying out his assigned tasks and, at the same time, learning the practices and procedures of the farmers' frontier. It was also the cultural and educational core, in which its members learned their faith, received their education, and acquired the values which would serve them throughout their lives. Family loyalty was a marked characteristic on the frontier and, incidentally, among the Scotch-Irish. The woman's lot was severe but she accepted it with a submissiveness which can still be seen in some backcountry areas of Pennsylvania today.^[28] Clannish and dependent upon each other, the frontier family had no use for divorce, which was practically unknown.^[29] If the patterns and values of these frontier families tended to approximate those of the Scotch-Irish in particular, and they did, it was because the Scotch-Irish were representative rather than unique.^[30]

The church was probably the second most important social institution in developing a system of values and a "style of life" in the Fair Play territory. Here again, the Scotch-Irish with their Presbyterianism provided the most significant influence, and ultimately the first regular church—although Methodists, such as Colbert, found little to favor in Calvinism. Almost without exception, the wills probated in the courts of Northumberland and Lycoming counties between 1772 and 1830 asked for burial "in a decent and Christian like manner," and committed the departed soul to "the Creator." A Christian life and a Christian burial were valued in this frontier society.

Due to the absence of regular churches, religious instruction was primarily carried on by mothers "able to instruct," as Mrs. Hamilton put it.^[31] Prayer, the reading of the Bible, and a rudimentary catechism were all a part of this home worship, conducted by one or both parents. Baptism and other sacraments of the church were provided by itinerant pastors who made their "rounds" through the valley. Presbyterians and, later, Methodists developed the practice of gathering together in their cabins in "praying societies."^[32] Originally consisting of neighbor groups, these societies, in time, took in areas consisting of several miles.^[33]

Itinerant pastors began to include the Fair Play territory in their travels in the decade of the 1770's. Philip Vickers Fithian learned from his host, Squire Fleming, that he was the first "orderly" preacher in the area.^[34] Fithian's visit came about after he obtained an honorable dismissal from the first Philadelphia Presbytery—as no vacancies existed—in order to preach outside its bounds.^[35] Although in the territory for only one week in the summer of 1775, Fithian's account of his Sunday sermon on the banks of the Susquehanna clearly describes the nature of wilderness preaching:

At eleven I began Service. We crossed over to the Indian Land, & held Worship on the Bank of the River, opposite to the Great Island, about a Mile & a half below 'Squire Fleming's. There were present about an Hundred & forty; I stood at the Root of a great Tree, & the People sitting in the Bushes, & green Grass round me.

They gave great Attention. I had the Eyes of all upon me. I spoke with some Force, & pretty loud. I recommended to them earnestly the religious Observation of God's Sabbaths, in this remote Place, where they seldom have the Gospel preached—that they should attend with Carefulness & Reverence upon it when it is among them—And that they ought to strive to have it established here.^[36]

Fithian's recommendation was not carried out until 1792, when the Pine Creek Church was organized under the historic "independence" elm with Robert Love and a Mr. Culbertson as the first elders.^[37] This church, along with the Lycoming Church, which was formed in the eastern part of the former Fair Play territory in October of that same year, was served by the Reverend Isaac Grier, who was called to serve Lycoming Creek, Pine Creek, and the Great Island, and ordained and installed by the Carlisle Presbytery, April 9, 1794.^[38] He thus became the first regularly installed pastor in what had been the Fair Play territory.

It was not until 1811 that the Presbyterian General Assembly organized the Northumberland Presbytery, which serves West Branch Valley Presbyterians to this day. In the days of the Fair Play system the area was assigned to

Donegal Presbytery, although in 1786 the Carlisle Presbytery was formed out of the western part of Donegal.^[39]

Missionary efforts of Presbyterians in the Fair Play territory go all the way back to September of 1746, when the Reverend David Brainerd preached to the Indians of the Great Island.^[40] But from that time until the opening of the West Branch Valley to settlement, following the first treaty at Fort Stanwix, nothing concerning the area appears on presbytery records. However, after the treaty one Presbyterian minister, the Reverend Francis Alison, pastor of the First Presbyterian Church of Philadelphia and vice-provost of the College of Philadelphia, applied for land above the mouth of Bald Eagle Creek and was granted some 1,500 acres.^[41] Alison never came into the region and, in fact, sold his entire purchase to John Fleming in 1773.^[42]

Although Fithian was the first "orderly" preacher assigned to the West Branch, the Donegal Presbytery had received an application from "setlers upon the W. Branch of Susquehannah" for ministerial supplies (pastors) in the middle of April, 1772.^[43] Apparently these supplies never reached north of present-day Lewisburg.

Presbyterianism, then, was the most significant religious influence in the Fair Play territory. Methodists and Baptists penetrated the region after the Revolution, but that penetration, although marked by some conflict, was not vital to the development of a system of values on this frontier during the period under study.^[44] Furthermore, it was not until well into the nineteenth century that other Protestant sects established churches in the West Branch Valley.

The extent of that influence and the nature of this frontier faith were central to the development of Fair Play society. Since there were no organized churches in the area, the family was the key agency of religious instruction and service. This fact, combined with the impact of the Great Awakening, led to the freeing of the individual from the communal covenant, resulting in a secularization of religion which culminated in a kind of "predestined freedom."^[45] Consequently, the political implications of American Presbyterianism, which had the largest church membership in colonial Pennsylvania and the strongest affiliation on this frontier, were

demonstrated in the democratic radicalism which the frontier spawned. Political maturity, that is to say, independence, was a logical evolution from religious emancipation.^[46]

In addition to the political implications of Presbyterianism, respect for education was a significant factor in the value structure of this frontier. The probate records of this period are filled with examples of the great desire to see the "children schooled," and specific educational instructions were often included in the wills.^[47] The Presbyterian emphasis upon an educated ministry suggests that this reverence for education may also have been an education for reverence. Morality, education, and political equality and freedom—these were the basic tenets of this frontier faith.

Despite the high value placed upon education, the educational and cultural opportunities on this frontier, as on others, were extremely limited. Aside from home instruction and the occasional visit of an itinerant pastor, formal education was a luxury which these pioneers could not yet afford. However, earlier historians of the West Branch refer to the existence of a "log school" at "Sour's ferry" in 1774.^[48] Instruction in the "three R's," enforced with strict discipline, was given here a few months out of the year. A Presbyterian preacher who came into the region and stayed was the first teacher. Educational opportunity was extremely limited but education was highly respected.

Books, too, were a luxury in the West Branch Valley. Although some of the wills of Fair Play settlers indicate the importance of books by mentioning them specifically, there was no common library from which the settlers could draw. However, Fithian's *Journal* contains a note that he "reviewed the 'Squires Library'; so we do know of at least one library in the territory. Its accessibility for most of these pioneers is, of course, another question.

Frontier art was mainly functional. Its objects were generally the furniture, the tools and weapons, and the implements of the household. Individual expressions of creative talent, these items, whether they were designs on the rifle stock or styles of tableware, were outlets of artistic demonstration. Probably the most prized and picturesque of the frontier folk arts was the making of patchwork quilts.^[49] Although we have found no "Fair Play" pattern, we do know that the women of every frontier household sewed,

and, because of the demand for bed quilts, every scrap was saved for the quilt-making. Colbert's *Journal* tells of his dining at one Richard Manning's "with a number of women who were quilting."^[50] Quilting parties were social events in the lives of these frontier women, and their *objets d'art* were fully discussed from patterns and designs down to the intricate techniques of needlecraft. Perhaps the patchwork quilt is the enduring legacy of frontier folk art.

The music of the frontier was primarily vocal—the singing of hymns and, possibly, folk songs. Instrumental music was confined to the fiddle, which one Fair Play settler felt valuable enough to mention in his will.^[51] The fiddle also provided the musical background for the rollicking reels and jigs which the Scotch-Irish enjoyed so much.^[52] That it was a hard life is certainly true, but it had its happy moments and music was the source of much of that happiness.

Medical practices throughout the frontier were primitive, to say the least, and the West Branch Valley was no exception. A diary of a minister in the Susquehanna Valley around Lancaster provides specific examples of the purges, blood-letting, and herb concoctions which the frontier settler endured in order to survive.^[53] In spite of the liberal use of spirited stimulants, ailing frontiersmen often suffered violent reactions both from their illnesses and their cures.

Although the Fair Play settlers of the West Branch Valley doubtless had their own mythology and folklore, most of it was passed on by word of mouth; as a result, little of record remains. The Revolutionary pension claims are filled with tales of the courage and patriotism of the stouthearted men and women of this frontier. A frequent claim is that the measures taken to defend Fort Augusta, after the Great Runaway, urged by Fair Play settlers who had fled to that point, saved the frontier and made independence a reality.

Perhaps the best-known story is that of the "independence elm" on Pine Creek. However, as a recent writer suggests, the story of the "Pine Creek Declaration" may refer merely to the reading of a copy of the national declaration rather than to a separate document drawn up by the inhabitants

of this frontier.^[54] Mrs. Hamilton's testimony to the event notwithstanding, no copy of the declaration has ever been found.

Another tale concerns the frequent reference to the upper Pine Creek area as "Beulah Land."^[55] It seems that a circuit rider singing hymns approached a camp up Pine Creek in the Black Forest. Later, asked to sing, he offered the familiar "Beulah Land." Still later, he met with an accident between Blackwell and Cammal resulting in his death. The entertained were his mourners. Subsequently, they kept his name alive by singing the old hymn to such an extent that the name "Beulah Land" became attached to this region on Pine Creek.

Frontier life afforded little leisure time so that recreation was generally economically oriented or related to some household task. In addition, wrestling, foot-racing, jumping, throwing the tomahawk, and shooting at marks were popular sports.^[56] But drinking was probably the most common frontier recreation. It has been said that the Scotch-Irish made more whiskey and drank more of it than any other group.^[57] Everyone drank it, even the ministers. In fact, the tavern preceded the church as a social center in the West Branch Valley.^[58] Moderation, however, was the rule; excessive drinking was frowned upon.^[59]

The value system of Fair Play society can be analyzed in terms of the expressed ideals and beliefs, the conduct, and the material possessions of the pioneers who settled along the West Branch during this period. Journalists, diarists, and pension claimants offer recorded evidence of the ideals and beliefs of these settlers. Their actual behavior gives us some understanding of conduct as value. And finally, the probate records of the Northumberland and Lycoming County courts contribute some documentation concerning the material values of these frontier inhabitants. The result was a society dedicated to the idea of progress and oriented to a future of political and social equality and economic opportunity.

A firm conviction concerning the right of property, that is, the right of individual private ownership, was developed early in the American experience in Virginia and Massachusetts and was reinforced by the experience of successive frontiers, of which the Fair Play territory was one. This is noted particularly in the pride in individual "improvements" and the

vigorous assertion of property rights before the Fair Play tribunal and, later, in the regular courts. The large Scotch-Irish population on this and other frontiers characteristically asserted this view. Motivated by a spirit of individualism and the desire for a better way of life, the Fair Play settlers found land ownership basic to the accomplishment of their desired ends.^[60]

In conjunction with the policy of private land ownership, the support of squatters' rights tended to emphasize the equality of achievement rather than that of ascription. No man's position was ascribed in the Fair Play territory—he had to earn it. However, as we noted earlier, the pioneer farmer had to obtain the approval of his neighbors in order to settle in the area; but no evidence exists to show that this approval was in any way dependent upon social class or national origin. Furthermore, the annual election of the Fair Play men by the settlers, along with their rotation in office, gave a fair measure of political equality, which was reflected in the decisions of the tribunal affecting land claims.

The hospitality of the Fair Play settlers is particularly stressed by the journalists who traveled in the West Branch Valley.^[61] Despite the limitations of rooms and furnishings, the frontier cabin was ever open to the weary traveler, and spirited conversation and beverages were always available to revive him. Good food and fine friends could be found on the frontier. The frontiersman took great pride in his hospitality. Dependent upon outside travelers for news, the latest remedies for ailments, and mail, the inhabitants of the frontier opened the doors of their cabins and their hearts to visitors. Taken into a home, the weary traveler often found himself treated to the best in food and comfort which the limitations of the frontier permitted. Generally sharing the one-room cabin, like any member of the family, he soon learned that he was a welcome guest rather than a stranger in their midst. The loneliness of the frontier stimulated the hospitality of the frontiersman.

Although no "frontier philosophy," as such, existed, the conduct of its inhabitants demonstrated their faith, their patriotism, their spirit of mutual helpfulness, and their temperance. The pioneer was not a philosopher or a thinker, because the rigorous struggle for survival, which was his, did not permit the leisure to develop these traits. He was a doer whose values and beliefs were reflected in his behavior.

The favorable, but not always eager, reception of itinerant pastors, the religious instruction which took place in the home, and the frequent references to "the Creator" in the wills testify to the relevance of faith in influencing the character and behavior of these early Americans. Faith was not only relevant but also a matter of choice, and freedom of worship was practiced on this frontier. Here again, the Scotch-Irish Presbyterian influence may have been significant.^[62]

Patriotism, with few exceptions, was characteristic of the frontier. But loyalty to what? On this frontier it seems to have meant devotion to an America which developed through New World experience. Like Topsy, "it jus' growed," and no frontiersman wanted it taken away. The enthusiastic reception of the Declaration of Independence by the Fair Play settlers combined with the legend of their own resolutions on the question indicate this patriotic feeling. Despite their political differences with the settled areas, the West Branch pioneers were overwhelmingly loyal to the patriot cause in the American Revolution.^[63] Their loyalty, however, was more to the ideal of freedom, or "liberty" as they termed it, than to any organization or state. They believed in and supported the liberty which their own hard work and the circumstances of the frontier had made possible.

Mutual helpfulness was essential to survival in the wilderness and valued among its pioneers. Cabin-raising, cornhusking, harvesttime, and quilting parties are just a few examples of this spirit in action. Individualistic in his approach, the frontier farmer realized the need for neighborly support and appreciated its offer.

In spite of the availability of a more-than-adequate supply of spirited liquid refreshment, temperance was both commended and respected on this Pennsylvania frontier. One historian points out that there was probably less drunkenness on the frontier than there was in eastern Pennsylvania, where it was not unusual for young men to get drunk at the taverns or to drink themselves under the table at weddings or at other social functions.^[64] Drunkards were few and generally despised on the frontier.^[65]

Material values, in a society where possessions, beyond the land itself and the rude cabin built upon it, are limited, are best gleaned from the probate records, which listed the prized possessions of this frontier community.

Beds and bedsteads are the items which appear most frequently in the wills of the Fair Play settlers. Occasionally, the ultimate in frontier affluence is reached in the form of a "feather Bed."^[66] Beds, or feather beds, and bedsteads were so highly valued as pieces of furniture that they were often passed on to the daughters, serving as a substantial part of their dowries.^[67] Surprisingly enough, the widow often received "the room she now sleeps in" or, "her choise of any one room in the house." This is not so amazing, however, when one realizes that additional rooms beyond the original one-room cabin quite logically became highly valued. Pewterware was the silver of the frontier, and, if the probate records are any indication, there was little of it and no silver. Aside from references to furniture such as spinning wheels, bureaus, tables, and chairs, and these not too regularly, it is quite evident that material possessions were few.

What then was the nature of Fair Play society? The frontier, by its very nature, had an egalitarian influence which is readily apparent from this analysis of the "style of life" along the West Branch. A relative political and social equality existed in this land of economic opportunity where faith, patriotism, helpfulness, and self-determination were the outstanding traits. The frontier brought the democratizing role of achievement to the fore in American life, and the Fair Play settlers were an excellent example.

FOOTNOTES:

[1] See [Chart 1](#) in Chapter Two.

[2] Smith, *Laws*, II, 195.

[3] *Pennsylvania Archives*, Third Series, XIX, 557-805.

[4] For example, in the County Assessments for 1781, *Pennsylvania Archives*, Third Series, XIX, 468, 484, the individual holdings of resident property owners range from 50 to 1,500 acres, whereas non-residents' range from 200 to 13,000. Only six of thirty residents showed property in excess of 325 acres and four of these had 550 acres or less. The two large landowners were peripheral Fair Play residents. Subsequent tax lists indicate that non-residents eventually sold their property in sections.

[5] Leyburn, *The Scotch-Irish*, p. 262.

[6] *Fithian: Journal* (1775) and *Journal of William Colbert* (1792-1794). These journals of the first regularly assigned itinerant pastors, Presbyterian and Methodist, to the West Branch Valley, contain numerous references concerning the personal character and morality of the settlers. In the Hamilton Papers of the Wagner Collection of Revolutionary War pension claimants, p. 11, Mrs. Hamilton writes to the Honorable George C. Whiting, Commissioner of Pensions, on Dec. 16, 1858: "I believe they were people of clear sound mind, just, upright, morrall, religious, and friendly to all. I should say they came nearest to keeping the commandment, love your nabour as yourself, then any people I ever lived among."

[7] Leyburn, *The Scotch-Irish*, p. 269.

[8] Helen Herritt Russell, "The Documented Story of the Fair Play Men and Their Government," *The Northumberland County Historical Society Proceedings and Addresses*, XXII (1958), 16-43. Mrs. Russell, whose genealogical studies were the basis of Chart 1 in Chapter Two, notes 24 marriages among the 80 names, 9 of which were intermarriages of different national stocks. Of the 24 marriages, 9 were between Scotch-Irish couples. Intermarriages produced 5 English-Scotch-Irish couples, 2 German-Scotch-Irish, 1 Welsh-Scotch-Irish, and 1 German-English. The intermarriages appear to follow the national stock percentages in the population. This would suggest that the intermarriages were a matter of choice rather than of necessity.

[9] Dunaway, *The Scotch-Irish of Colonial Pennsylvania*, p. 198.

[10] *Journal of William Colbert* (1792-1794). This entry for Thursday, Sept. 5, 1793, is from a typescript belonging to Dr. Charles F. Berkheimer, of Williamsport. The original is in Chicago at the Garrett Biblical Seminary.

[11] Here again, Fithian, Colbert, and Mr. Davy all mention the friendly reception which was theirs on this frontier. Davy, in an entry for Oct. 10, 1794, p. 265, says, "In the Winter Sleighs are in general use on the Rivers & on Land & it is time of Visiting & Jollity throughout the Country."

[12] *Journal of William Colbert*, Tuesday, Aug. 21, 1792. Here the Reverend Colbert refers to the existence of a class in religion among the group of Presbyterians, although the prospects appear none too favorable. In fact, he says, "I had no desire to meet the class, so disordered are they, therefore omitted it." Quarterly meetings of Methodists were also held in the West Branch Valley, as Colbert notes in his journal for Saturday, Sept. 15, 1792, and Saturday, Sept. 7, 1793. In 1792, Colbert remarks that "Our Quarterly Meeting began at Joshua White's today." The following year he wrote that "brother Paynter and I have to hold a Quarterly meeting at Ammariah Sutton's at Lycommon." Each of these instances indicates the presence of some sort of voluntary religious association. However, it must be recalled that Fithian mentioned no such classes or meetings extant during his visit in July of 1775.

[13] *Fithian: Journal*, pp. 80-81.

[14] *Journal of William Colbert*, Thursday, Oct. 17, 1793, and Saturday, Aug. 18, 1792.

[15] *Ibid.*, Tuesday, Oct. 15, 1793.

[16] Smith, *Laws*, II, 195.

[17] Muncy Historical Society, Wagner Collection, Hamilton Papers, p. 10.

[18] *Ibid.*

[19] See the Appearance Dockets Commencing in 1772 for Northumberland County and 1795 for Lycoming County.

[20] *Journal of William Colbert*, Monday, June 18, 1792.

[21] *Ibid.*, Saturday, Aug. 4, 1792: "Calvinist must certainly be the most damnable doctrine upon the face of the globe." Sunday, July 29, 1792: "Here for telling the people they must live without sin, I so offended a Presbyterian, that he got up, called his wife and away he went." Sunday July 22, 1792: "... in the afternoon for the first time heard a Presbyterian at Pine Creek.... He is an able speaker but could not, but, Calvinistic like speak against sinless perfection." Monday, Aug. 20, 1792: "... rode to John Hamilton's in the afternoon. Here the unhappy souls [Presbyterian Fair Play settlers] that were joined together in society, I fear are going to ruin." Thursday, Oct. 17, 1793: "I went to John Hamilton's on the Bald Eagle Creek spoke a few words to a few people: I do not think that is worth the preachers while to stop here."

[22] F. B. Everett, "Early Presbyterianism along the West Branch of the Susquehanna River," *Journal of the Presbyterian Historical Society*, XII (1927), 481. According to the Reverend Mr. Everett, whose article also appeared in the *Montgomery Mirror* for Oct. 27, 1926, the Scotch-Irish, with the Anglicans, were the dogmatists of Pennsylvania. The Quakers and Pietistic German sects were anti-dogmatic. Dogmatically adhering to his catechisms, the Scotch-Irishman "resented the aspersions cast upon dogma and creed." The frontier gave him freedom from the Quakers who still considered Presbyterians as those "who had burnt a Quaker in New England from the cart's tail, and had murdered other Quakers."

[23] "Mr. Davy's Diary," p. 259.

[24] Thomas J. Wertenbaker, *The First Americans, 1607-1690* (New York, 1927). Wertenbaker's first chapter, "A New World Makes New Men," develops this thesis generally for the American colonial experience, and, as Turner said, those first colonies were the first frontier.

[25] Clark, "Pioneer Life in the New Purchase," pp. 28, 63. Clark notes that indentured servitude appeared in Muncy, where Samuel Wallis' great holdings made such service feasible. He also mentions Wallis' ownership of slaves, verified by the Quarter Session Docket of 1778. Wallis freed two Negro slaves, Zell and Chloe, posting a £30 bond that they would not become a charge on the township.

[26] Leyburn, *The Scotch-Irish*, p. 262. See also Dunaway, *The Scotch-Irish of Colonial Pennsylvania*, pp. 180-200.

[27] These "fringe area" participants in Fair Play society actually resided, for the most part, in Provincial territory and hence enjoyed greater stability and more land.

[28] Calhoun, *A Social History of the American Family*, I, 207.

[29] *Ibid.*

[30] Leyburn, *The Scotch-Irish*, p. 271. Leyburn points out that since the Scotch-Irish were never a "minority," in the sense that their values differed radically from the norms of their areas of settlement, they never suffered the normlessness which Durkheim calls anomie—the absence of clear standards to follow. As Leyburn states it,

Anomie was an experience unknown to the Scotch-Irishman, for he moved immediately upon arrival to a region where there was neither a settlement nor an established culture. He held land, knew independence, had manifold responsibilities from the very outset. He spoke the language of his neighbors to the East through whose communities he had passed on his way to the frontier. Their institutions and standards differed at only minor points from his own. The Scotch-Irish were not, in short, a "minority group" and needed no Immigrant Aid society to tide them over a period of maladjustment so that they might become assimilated in the American melting pot.

This, however, is not to suggest that minorities are necessarily anomic. The Jews, for example, were always a cultural minority in Europe, yet they adhered intensely to their own cultural norms.

[31] Muncy Historical Society, Wagner Collection, Hamilton Papers, p. 10.

[32] J. E. Wright and Doris S. Corbett, *Pioneer Life in Western Pennsylvania* (Pittsburgh, 1940), p. 142.

[33] *Ibid.* The existence of these "praying societies" is further substantiated in Colbert's *Journal*. During these services, lay persons gave exhortations or assisted Colbert in some fashion.

[34] *Fithian: Journal*, p. 76.

[35] Robert S. Cocks, *One Hundred and Fifty Years of Evangelism, The History of Northumberland Presbytery 1811-1961* (n. p., 1961), p. 2.

[36] *Fithian: Journal*, pp. 80-81.

[37] Joseph Stevens, *History of the Presbytery of Northumberland, from Its Organization, in 1811, to May 1888* (Williamsport, 1888), p. 38.

[38] *Ibid.*, p. 18.

[39] Cocks, *One Hundred and Fifty Years of Evangelism*, p. 2.

[40] Guy S. Klett, "Scotch-Irish Presbyterian Pioneering Along the Susquehanna River," *Pennsylvania History*, XX (1953), p. 173.

[41] *Ibid.*, p. 174.

[42] Linn, *History of Centre and Clinton Counties*, p. 520.

[43] Klett, "Scotch-Irish Presbyterian Pioneering," p. 175.

[44] *Journal of William Colbert*, Monday, June 18, 1792; and Robert Berger, "The Story of Baptist Beginnings in Lycoming County," *Now and Then*, XII (1960), 274-280. According to the Reverend Robert Berger, of Hughesville, a few Baptist settlers came into Lycoming County from New Jersey, but were soon driven out by the Indians. Apparently, the Philadelphia Baptist Association sent missionaries to the area in 1775 and 1778. However, not until the association commissioned Elders Patton, Clingan, and Vaughn in 1792 did any extensive Baptist preaching take place in this region. They were sent out for three months on the Juniata and the West Branch. The Loyalsock Baptist Church, established in 1822, is the first church.

[45] Dietmar Rothermund, *The Layman's Progress: Religious and Political Experience in Colonial Pennsylvania 1740-1770* (Philadelphia, 1961), p. 142. As Rothermund describes it, "The Pilgrim's progress had turned into the layman's emancipation, and finally into the citizen's revolution" (p. 137). He calls "the political maturity which followed the era of religious emancipation ... America's real revolutionary heritage" (p. 138).

[46] *Ibid.*, p. 137. It must first be recognized that American Presbyterianism differed from that of Scotland particularly with regard to local autonomy. The Presbyterian Church, like the United States under the Constitution of 1787, was federal in its governmental structure, and the autonomy of the local religious institutions was later carried into politics. Leyburn, *The Scotch-Irish*, p. 313, emphasizes the fact that the Scotch-Irishman's church had accustomed him to belief in government by the consent of the governed, in representative and republican institutions. The relationship between the church covenant and the social compact is quite direct. If men can bind themselves together to form a church, then it seems quite logical that they can bind themselves together to form a government. Fair Play democracy was simply political Presbyterianism. Its impact has been noted by a number of historians. Dunaway, *The Scotch-Irish of Colonial Pennsylvania*, p. 135, claims that "The actual means by which Pennsylvania was transformed from a proprietary province into an American commonwealth was the new political organization developed by the Scotch-Irish in alliance with the eastern radical leaders of the continental Revolutionary movement. This extra-legal organization, consisting of the committee of safety, the provincial and county committees of correspondence, and the provincial conventions, supplanted the regular provincial government by absorbing its functions." Becker, *Beginning of the American People*, p. 180, calls the Scotch-Irish a people "whose religion confirmed them in a democratic habit of mind."

[47] Lycoming County Courthouse, Will Book #1, George Quigley's Will, p. 69.

[48] Maynard, *Historical View of Clinton County*, p. 208.

[49] Carrie A. Hall and Rose G. Kretsinger, *The Romance of the Patchwork Quilt in America* (New York, 1935), p. 27.

[50] *Journal of William Colbert*, Thursday, Sept. 5, 1793.

[51] Lycoming County Courthouse, Will Book #1, William Chatham's Will, p. 177. Chatham's bequest is "To Robert Devling My Fidel."

[52] Dunaway, *The Scotch-Irish of Colonial Pennsylvania*, p. 196.

[53] Rev. John Cuthbertson's Diary (1716-1791), microfilm transcript, 2 rolls, Pennsylvania Historical and Museum Commission, Harrisburg. An example, found on p. 252, is this "*famous American Receipt for the Rheumatism*. Take of garlic two cloves, of gum ammoniac, one drachm; blend them by bruising together. Make them into two or three bolus's with fair water and swallow one at night and the other in the morning. Drink strong sassafras tea while using these. It banishes also contractions of the joints. 100 pounds been given for this."

[54] Rebecca F. Gross, "Postscript to the Week," *Lock Haven Express*, Aug. 3, 1963, p. 4.

[55] Eugene P. Bertin, "Primary Streams of Lycoming County," *Now and Then*, VIII (1947), 257-258.

[56] Dunaway, *The Scotch-Irish of Colonial Pennsylvania*, p. 193.

[57] *Ibid.*, p. 197.

[58] "Eleanor Coldren's Deposition," pp. 220-222. Mrs. Coldren refers to a tavern, just west of Chatham's Run, in the spring of 1775. The first church appeared in 1792.

[59] "Diary of the Unknown Traveler," *Now and Then*, X (1954), 307. The diarist tells of a tavernkeeper who refused a man a pint of wine because "he had had enough" (Thursday, July 24, 1794).

[60] Leyburn, *The Scotch-Irish*, pp. 148-150. Leyburn suggests, and the Fair Play settlers demonstrate, that Ulster and America were similar experiences. He says (p. 148) that the Scotch-Irish "lived on land in both regions often forcibly taken from the natives. The confiscation itself was declared legal by the authorities, and the actual settlement was made in the conviction that the land was now rightfully theirs. Might makes right—at least in the matter of life and land ownership."

[61] *Fithian: Journal*, the *Journal of William Colbert*, and "Mr. Davy's Diary" all refer to the hospitality of the people of this frontier. For example, Fithian speaks of his hosts as "sociable, kind"; while Colbert constantly mentions the "liberty" which he enjoyed in the various homes which he visited.

[62] Leyburn, *The Scotch-Irish*, pp. 146-147. Leyburn suggests that belief in the superiority of the Presbyterian church to any king justifies revolt; if one may, others may, leading to anarchy. Thus freedom of worship for a minority allied itself in America with liberty of worship for all. The right of revolution, as it was acted upon in America, was also implied.

[63] Loyalists in the West Branch Valley suffered the usual privations as this excerpt from the "Diary of the Unknown Traveler," p. 310, indicates: "*Thursday, July 24, 1794*.... Mr. Witteker and his family are of the people called Quakers but

was turned out of the society during the time of war for paing the money called substitute [relief from the draft]* money to the Congress agents. M[r]. W's case is really hard. He suffered as above by his friends for aiding Congress and his estate was conviscated [*sic*] by the state for being a loyalist." [*Phrase bracketed in quotation.]

[64] Dunaway, *The Scotch-Irish of Colonial Pennsylvania*, pp. 197-198.

[65] *Ibid.*, p. 198. An example of this attitude is found in this entry in the "Diary of the Unknown Traveler," p. 310: "This afternoon 24 July [1794] a person with two horses, one he rode, the other lead, called at Wittekers for a pint of wine, but on account of him being intoxicated before Mr. W. told him he had had enough & would not let him have any. Where could we find so disinterested a tavernkeeper in England? In England they never refuse as long as they pay, but here the man had the money ready if they would let him have the wine."

[66] This conclusion was reached after the reading of some three hundred wills in the probate records of Northumberland and Lycoming counties. This particular reference is from James Caldwell's will, Nov. 20, 1815, located in Will Book #1, p. 108, Lycoming County Courthouse.

[67] Clark, "Pioneer Life in the New Purchase," p. 22. Beds and feather beds seem to have been status symbols of a sort often willed to the wife or included as a dowry.

CHAPTER SIX

Leadership and the Problems of the Frontier

Any analysis of democracy in the Fair Play territory must consider the question of leadership and the particular problems of that frontier. The number of leaders and their roles, the marks of leadership, and the circumstances which brought certain men to the fore must all be considered. Was there some correlation between property-holdings, or national origin, and leadership? Were there certain offices conducive to the exercise of leadership? The subject of leadership entails inquiry into each of these areas.

Unfortunately, only one biographical study of any Fair Play leader has ever been attempted, that of Henry Antes.^[1] As a result, the patterns of leadership must be gleaned from court records, tax lists, lists of public officials, and petitions from the settlers of this frontier. Consequently, what follows gives us some general understanding of the nature of leadership but offers little in the way of insight into the personalities of the leaders.

Using the Curti study as an example, certain objective criteria have been set up in analyzing leadership in the West Branch Valley.^[2] Obviously, some leaders were more important than others. Their influence extended beyond the limits of the Fair Play territory. These leaders, provided that they stood out in respect to at least three of the four criteria established, have been categorized as regional leaders. These four criteria have been used in this study to determine regional leadership: (1) the holding of political office, (2) the ownership of better-than-average property holdings, (3) the operation of frontier forts, and (4) the holding of military rank of some significance.^[3]

Of these criteria, office holding appears to be the most important. Thus, regional leaders were generally re-elected to public office, or held more than one such office. Furthermore, it will be noted that these offices tended to be with the established governments of the State and county. Since some

leaders never held any political office, another classification seemed necessary. Consequently, the role of local leadership was also classified.

The influence of some men seems to have been strictly confined to the Fair Play territory, either by virtue of their election to some local office or by their prominence in some other phase of community life. As a result, local leaders have been considered as (1) those who held at least two local offices, or (2) those who exercised identifiable community leadership in a non-political context.

After an extensive examination of the lists of public officials for Northumberland County, the tax lists for the same period, the records of the Fair Play men and the Committee of Safety, the accounts of the frontier forts in the region, and the military records of these settlers, it becomes evident that only three men can be considered as regional leaders and not more than seven or eight as local leaders.^[4] Henry Antes, Robert Fleming, and Frederick Antes are the regional leaders; and Alexander Hamilton, John Fleming, James Crawford, John Walker, Thomas Hughes, Cookson Long, William Reed, and Samuel Horn are the local leaders. Obviously, the listings are too limited to offer any valid quantitative analysis.

Henry Antes is undoubtedly the single most outstanding leader in the entire Fair Play country. Judge of the Court of Quarter Sessions, sheriff, justice of the peace, Fair Play spokesman, captain (later colonel) of Associators and commander of Fort Antes, miller and property owner, personal friend of John Dickinson and other Provincial leaders, Henry Antes was the top figure in civic, economic, military, and social affairs along the West Branch. Influential within and without the Fair Play territory, Henry Antes was truly the major leader in the valley.

The Antes family had long played a significant role in the history of the Province of Pennsylvania. As MacMinn relates, Henry's father, Henry, Sr., had been "associated with the most prominent men of his time in movements for the public good."^[5] A Moravian, the elder Antes had assisted Count Zinzendorf in his missionary efforts, aided Whitefield in his philanthropic endeavors, worked with Henry Muhlenberg in educating the German town community, and served with a marked impartiality as a

justice of the peace.^[6] From such stock came the necessary leadership for the Fair Play settlers of the West Branch frontier.

Born near Pottstown in Montgomery County in 1736, young Henry may have learned of frontier opportunity from visitors to his father's inn, such as Zinzendorf and Spangenburg, who had traveled along the West Branch of the Susquehanna. Consequently, joined by his brother William, he signed an article of agreement on September 29, 1773, for the purchase of land in the West Branch Valley.^[7] When another brother, Frederick, obtained property in the area later in that same decade, the Antes brothers, particularly Henry and Frederick, became the dominant political, economic, and social influence in the territory. Frederick, however, was more of an absentee leader since he never actually resided in the Fair Play territory.

Although the combined holdings of the Antes brothers constituted only a little less than 700 acres, their gristmill, the first in the region, became the meeting place for the area settlers, providing a forum for the usual discussions of politics and prices.^[8] From Lycoming Creek on the east to Pine Creek and the Great Island on the west, the frontier farmers brought their grain to the Antes mill, on the south side of the Susquehanna River opposite present Jersey Shore. While the milling went on, the men analyzed their common problems and debated the future of this pioneer land. If there was a center for the dissemination of news in the West Branch Valley, it was the Antes mill and fort, which was soon constructed on the property. Located in almost the center of the Fair Play territory (although actually across the river from it), where men met of necessity, and having had a father who had exerted influence and exercised leadership in Philadelphia County, the Antes brothers were well prepared to lead the West Branch pioneers.

With their gristmill giving Henry and Frederick a decided economic edge, they soon became involved in the politics of the Fair Play territory, Northumberland County, and the Province of Pennsylvania. Henry became primarily a local and county leader, while his brother concentrated on county and Provincial and, later, State affairs. Both served as county judges—Henry, appointed in 1775, and Frederick, elected in 1784—which suggests judicial responsibility as the key to assuming major leadership,

since Robert Fleming took Frederick's judicial post when he resigned to take a seat in the General Assembly.^[9]

By the summer of 1775, when Philip Vickers Fithian first included the West Branch in his itinerary—the valley by then supported some 100 families—Henry Antes had already distinguished himself as a public servant. He, along with five others, had been commissioned by the county court to lay out a road from Fort Augusta to the mouth of Bald Eagle Creek;^[10] he had served as a spokesman for the Fair Play men in a land title dispute;^[11] he had been made a justice of the peace;^[12] and he had been appointed as a judge of the Court of Quarter Sessions.^[13] This was to be only the beginning, for in 1775, when the Associators were organized, Henry Antes was made captain of company eight, embodying the Nippenose and Pine Creek settlers.^[14] But even this is not the complete picture, for when the settlers returned to the region in the eighties, following the Great Runaway of 1778, Antes became sheriff, the chief law enforcement officer of Northumberland County.^[15] The popular miller had become the popular leader, a popularity enhanced by his interpretation of the sheriff's role, an interpretation which occasionally brought him into conflict with the State's leaders.^[16]

The leadership of the Antes brothers is further accentuated by the activities of Frederick Antes. Between 1776 and 1784 he was a delegate to the Pennsylvania Constitutional Convention, justice of the peace, president judge of the county courts, county treasurer, commissioner of purchase for Northumberland County, a representative in the General Assembly, and a colonel of militia.^[17] With Henry on the West Branch and Frederick frequently in Philadelphia, the Antes family had a constant finger on the pulse of Pennsylvania politics. Official duties, plus the strategic location of the Antes fort and mill, made Frederick and Henry Antes the most influential persons in the West Branch Valley during the operation of the Fair Play system. Eminently qualified by numerous public responsibilities, the Antes brothers were major leaders of the Fair Play settlers.

Robert Fleming, the third regional leader in the territory, also served as a judge of the Court of Common Pleas for the county, although that service began in March, 1785, after the Fair Play territory was acquired by the State of Pennsylvania in the second Stanwix Treaty of 1784.^[18] He became a

justice of the peace at the same time.^[19] Prior to his judicial obligations, Fleming had been a member of the county Committee of Safety, a township overseer, a representative in the General Assembly, a second lieutenant of Associators, and possibly a Fair Play man.^[20] During the Revolution, he was primarily concerned with the area around the Great Island, serving at Reed's Fort (present Lock Haven) and on the Fleming estate, which some referred to as Fort Fleming. Robert had a brother, John, with whom Fithian stayed during his brief sojourn in the territory. Their combined holdings, the largest in the vicinity, ran to almost 3,000 acres, of which 1,250 acres were Robert's.^[21]

Certain conclusions can be drawn from these data regarding the regional leaders of the Fair Play territory. Better than average property holdings, extensive in the case of Robert Fleming; judicial responsibility, which was true of all three men; primary authority in frontier forts (the Antes brothers owned and commanded Antes Fort, and the Flemings operated their own stockade and commanded Fort Reed); and military rank ranging from lieutenant of Associators to colonel of militia: these characteristics signified major leadership in the West Branch Valley among the Fair Play settlers. Coincidentally, it can be noted that two of the three regional leaders, having served in the State legislature, had influence which reached to the State House in Philadelphia. Obviously, these men were known outside of the limited environs of the Fair Play territory. In fact, both Henry and Frederick Antes enjoyed a more than passing acquaintance with Benjamin Franklin and John Dickinson, two of the giants of this period of Pennsylvania's history.^[22]

A further observation which can be made concerning leadership relates to the question of national origin. Although the Fair Play territory has often been referred to as "Scotch-Irish country," the German Antes brothers performed the outstanding leadership roles on this frontier. Also, the specific geographic location of our regional leaders provides a final note of interest. All three of them, Henry and Frederick Antes, and Robert Fleming, actually resided outside the limits of the Fair Play territory. They were on the geographic fringe but at the leadership core. Their close proximity to the Fair Play territory, separated from it only by the Susquehanna River, in addition to their contacts with and positions in established government, gave these men an obvious political eminence. The forts located in both

places and the Anteses' gristmill gave both the Flemings and the Anteses opportunity for leadership.

Local leaders generally lived within the Fair Play territory, had average property holdings, and served on either the Fair Play tribunal or the township Committee of Safety. There are, of course, exceptions to each of these generalizations. The fort operators, Samuel Horn, William Reed, and John Fleming, resided on the Provincial or State side of the Susquehanna River. Furthermore, John Fleming was the largest property owner in the area with some 1,640 acres.^[23] And one man, James Crawford, held the highly respected county office of sheriff.^[24]

Three of the local leaders, John Fleming, Alexander Hamilton, and James Crawford, stand out from the rest, although for different reasons. John Fleming undoubtedly would have become a major leader had he lived longer—he died in 1777. His extensive property made his home the usual stop for itinerant pastors and other travelers in the valley, as Fithian's *Journal* attests.^[25] It also made him a figure of central significance in economic affairs. Alexander Hamilton was probably "the" local leader. A member of the Committee of Safety and presumably a Fair Play man, he was also the captain of Horn's Fort.^[26] He is also the reputed author of the Pine Creek declaration. James Crawford was more noted for military exploits than for civic duties. Prior to his military service, Crawford had represented Northumberland County in the Constitutional Convention of 1776, which framed the State constitution and, later, commissioned him as a major in the Twelfth Pennsylvania Regiment.^[27] Deprived of his commission after the Germantown campaign, Major Crawford returned home and was elected county sheriff, an office which he held until succeeded by Henry Antes.^[28]

Of the other local leaders, Horn and Reed held only lesser township offices, overseer and supervisor, respectively, in addition to operating frontier forts.^[29] Cookson Long, mentioned as a Fair Play man in 1775 in Eleanor Coldren's deposition, later commanded Fort Reed, for a time, as a captain of Associators.^[30] The final two local leaders, John Walker and Thomas Hughes, both took turns as Fair Play men and as members of the local Committee of Safety.^[31]

In analyzing the local leadership roles which these various settlers filled, additional and pertinent conclusions become apparent. In the first place, the Fair Play men were obviously not the top leaders of the community. Henry Antes may have served as their spokesman in 1775, and it is quite possible that Robert Fleming was a member of the tribunal, but both were more important as county leaders. Secondly, Fair Play men were members of the Committee of Safety, a fact which suggests that their efforts may have been coordinated. Finally, returning to the question of national origin, six of these eight local leaders were either Scots, Scotch-Irish, or Irish. The other two were Germans. No Englishman was a leader, either regional or local, in the Fair Play territory between 1769 and 1784. Perhaps, as Carl Becker suggests, this was due to the fact that neither the German nor the Scotch-Irish immigrant held in his breast any sentiment of loyalty to King George, or much sympathy with the traditions or the leaders of English society.^[32]

What were the particular problems of this frontier and how effective were these leaders in meeting them? The question of defense, including the daily task of survival in the wilderness, the right of pre-emption, and the efforts to obtain frontier representation in the assembly: these were the main problems in this pioneer land along the West Branch of the Susquehanna. All were not solved during the period under analysis, but the attempts to solve these and other problems afford us the opportunity to evaluate the leadership in the Fair Play territory.

Doubtless, the most pressing public need on this frontier was protection from the marauding Indians who plagued these pioneers throughout the fifteen years encompassed by this study. Aroused by the British during the Revolution, the Indians of the Six Nations descended from New York into the West Branch Valley to harass and, finally, to drive the Fair Play settlers from their homes. Driven from their homes, the frontiersmen of the West Branch first gathered in the hastily-constructed and poorly-manned forts conveniently scattered along the Susquehanna from Jersey Shore to Lock Haven, but, ultimately, these too had to be evacuated in the Great Runaway in 1778.

The severity of these attacks is evident from this petition from the settlers gathered at Fort Horn, above present McElhattan, pleading for military support in their perilous position:

To the Honourable the Supream Executive Council of the Commonwealth of Pennsylvania, in Lancaster;

Wee, your humble petitioners, the Inhabitation of Bald Eagle Township, on the West Branch of Susquehannah, Northumberland County, &c., &c., humbly Sheweth: that, Wherease, wee are Driven By the Indians from our habitations and obblidged to assemble ourselves together for our Common Defence, have thought mete to acquaint you with our Deplorable situation. Wee have for a month by past, endeavoured to maintain our ground, with the loss of nearly fifty murdered and made Captives, still Expecting relief from Coll. Hunter; but wee are perswaded that the Gentleman has done for us as much as has layd in his power; we are at len[g]th surrounded with great numbers on every side, and unless Our Honourable Council Does grant us some Assistance wee will Be obblidged to evaquete [sic] this frontier; which will be great encouragement to the enemy, and Bee very injurious to our Common Cause. We, therefore, humbly request that you would grant us as many men as you may Judge sufficient to Defend four small Garrisons, and some amunition, and as we are wery ill provided with arms, we Beg that you would afford us some of them; for particulars we refer to the Bearer, Robert Fleming, Esq'r, and Begs leave to Conclude. Your humble petitioners, as in Duty Bound, shall ever pray.

Sined by us:^[33]

This petition was signed by some forty-seven settlers, including John and Robert Fleming, Alexander Hamilton, and Samuel Horn. Unfortunately, the much-needed assistance was not forthcoming, and Colonel Hunter soon sent instructions from Fort Augusta for the evacuation of the valley. This evacuation is, of course, the Great Runaway.^[34] It is interesting to note, however, that the bearer of this petition was Robert Fleming, one of the regional leaders of the territory.

Although forced to leave the West Branch Valley, the Fair Play settlers responded to Colonel Hunter's fervent plea to stay at Fort Augusta to help in

the defense of this last frontier. Their gallant stand on the West Branch and their earnestly successful support of Fort Augusta, the last frontier outpost in central Pennsylvania, protected the interior, enabled the Continental Congress "to function in safety at a period when its collapse would have meant total disaster to the American cause," and provided a vivid demonstration of what a later president of the United States would call "that last full measure of devotion."^[35]

In the fall of 1778, following the earlier alliance with France, the tide of the Revolution began to flow in favor of independence, notwithstanding the fact that the Fair Play territory was now deserted. But for two years previous, when the issue of independence had been in grave doubt, the courageous pioneers of the West Branch stood their ground in tiny garrisons at Fort Antes, Fort Horn, and Fort Reed, resisting the attacking Indians at the insistence of their leaders, that freedom might be preserved. Perhaps it is a little-known story, but the fate of independence was in good hands with the Fair Play settlers of the West Branch Valley, who fought to preserve it.

Towards the end of the Revolution the Fair Play settlers returned to the territory, and a new problem arose, that of title claims or, more particularly, the right of pre-emption. Still outside the bounds of the Commonwealth and organized government, these frontier squatters petitioned the Supreme Council for validation of their land claims.^[36] Two petitions, one in August, 1781, and the other in March, 1784, were sent. Their claims were recognized by an act of the General Assembly passed in May, 1785.^[37] By this time, the land in question had been opened for settlement by virtue of the Treaty of Fort Stanwix in 1784. Needless to say, their petitions had been prompted in part by fear of land speculators who were attempting to buy up their lands through the Land Office in Philadelphia. The prominence of local leaders, such as Alexander Hamilton and John Walker, is once again noted in these petitions. These petitions achieved notable results in that the right of pre-emption for the West Branch squatters was recognized by the Commonwealth long before the national government endorsed the principle. Furthermore, the validation of these claims beyond the purchase line of the Stanwix Treaty of 1768 provided the first legal recognition of pre-emption in the State of Pennsylvania.

Unsuccessful in maintaining their homes against the incursive Indians, but successful in regaining them by right of pre-emption, the Fair Play settlers were also vitally concerned with representative democracy. Locally, on the county level, and in the Province and State, these frontiersmen sought to make their wishes known, both to and through their political leaders. How well they achieved these goals was influenced by the number of persons whom they elected to both legal and extra-legal offices at the various political levels.

The Fair Play settlers managed to send two of their associates to the General Assembly in the decade after Lexington and Concord.^[38] These two, Robert Fleming and Frederick Antes, constituted a disproportionate representation, when one considers the limited population of the Fair Play community and the general under-representation of the frontier counties at this period. In fact, a few hundred families in and around the West Branch were surprisingly fortunate to have one of their number, Robert Fleming, in the General Assembly when, following a petition from the frontier counties in 1776, a new apportionment created an assembly in which fifty-eight legislators represented Pennsylvania's 300,000 people.^[39] However, the elections of both Fleming and Antes came after the new constitution of 1776, in which each county was given six representatives.^[40] It can hardly be said that the West Branch Valley lacked adequate representation in the councils of the State.

Furthermore, Frederick Antes was a delegate to that State Constitutional Convention. This not only emphasizes the leadership role of Antes, but also points up the good fortune of the Fair Play settlers in having one of their community participate in the framing of the new State government. Although the Fair Play settlers lived beyond the legal limits of settlement, they were very much involved in its political affairs.

Aside from the General Assembly and the Constitutional Convention, these pioneers of the Northumberland County frontier placed three men on the county bench, one of whom was presiding judge.^[41] Fair Play men became justices of fair play in the county courts.

Concerning other county offices, the key position of sheriff was held continuously from 1779 to 1785 by members of the Fair Play community.

[42] Here again, it appears that the proper administration of justice could be expected from Fair Play men.

Locally, the rotational system of the Fair Play tribunal and the frequent changes in the composition of the Committee of Safety give rise to the conclusion that political democracy, in the sense of active participation in public office, was truly a characteristic of the Fair Play territory. Nine different men served on the three-man Committee of Safety from February of 1776 to February of 1777, three new members being elected semi-annually. Except for the two or three years following the Great Runaway, the three members of the Fair Play tribunal were elected annually.

In conclusion, then, what can be said regarding the leadership of the Fair Play settlers? Except for the dangers from Indian hostility, which were compounded by the settlers' limited manpower, the leadership was more than adequate, one might say eminently successful, in meeting the needs of the frontier. It enacted law, interpreted it, and saw to it that the law was carried out on every political level with which the West Branch pioneers had contact. In short, it gave them a government of, by, and for themselves. This was *real* representation by spokesmen of a small community, very different from *virtual* representation in a distant Parliament, from which their independence had now been declared.

FOOTNOTES:

[1] Edwin MacMinn, *On the Frontier with Colonel Antes* (Camden, N. J., 1900). This book is a mosaic of primary and secondary sources dealing with the entire area, rather than a standard biographical treatment of its particular subject.

[2] Merle Curti, *The Making of an American Community: A Case Study of Democracy in a Frontier County* (Stanford, 1959), pp. 417-441. This entire fifteenth chapter is devoted to both a quantitative and qualitative analysis of "leadership."

[3] Wealth, i.e., liquid assets, was not necessarily a criterion on this agrarian frontier, where a man's assets were not easily convertible into cash. Hence, property was the main economic source of value.

[4] The records of the first State and county officers are found in the *Pennsylvania Archives*, Second Series, III, 768-772, and John Blair Linn, *Annals*

of *Buffalo Valley* (Harrisburg, 1877), pp. 558-563. Some data are also available in Linn, *History of Centre and Clinton Counties*.

The tax listings were located in the *Pennsylvania Archives*, Third Series, XIX, 437, 468, 557, and 618-622. Mrs. Russell also collected a listing for the years 1774 to 1800 for Northumberland County. Court records, pension claims, Meginness' *Otzinachson* (1889) and *Frontier Forts of Pennsylvania* provided the remaining data.

[5] MacMinn, *On the Frontier with Colonel Antes*, p. 19.

[6] *Ibid.*, pp. 20-21. MacMinn also calls the senior Antes the father of the Unity Conferences of Christian Endeavor and presents a copy of a letter written on Dec. 17, 1741, calling for a New Year's Day meeting of Christians in Germantown in 1742 in support of this statement. Of his minor judicial role, MacMinn offers this account published in Christopher Saur's *Pensylvanische Berichte* for May 16, 1756: "Were such magistrates more numerous, the poor would not have cause to complain and to weep over gross injustices which they have to suffer because persons are respected."

[7] *Ibid.*, p. 248.

[8] Meginness, *Otzinachson* (1889), p. 484. See also, MacMinn, *On the Frontier with Colonel Antes*, p. 324.

[9] MacMinn, *On the Frontier with Colonel Antes*, pp. 316, 413; and *Pennsylvania Archives*, Second Series, III, p. 769.

[10] Linn, *History of Centre and Clinton Counties*, p. 472.

[11] "Eleanor Coldren's Deposition," pp. 220-222.

[12] Linn, *Annals of the Buffalo Valley*, p. 95; and Meginness, *Otzinachson* (1889), p. 473.

[13] MacMinn, *On the Frontier with Colonel Antes*, p. 316.

[14] Linn, *History of Centre and Clinton Counties*, p. 473.

[15] *Pennsylvania Archives*, Second Series, III, 770.

[16] MacMinn, *On the Frontier with Colonel Antes*, pp. 416-420. See also Alex. Patterson to John Dickinson (October 28, 1783) in the Zebulon Butler Papers, Wyoming Historical and Geological Society, Wilkes-Barre, Pa. Patterson, speaking of Antes' failure to arrest Zebulon Butler, said of Antes: "The Sheriff has not done his duty nor do I believe he intends it being. A party man among which I am sorry to see so little principels of humanity or honnor, Men who wish for popularity at the Expense of the Propperty and perhaps blood of their fellow Citizens...."

[17] *Pennsylvania Archives*, Second Series, III, 768-772, and MacMinn, *On the Frontier with Colonel Antes*, pp. 330, 395, and 413.

[18] *Pennsylvania Archives*, Second Series, III, 769.

[19] *Ibid.*, p. 771.

- [20] *Ibid.*, pp. 769, 771; Linn, *History of Centre and Clinton Counties*, pp. 473-474; and *Colonial Records*, XI, 367.
- [21] *Pennsylvania Archives*, Third Series, XIX, 618.
- [22] MacMinn, *On the Frontier with Colonel Antes*, pp. 12 and 420.
- [23] *Pennsylvania Archives*, Third Series, XIX, 437.
- [24] *Colonial Records*, XII, 137.
- [25] *Fithian: Journal*, p. 81.
- [26] Linn, *History of Centre and Clinton Counties*, p. 473. The full account of Hamilton's military service is given in the Hamilton Pension Papers in the Wagner Collection, Muncy Historical Society. Hamilton had also been a member of the group commissioned to lay out a road from Bald Eagle Creek to Fort Augusta. Linn, *History*, p. 472.
- [27] *Ibid.*, p. 474, and Meginness, *Otzinachson* (1889), p. 474.
- [28] *Pennsylvania Archives*, Second Series, III, 770.
- [29] Linn, *History of Centre and Clinton Counties*, p. 472.
- [30] *Ibid.*, p. 473.
- [31] *Ibid.*; Yeates, *Pennsylvania Reports*, I, 498; and Russell, "Signers of the Pine Creek Declaration of Independence," p. 4.
- [32] Becker, *Beginnings of the American People*, p. 180.
- [33] *Pennsylvania Archives*, Second Series, III, pp. 217-218. The petition was dated June 21, 1778. The situation had been further complicated by the enlistment the previous summer of many of the able-bodied men to aid Washington in Cambridge, Massachusetts. These men, "early in the service of their Country from the unpurchased land on the West Branch of the River Susquehanna," deprived the valley of its available manpower.
- [34] See [Chapter Two](#) for a fuller description of the Great Runaway.
- [35] Helen Herritt Russell, "The Great Runaway of 1778," *The Journal of the Lycoming Historical Society*, II, No. 4 (1961), 3-10. This article contains a few additions to an article by the same name by Mrs. Russell published in *The Northumberland County Historical Society Proceedings and Addresses*, XXIII (1960), 1-16.
- [36] *Pennsylvania Archives*, Second Series, III, 518-522.
- [37] Smith, *Laws*, II, 195.
- [38] Robert Fleming and Frederick Antes, as previously noted, had been elected in 1777 and 1784, respectively.
- [39] Dunaway, *History of Pennsylvania*, pp. 176, 196. Of these fifty-eight, twenty-eight came from the frontier counties of York, Berks, Bedford, Cumberland, and Northumberland.

[40] Wallace, *Pennsylvania: Seed of a Nation*, pp. 105-106.

[41] As previously noted, Henry Antes had been appointed judge of the Court of Quarter Sessions in 1775, and Frederick Antes and Fleming had been elected in 1780 and 1785, respectively. Frederick Antes was president judge.

[42] *Pennsylvania Archives*, Second Series, III, 770.

CHAPTER SEVEN

Democracy on the Pennsylvania Frontier

One of the most often used and least understood words in the American lexicon is the term "democracy." In the colonial period, it was seldom used, except in denunciation. However, properly defined, it can help us to evaluate the Fair Play settlers in some understandable context. Etymologically stemming from two Greek words, *demos*, meaning "the people," and *kratos*, meaning "authority," democracy means "authority in the people" or, we can say, "self-determination." By self-determination is meant the right of the people to decide their own political, economic, and social institutions.

Self-determination in its basic, or political, context can best be explained through James Bryce's definition of a democracy. Lord Bryce said:

The word Democracy has been used ever since the time of Herodotus to denote that form of government in which the ruling power of a State is legally vested, not in any particular class or classes, but in the members of the community as a whole.^[1]

Analyzing the key phrases in Bryce's statement, we can best clarify the meaning of political self-determination.

(1) "The ruling power of a State." Self-determination, as it is employed here, concerns the right of the people of Fair Play society to determine their own political institutions. Fair Play society did not constitute a state, but it was a political community, and in that sense Bryce's definition applies. Living outside the legal limit of settlement of Province and Commonwealth, these people could not obtain legal authority for their own rule, so, following the prevalent theory of the social compact, they formed their own government. The result was the annual election, by the people, of the Fair Play tribunal, the source of final authority in the Fair Play territory.

(2) "Is legally vested." Fair Play society was actually illegal; that is to say, the settlements were made in violation of the laws of the Province. However, the extra-legal government which was formed was created by, and responsive to, the popular will. Since the actual authority for rule was vested in the people, it can be considered as legal for the Fair Play community.

(3) "In the members of the community." The members of the Fair Play community, as previously noted, were not strictly resident within the geographic confines of the Fair Play territory. Communities, it has been said, are total ways of life, complexes of behavior composed of all the institutions necessary to carry on a complete life, formed into a working whole.^[2] Self-determination, as it is used here, suggests that the community as a whole participates in the decision-making process.

(4) "Not in any particular class or classes, but in the members of the community as a whole." Bryce's definition here extends the interpretation of "the members of the community." Obviously, if any particular class or classes were vested with the final political authority, then the people as a whole, that is, the Fair Play community, would not exercise self-determination.

The concept of self-determination, carried to an economic context, suggests that the people of the Fair Play community had the right to determine their own economic institutions. This means that they had the right to choose their own portion of land, subject, of course, to the will of the existing community, and to utilize it according to their own needs and interests. This meant that no undemocratic and feudalistic practices, such as primogeniture and entail, could exist. Granted that this is self-determination rather broadly interpreted in an economic context, the question is whether or not these people had the right to choose their own plot of ground and work it as they saw fit, unhampered by any preordained system of discrimination or restriction.

Socially, the idea of self-determination is applied to evaluate the religious institutions, the class structure, and the value system. The application concerns, once again, the authority of the people to determine their own social patterns. It questions whether or not any Fair Play settler could

worship according to the dictates of his own conscience. It evaluates the class structure to ascertain whether or not a superimposed caste system ordered the class structure of Fair Play society, rather than a community-determined system in which choice and opportunity provided flexibility and mobility. And finally, it considers whether or not the values of the Fair Play settlers were inculcated by some internal clique or external force, rather than being developed by the members of the community themselves.

Did democracy exist on this Pennsylvania frontier? Was the Fair Play system marked by real representation and popular control? These questions must be answered before any judgment can be made concerning political democracy in the West Branch Valley.

Was there equality of economic opportunity on this farmers' frontier? Was land available to all who sought it, and on equal terms? These problems need to be considered before we can attach the label "democratic" on the economic life of the Fair Play settlers.

If democracy prizes diversity, as some claim, were the diverse elements of Fair Play society equally recognized?^[3] Was the class structure open or closed, mobile or fixed? Did the mixed national stocks enjoy religious freedom? One needs to inquire into each of these areas prior to a final evaluation of Fair Play society.

A useful tool for evaluating political democracy can be found in Ranney and Kendall's *Democracy and the American Party System*.^[4] It suggests the use of popular sovereignty, political equality, popular consultation, and majority rule as criteria for democracy. Accepting these criteria as basic principles of democracy, we can begin to analyze the democratic character of the Fair Play system.

A political system based upon popular sovereignty is one in which the final authority to rule is vested in the people. The question of who the people are is still before us today. In the fullest sense, popular sovereignty means rule by all the people, but in colonial America the "people" was a much more qualified term. It generally signified white, Protestant, adult males who were property owners. In the Fair Play territory, the ruling "people" were "the whole body" of adult male settlers who annually elected their governing tribunal and participated in the decisions of its "court."^[5]

Lacking an established church, or any church for that matter, and possessing property lying beyond legal limits of settlement, the Fair Play settlers could not have enforced religious or property qualifications for voting, even if they had so desired, and there is no evidence to indicate that they did. Furthermore, the frequency of elections, which were held annually, and the principle of rotating the offices among the settlers tended to emphasize the sovereignty of the people in this part of the West Branch Valley. The right of suffrage, it is true, had not been extended to women, but this was the rule throughout colonial America. Popular sovereignty, in its qualified eighteenth-century sense, was a basic characteristic of the political democracy which existed on this frontier.

Political equality, that is "one man, one vote," was practiced by the pioneers of the West Branch. There was no additional vote given to the large property owners; in fact, as the tax lists indicate, there were no large property owners within the geographic limits of the Fair Play territory. Thus, each man, rather than a small ruling oligarchy, had the opportunity to participate in the decision-making process of the Fair Play community.

In a democratic society, the people must be consulted by the policy makers prior to their exercise of the power of decision. Among the Fair Play settlers this basically democratic principle was vividly demonstrated in the case of disputed land titles, the primary concern of the Fair Play men. In both Eleanor Coldren's deposition in behalf of her deceased husband and in the Huff-Latcha case, it was established that the unanimous consent of the prospective neighbors had to be obtained before a favorable decision was rendered in behalf of the land claimants.^[6] The frequency of elections, combined with the ease and regularity of assembly, provided the settlers with the opportunity to become acquainted with the circumstances of their problems. Here again, the paucity of specific data prompts us to some speculation regarding the nature and location of these meetings. However, it must be added, the Hamilton pension papers and the petitions to the Supreme Council in Philadelphia refer specifically to meetings at Fort Horn and Fort Antes.^[7] Direct representation based upon popular consultation was a distinct trait of the political democracy in the Fair Play territory.

The fourth principle of political democracy, majority rule, is probably the most controversial and confusing element of the combination. Absolute

majority rule, its critics tell us, means majority "tyranny" and minority acquiescence, despite the fact that this fear is not empirically demonstrable.^[8] The majority ruled absolutely in the Fair Play territory just as it did in the New England town meeting, and with similar results. However, it never restricted suffrage or public office to particular religious or nationality groups. Scotch-Irish, English, and German settlers participated equally in the political process. However, as we pointed out in the last chapter, the English did not enjoy leadership roles in the community.^[9] Whether this was by accident or by design is difficult to ascertain. Perhaps it was just a further demonstration of the absolute rule of the majority with the Scotch-Irish and the Germans combining to form that majority.

The nature of community implies shared interests and the prevailing interest in this frontier community was survival. Necessity undoubtedly caused the English minority to accept the Scotch-Irish and German leadership, because forbearance meant survival. Conversely, the Scotch-Irish and Germans could, and did, support the English in positions of responsibility on the basis of their mutual needs and their desire to maintain the community.^[10] Not only physical survival but also economic survival were mutually desirable to Fair Play community members, and the decisions of the court were rendered on the basis of equal justice.^[11]

As long as minority feelings are given free expression in an atmosphere of mutual concern, there is little danger of misinterpretation by the majority. Such a climate prevailed in the meetings of the Fair Play settlers and the sessions of the Fair Play men; at least, there is no available evidence to the contrary.

The nature and role of consensus in the Fair Play territory hinged upon what was best for the community. Fundamental agreement was reached, based upon mutual need apparent from open discussion. In the event of conflict, forbearance, which was in the best interest of the community, could be expected.^[12] An examination of the appearance dockets of the county courts for Northumberland and Lycoming counties suggests, however, that this consensus did not extend to questions of land titles. Nevertheless, the all-inclusiveness of signatures on petitions to the Supreme Executive Council for protection from the Indians and for the recognition of the right of pre-emption, and the general response of the Fair Play settlers to calls for troops

for the Continental Army indicate to some degree the nature and extent of that consensus.^[13]

Democracy, that is self-determination, did exist among the Fair Play settlers of this Pennsylvania frontier. There was no outside authority which legislated the affairs of the pioneers of the West Branch. They selected their own representatives, the Fair Play men, and maintained their control over them, a control which was assured both by annual elections and the full participation of the settlers in the decision-making process. The will of the majority prevailed, and that will was expressed through a community consensus reached by the full participation of political equals. It was neither radical nor revolutionary, but it was typical of the American colonial experience. The Fair Play settlers had not "jumped the gun" on independence, although they participated in the movement. They did not rebel against a ruling aristocracy. They simply governed themselves.

Self-determination, as we have already stated, includes the right of the people to decide upon their own economic institutions. This right was asserted on the farmers' frontier of the West Branch. With free land available to those who worked it, provided the neighbors and the Fair Play men approved, economic opportunity was shared by the Scotch-Irish, English, German, Scots, Irish, Welsh, and French settlers.^[14] This sharing, in itself, was a demonstration of economic democracy.

The labor system, too, was an affirmation of the democratic ideal. Because free land was available in the Fair Play territory, neither slavery nor involuntary servitude existed in this region, although it was found in immediately adjacent areas.^[15] Free labor, family labor to be more exact, was the system employed in this portion of the West Branch Valley. Noticeable, too, was the spirit of cooperation in such enterprises as cabin-raising, barn-raising, harvesting, cornhusking and the like. This mutual helpfulness was characteristic of the frontier and obviated the necessity of any enforced labor system.

Tenancy was occasionally practiced in the Fair Play territory, although it appears that the tenant farmer suffered no feelings of inferiority, if the following case is any example:

... Peter Dewitt ... leased the land in question to William McIlhatton as a Cropper, who took possession of it after Huggins left it: That the Terms of the Lease were that McIlhatton should possess the Land about two or three Years, rendering hold of the Crops to be raised unto Peter Dewitt, who was to find him a Team and farming Utensils: That the Lease was in Writing and Lodged with a certain Daniel Cruger who lived in the Neighborhood at that Time.^[16]

Sometime later, McElhattan obtained the lease from Cruger and sold "his right" to William Dunn, claiming that Dewitt had failed to fill his end of the bargain, despite the fact that Eleanor Coldren gave evidence to the contrary. When challenged for selling Dewitt's land, McElhattan responded in a fashion which demonstrates the independent spirit of this lessee. He said "that he only sold his Right to Dunn and if Dunn would be such a fool as to give him forty or fifty pounds for Nothing He McIlhatton would be a greater fool for not taking it—for that Dunn knew what Right he (McIlhatton) had."^[17] Obviously, if this case is indicative, and there were others, share-cropping did not induce attitudes of subservience.

Religious freedom, in which Pennsylvania ranked second only to Rhode Island in colonial America, was enjoyed by the frontiersmen of the West Branch. It might, however, be better described as a freedom from religion rather than a freedom of religion. With no system of local taxation and no regular church, there was no establishment of religion. Nevertheless, this is not to suggest that religious qualifications were not applied to prospective landowners, potential voters, or members of the Fair Play community. Religious liberty had been guaranteed to Pennsylvanians in the Charter of Privileges of 1701, and no religious test was required for suffrage in the new State constitution in 1776. Belief in one God and in the inspiration of the Scriptures was required for members of the assembly, but bona fide Fair Play settlers were disqualified on geographic grounds anyhow.^[18]

There is no record of religious discrimination among the Fair Play settlers. In addition to the absence of a regular church, this was probably due, in part, to the religious composition of the population. The pioneers of the West Branch were Protestant Christians, and if denominational in their approach, either Presbyterian or Methodist. The friction between

Methodists and Presbyterians appears to have been doctrinal rather than political or social.^[19]

The comparative economic equality in an area of free land had a democratizing influence on the social class structure. This three-class stratification, composed of property owners distinguished by their morality, other property owners, and tenants, was an open-class system marked by a noticeable degree of mobility. Fair Play settlers who began as tenants could, and did, become property owners.

Since no one in the Fair Play territory could claim more than 300 acres under the Pre-Emption Act of 1785, there was little chance for the development of an aristocratic class.^[20] It was a society of achievement in which the race was open to anyone who could acquire land, with the approval of his neighbors and the Fair Play men, and "improve" it. There is no evidence to indicate that the availability of land was restricted because of national origin, religious affiliation, or a previous condition of servitude. This is not to say that the judgments of neighbors may not have been based upon these criteria, but, at least, there is no record of such discrimination. The Fair Play settlers were eighteenth-century souls and romantic egalitarianism was not a characteristic of such persons. The frontier, however, broke "the cake of custom" and the necessities of that experience contributed to the development of democracy as we have defined it.

A recent writer, analyzing the "democracy" of the Scotch-Irish, made his evaluation on the basis of the contemporary French definition of liberty, equality, and fraternity.^[21] On this basis, the Scotch-Irish fail; but if we equate democracy with self-determination, the Scotch-Irish and the Fair Play settlers of the West Branch Valley can be seen as thoroughgoing democrats.

The value system of the pioneers on the West Branch of the Susquehanna reflected, at least in part, the democracy of the frontier. The spirit of cooperation and mutual helpfulness was a prime characteristic of this frontier, as it was of others. Cabin-raising, barn-raising, and the cooperative enterprises at harvesttime enhanced the spirit of community and brought the settlers together in common efforts, which demonstrated their equality. Individualism could be harnessed for the common good, and such

was the case among the Fair Play settlers in the struggle for economic survival.

Faith, patriotism, and temperance were not necessarily democratic, but they also were part of the value system of the Fair Play settlers. In matters of faith, there was a certain "live and let live" philosophy, which had democratic implications. Despite the conflict between Methodists and Presbyterians, the members of the Presbyterian majority made their homes available to Methodist preachers.^[22] This demonstrated a willingness at least to hear "the other side." Such an atmosphere is conducive to democracy, if not to conversion. There is little doubt, however, that this receptivity was due in part to the absence of any "regular" church or preacher. Here again, the necessities of the frontier made "democrats" of its occupants.

The most intense patriots are often ethnocentric and chauvinistic. The Fair Play settlers were such patriots, according to one journalist.^[23] However, the patriotism of the eighteenth century had not reached the level of concern for all mankind which finds expression today. The pioneers of the West Branch were democrats in an age not yet conditioned to democracy.

Temperance, particularly with regard to the use of spirited beverages, usually implies abstinence, which is certainly not democratic if it is applied in a formally imposed prohibition without any local option. Abstinence by choice, however, is purely a matter of self-determination. But in an area where drinking was a commonly accepted practice, such as the frontier, the term signifies moderation. In the Fair Play territory drinking, but not drunkenness, was condoned. The spirit of the frontier, or the use of it, was not incompatible with democracy.

Frontier values, for the most part then, were democratic in tendency. Noteworthy for their attitude of community cooperation and mutual helpfulness, supported by a faith which could not afford to be exclusive, temperate in their personal habits, particularly in the use of alcohol, the patriots of the Fair Play territory looked to a future filled with promise and opportunity for all the diverse elements of their society. This is the democracy which the frontier nurtured. It flourished in the West Branch Valley.

In summary then, was self-determination the central theme in the Fair Play territory? Did the Fair Play settlers truly determine their own political, economic, and social institutions? The available data suggest that they did.

The democracy of the Fair Play settlers encompassed popular sovereignty, political equality, popular consultation, majority rule, religious freedom, an open class structure, free land, free labor, and a value system whose dominating feature was mutual helpfulness. The democracy of Fair Play was basically the fair play of democracy.

Observable in this atmosphere were the traits of a developing American character, traits which the frontier historian, Frederick Jackson Turner, defined as democratic.^[24] These included the composite nationality of a population of mixed national origins; the self-reliance which the new experience of the frontier developed; the independence, both of action and in spirit, which the relative isolation of the environment promoted; a rationalistic, or pragmatic, approach to problems necessitated by circumstances lacking in precedents for solution; and perhaps a growing nationalism, marked by an identification with something larger than the mere Provincial assembly, something existing, but not yet realized, the American nation.

These traits, in conjunction with Turner's thesis, are a major concern of the final chapter. That chapter will provide an evaluation of frontier ethnography as a technique for testing the validity of this interpretation of Turner's thesis on the Fair Play frontier of the West Branch Valley.

FOOTNOTES:

[1] Quoted in Austin Ranney and Willmoore Kendall, *Democracy and the American Party System* (New York, 1956), pp. 23-24.

[2] Don Martindale, *American Society* (New York, 1960), p. 105.

[3] National Education Association, Educational Policies Commission, *The Education of Free Men in American Democracy* (Washington, 1941), pp. 25-26.

[4] Pp. 18-39.

[5] Smith, *Laws*, II, 195.

[6] "Eleanor Coldren's Deposition," pp. 220-222; Lycoming County Docket No. 2, Commencing 1797, No. 32; *see also*, Chapter Two, *passim*.

[7] *Pennsylvania Archives*, Second Series, III, 217; and the Muncy Historical Society, Wagner Collection, Hamilton Papers.

[8] Ranney and Kendall, *Democracy and the American Party System*, p. 47. The authors argue here that the history of town meetings in America and the Parliamentary system in Great Britain shows hundreds of years without majority tyranny or civil war.

[9] Chapter Six, pp. 78, 84.

[10] *Pennsylvania Archives*, Second Series, III, 770. For example, John Chatham, an English miller, was elected coroner in 1782, a minor role to be sure, but he was supported.

[11] Smith, *Laws*, II, 196-197. In *Sweeney vs. Toner*, an Englishman, Toner's property right was upheld because his absence was for military service, despite the fact that Sweeney, a Scotch-Irishman, was a majority representative.

[12] Linn, "Indian Land and Its Fair Play Settlers," p. 424. The case cited here, *Huff vs. Satcha*, saw the use of militia to drive off a landholder whose title had been denied by the Fair Play men.

[13] *Pennsylvania Archives*, Second Series, III, 217-218, 417-418, and 518-522. On page 417, fifty-three officers and soldiers are described as "early in the service from the unpurchased land." Thirty-nine petitioners (p. 520) sought pre-emption, a claim repeated over two years later by some fifty-three settlers. The petition to the Supreme Council (p. 217) for protection from the Indians in 1778 prior to the Great Runaway bore forty-seven names.

[14] *See* Chapter Two for a demographic analysis of the Fair Play settlers.

[15] Clark, "Pioneer Life in the New Purchase," p. 28.

[16] "Eleanor Coldren's Deposition," p. 222.

[17] *Ibid*.

[18] *See* Chapter One for the geographic bounds of the Fair Play territory. The Fair Play territory did not come under State jurisdiction until the second Stanwix Treaty in 1784. Regardless, it must be remembered that settlers on the south bank of the Susquehanna actually participated in the political, economic, and social life of the community. The fact that these participants were often community leaders was pointed out in Chapter Six.

[19] *See* the footnotes in Chapter Five referring to *The Journal of William Colbert*.

[20] Smith, *Laws*, II, 195.

[21] Leyburn, *The Scotch-Irish*, pp. 311-314.

[22] *The Journal of William Colbert*. Colbert had been received at Annanias McFaddon's (Aug. 20, 1792, Sept. 4, 1793) and John Hamilton's (July 23, 1792,

Aug. 20, 1793), where he both preached and lodged. Both were Presbyterians, and, as noted earlier, Colbert expressed grave doubts concerning his efforts there.

[23] "Diary of the Unknown Traveler," p. 307.

[24] Turner, *Frontier and Section*, p. 5.

CHAPTER EIGHT

Frontier Ethnography and the Turner Thesis

In the first chapter of his recent study, *The Making of an American Community*, Merle Curti suggests that "less is to be gained by further analysis of Turner's brilliant and far-ranging but often ambiguous presentations than by patient and careful study of particular frontier areas in the light of the investigator's interpretation of Turner's theory."^[1] This study was undertaken with just such a purpose in mind. In addition, it is hoped that this investigation will give some insight into the value of ethnography and its usefulness as an analytic technique in studying the frontier.

By definition, ethnography is "the scientific description of nations or races of men, their customs, habits, and differences."^[2] Frontier ethnography is the scientific description of the full institutional pattern of a particular group of people, located specifically on a certain frontier, within a certain period of time. That institutional pattern is described from the analysis of data concerning the political and economic systems, and the social structure, including religion, the family, the value system, social classes, art, music, recreation, mythology, and folklore. Also, as noted in the first two chapters of this study, geographic and demographic data have been analyzed in an attempt to picture the area under observation and the people who inhabited that region. It is believed that these various data present a fuller view of the "way of life" of these people than the earlier politico-military accounts of nineteenth-century historians.

Of course, there are certain limitations in this particular analysis. This study is not meant to be typical of the frontier experience or necessarily representative of frontier communities. However, it would have broader implications if a similar study were made for Greene County in western Pennsylvania, where a group composed mainly of Scotch-Irish Presbyterians also set up a "Fair Play system."^[3] Furthermore, it is my interpretation of Turner's thesis which is being tested, not the validity of the thesis.

Despite the fact that the Fair Play settlers and their "system" have been referred to by both Pennsylvania and frontier historians in the twentieth century, neither the settlers nor their system has been studied in depth.^[4] Meginness and Linn, the foremost historians of the West Branch, were both nineteenth-century writers, and, unfortunately, twentieth-century scholars have not considered the Fair Play settlers worthy of their study. Biographical studies are limited to the work of Edwin MacMinn on Colonel Antes, completed in 1900. As a result, there has been a definite need for an investigation collating the researches of these earlier historians and based upon the available primary data. This study is an attempt to fill the void.

The seeming paucity of primary source materials is a further complication to the student of Fair Play history. However, letters, journals, diaries, probate records, tax lists, pension claims, and court records offer adequate data to the inquiring historian, although the extra-legal character of the settlement seriously reduced the public record. Nevertheless, the broad scope of ethnography provides the kind of study for which the data supply a rather full picture of life on this frontier. Political, economic, and social patterns are discernible, although no day-by-day account for any extended period has been uncovered.

This ethnographic analysis demonstrates the merits of the "civilization approach" to history. Examining every aspect of a society, it provides more than a mere "battles and leaders" account. The result gives insight into a "style of life" rather than a chronology of highlights. This study has investigated the full institutional structure of the Fair Play frontier, evaluating that structure in terms of a developing democracy, or, at least, of democratic tendencies.

American civilization was a frontier civilization from the outset, and that frontier experience was significant in the development of American democracy. Frederick Jackson Turner's frontier thesis, which has probably inspired more historical scholarship than any other American thesis, stated that "the existence of an area of free land, its continuous recession, and the advance of American settlement westward, explain American development."^[5] That development took place on successive frontiers stretching from the Atlantic to the Pacific Coast over a period of almost

three centuries. Turner's second frontier, the Allegheny Mountains, marked the farmers' frontier of the Fair Play settlers of the West Branch Valley.

It was on the frontier, according to Turner, that the "true" traits of American character emerged; its composite nationality, its self-reliant spirit, its independence of thought and action, its nationalism, and its rationalistic approach to the problems of a pioneer existence. The Fair Play settlers, American frontiersmen, suggested some of these traits in their character. Recognizing the data limitations of this study, the evidence indicates some validation of this test of Turner's model. However, it would be presumptuous indeed to conclude that this analysis offers a complete demonstration of the impact of the frontier in the development of traits of character which Turner classified as American.

The composite nationality of the Fair Play settlers is particularly evident from the demographic analysis offered at the beginning of this study.^[6] Seven different national stock groups appeared on this frontier: Scotch-Irish, English, German, Scots, Irish, Welsh, and French. Here, indeed, was "the crucible of the frontier," in which settlers were "Americanized, liberated, and fused into a mixed race."^[7]

The legendary self-reliance of the frontiersman is not without some basis in fact. The nature of the frontier experience itself was conducive to its development. Its appearance among the Fair Play settlers is implied in various contexts. Politically, it is suggested in the creation of the Fair Play men, the annual governing tribunal, an extra-legal political agency in this extra-Provincial territory. Economically, it is intimated in the image of the frontier farmer tackling the wilderness with rifle and plow and the unbounded determination to make a better life for himself and his family. Socially, the self-reliance of these doughty pioneers is indicated in the continuation of their religious practices and worship, despite the absence of any organized church. Their self reliance is indicated, as well, in the flexibility of a social structure whose main criterion was achievement, a society in which "what" you were was more important than "who" you were. These examples are, of course, only brief glimpses of the elusive trait of self-reliance which Turner considered typical of the frontier.

Independence, or the ability to act independently, was a characteristic frontier trait, according to Turner. The Fair Play settlers presented some contradictions. It is true that they organized their own system of government and the code under which it operated. However, their key leaders lived on the periphery; and the settlers petitioned the Commonwealth government for assistance in the vital questions of defense and pre-emption rights.^[8] The Fair Play settlers were generally independent, a condition promoted by the necessities of frontier life; but, obviously, they were not isolated.

It is difficult to assess the nationalizing influence of this particular frontier. In the first place, aside from the Second Continental Congress, there was no national government during most of the Fair Play period. The Articles of Confederation were not ratified until 1781, and Fair Play territory was opened to settlement after the Treaty of Fort Stanwix in 1784. Furthermore, the patriotism of the Fair Play settlers seems to reflect an ethnocentric pride in their own territory and an exaggerated interpretation of its significance to the developing nation.^[9] Their patriotism was apparently for an ideal, liberty, to which they were devoted, having already enjoyed it in a nation only recently declared, but yet to be recognized. And, for its support, there had been a rush to the colors by these settlers "beyond the purchase line."^[10] The "real American Revolution," as John Adams described it, was "in the minds and hearts of the people," and it was "effected before the war Commenced."^[11] That revolution had already occurred in the Fair Play territory prior to the firing of "the shot heard round the world" on Lexington green.

The frontier experience had a profound influence on the development of the American philosophy of pragmatism. Turner claimed that it was "to the frontier" that "the American intellect owe[d] its striking characteristics."^[12] And the Fair Play settlers showed that

... coarseness and strength combined with acuteness and inquisitiveness; that practical, inventive turn of mind, quick to find expedients; that masterful grasp of material things, lacking in the artistic but powerful to effect great ends; that restless, nervous energy; that dominant individualism, working for good

and for evil, and withal that buoyancy and exuberance which comes with freedom....^[13]

The frontiersman of the West Branch was a free spirit in a free land, a doer rather than a thinker, more concerned with the "hows" than the "whys" of survival. This practical approach to problems can be seen in the homes he built, the tools he made, the clothes he wore, the political and social systems under which he operated, and the set of values by which he was motivated. The development of these characteristic American traits owed much to the frontier and the new experiences which it offered.

This ethnographic analysis of the Fair Play settlers of the West Branch Valley has attempted to present a clearer picture of the "style of life" on this particular frontier and, in so doing, to suggest a further technique for the frontier historian. There are, no doubt, certain defects in this specific study, but the fault lies with the limitations of the data rather than the technique. The scope of this investigation has carried into questions of geography, demography, politics, economics, social systems, and leadership. Unfortunately, the frontier had not yet provided the leisure essential to artistic and aesthetic pursuits. Consequently, these areas were given a limited treatment. Furthermore, the mythology and folklore of this valley offered little of record. However, the breadth of this analysis has furnished evidence of the existence of democracy on this frontier and, thus, support for Turner's thesis, or at least for this interpretation of it.

The geographic analysis has clarified the question of the Tiadaghton, demonstrating that Lycoming Creek, rather than Pine Creek, was the true eastern boundary of the Fair Play territory. The substantial destruction of an erroneous legend has been the main contribution of the geographic part of this study.^[14] It is now clear that the Fair Play territory extended from Lycoming Creek, on the north side of the West Branch of the Susquehanna River, to the Great Island, just east of Lock Haven. This frontier region was beyond the legal limit of settlement of the Province and the Commonwealth from 1769 to 1784. Hence, within its limits was formed the extra-legal political system known as Fair Play.

The demographic portion of this study has added to the undermining of the frontier myth of the Scotch-Irish. The evidence presented here indicates that

it was the frontier, rather than national origin, which affected the behavior of the pioneers of the West Branch Valley. The Fair Play settlers, a mixed population of seven national stock groups, reacted similarly to the common problems of the frontier experience. In one important exception, the Fair Play system itself, there is, however, an apparent contradiction. Since no account of any "fair play system" has turned up in the annals of the Cumberland Valley, the American reservoir of the Scotch-Irish, it seems quite probable that the "system" originated in either Northern Ireland or Scotland, or else on the frontier itself. This probability offers good ground for further study, particularly when the existence of a similar "system" in Greene County, which was found in conjunction with this investigation, is considered.^[15] If the Fair Play system originated on the frontier, why did not it also appear on the Virginia and Carolina frontiers where the Scotch-Irish predominated? Regardless, the lack of data corroborating the American origin of the Fair Play system leads to the conclusion that the germ of this political organization was brought to this country by the Scotch-Irish from their cultural heritage, and that those elements were found usable under the frontier conditions of both central and southwestern Pennsylvania. If so, the politics of "fair play" will add to, rather than detract from, the myth of the Scotch-Irish.

This study has also brought forward the first complete account of court records validating the activities of the Fair Play men. Mainly concerned with the adjudication of land questions, this frontier tribunal developed an unwritten code which encompassed the problems of settlement, tenure, and ejectment. Subsequently reviewed in the regular courts of the counties of which the Fair Play territory became a part, these cases provide substantial evidence of the existence of a "system" as well as insight into the manner of its operation. The fairness of the Fair Play system is marked by the fact that none of the decisions of its tribunal was later reversed in the established county courts. Supplemented by the Committee of Safety for Northumberland County and augmented by peripheral leaders, who gave them a voice in the higher councils of the State, the Fair Play men and their government proved adequate to the needs of the settlers, until all were driven off in the Great Runaway of 1778.

Some corroboration for the legendary tale of a "Fair Play Declaration of Independence" was found in the course of this study. Although consisting,

in the main, of accounts culled from the records of Revolutionary War pension claimants made some eighty years after the event, the evidence is that of a contemporary.^[16] However, the most common objection to this conclusion, that the Fair Play declaration was merely the reading of a copy of Jefferson's Declaration, is unsubstantiated by the archival descriptions.^[17] Perhaps the Fair Play declaration is apocryphal, but, lacking valid disclaimers, the Hamilton data offer some basis for a judgment. It is the tentative conclusion of this writer that there was such a declaration on the banks of Pine Creek in July of 1776.

The Fair Play territory was truly "an area of free land" in which a "new order of Americanism" emerged.^[18] Individualistic and self-reliant of necessity, the pioneers of this farmers' frontier rationally developed their solution to the problem of survival in the wilderness, a democratic squatter sovereignty. With land readily available and a free labor system to work it, provided that the family was large enough to assure sufficient "hands," these agrarian frontiersmen not only cultivated the soil but also a free society. And their cooperative spirit, despite their mixed national origins, was markedly noticeable at harvesttime. From such spirit are communities formed, and from such communities a democratic society emerges.

This analysis has not only described the geography and demography, the politics and economics of the Fair Play settlers; it has also examined the basis and structure of this society, including the value system which undergirded it. The results have pictured the religious liberty extant in a frontier society isolated from any regular or established church, a liberty of conscience which left each man free to worship according to the dictates of his own faith. This freedom, this right to choose for himself, made the Fair Play settler surprisingly receptive to other groups and their practices, practices which he was free to reject, and often did.^[19] This analysis has also pointed up the class structure and its significance in promoting order in a frontier community. And finally, an examination of the value system of these Pennsylvania pioneers has provided an understanding of why they behaved as they did.

The last major aspect of this investigation concerned the nature of leadership. Determined by the people, and thus essentially democratic, it had certain peculiar characteristics. In the first place, the top leaders tended

to come from the Fair Play community in its broadest social sense, but not from the Fair Play territory in its narrow geographic sense.^[20] Secondly, the political participation of the Fair Play settlers, if office-holding is any criterion, emphasizes the high degree of involvement in terms of the total population.^[21] And last, this leadership appeared to be overextended when faced with the problem of defending its own frontier and the new nation which was striving so desperately for independence. Consequently, it was forced to turn to established government for support. This may have been the embryonic beginning of the nationalism which the frontier fostered in later generations.

What then, is the meaning of this particular study, an ethnographic interpretation of Turner's thesis? Turner himself, gave the best argument for ethnography. He said that

... the economist, the political scientist, the psychologist, the sociologist, the geographer, the student of literature, of art, of religion—all the allied laborers in the study of society—have contributions to make to the equipment of the historian. These contributions are partly of material, partly of tools, partly of new points of view, new hypotheses, new suggestions of relations, causes, and emphasis. Each of these special students is in some danger of bias by his particular point of view, by his exposure to see simply the thing in which he is primarily interested, and also by his effort to deduce the universal laws of his separate science. The historian, on the other hand, is exposed to the danger of dealing with the complex and interacting social forces of a period or of a country from some single point of view to which his special training or interest inclines him. If the truth is to be made known, the historian must so far familiarize himself with the work, and equip himself with the training of his sister-subjects that he can at least avail himself of their results and in some reasonable degree master the essential tools of their trade.

^[22]

Frontier ethnography is just such an effort.

The frontier ethnographer then, because of his interdisciplinary approach, can capture the spirit of pioneer life. And if, as Turner suggested, the frontier explains American development, then frontier ethnography presents an understanding of the American ethos with its ideals of discovery, democracy, and individualism.^[23] These ideals characterize "the American spirit and the meaning of America in world history."^[24]

The ideal of discovery, "the courageous determination to break new paths," as Turner called it, was abundantly evident in the Fair Play territory of the West Branch Valley.^[25] This innovating spirit can be seen in the piercing of the Provincial boundary, despite the restrictive legislation to the contrary, and the establishment of homes in Indian territory.^[26] It was also demonstrated in a marvelous adaptability in solving the new problems of the frontier, problems for which the old dogmas were no longer applicable. The new world of the Susquehanna frontier made new men, Americans.

Self-determination, the ideal of democracy as we have defined it, was the cornerstone of Fair Play society. Its particular contribution was the Fair Play "system" with its popularly elected tribunal of Fair Play men. Perhaps this was the proper antecedent of the commission form of local government which came into vogue on the progressive wave of the late nineteenth and early twentieth centuries. Regardless, the geographic limitations of the Fair Play territory, the frequency of elections, and the open conduct of meetings tend to substantiate the democratic evaluation which has been made of the politics of this frontier community. Furthermore, as was pointed out in the last chapter, this self-determination was the key characteristic of the economic and social life of these people.^[27]

The pioneer ideal of creative and competitive individualism, which Turner considered America's best contribution to history and to progress, was an essential of the frontier experience which became an integral part of the American mythology.^[28] The "myth of the happy yeoman," as one historian called it, is still revered in American folklore and respected in American politics, whether it is outmoded or not.^[29] The primitive nature of frontier life developed this characteristically American trait and the family, the basic organization of social control, promoted it. It was this promotion, with its antipathy to any outside control, which stimulated the Revolution, creating an American nation from an already existing American character.

The individualism of the West Branch frontier is also apparent in the administration of justice. The Fair Play system emphasized the personality of law, by its very title, rather than the organized machinery of justice.^[30] Frontier law was personal and direct, resulting in the unchecked development of the individual, a circumstance which Turner considered the significant product of this frontier democracy.^[31] Being personal, though, it had meaning for those affected by it, as an anecdote noted earlier indicated.^[32]

Individualism has become somewhat of an anachronism in a mass society, but its obsolescence today is part of the current American tragedy. The buoyant self-confidence which it inspired has made much of the American dream a reality. Legislation, it is true, has taken the place of free lands as the means of preserving democracy, but it will be a hollow triumph if that legislation suppresses this essential trait of the American character, its individualism. No intelligent person today would recommend a return to the laissez-faire individualism of the Social Darwinists of the late nineteenth century, but it must be admitted that a society emphasizing the worth of the individual and dedicated to principles of justice and fair play, the banner under which the frontiersmen of the West Branch operated, has genuine merit.

Whether the historian is analyzing old frontiers or charting new ones, the timeless question remains: does man have the intelligence adequate to secure his own survival? The old frontiers, such as the Fair Play territory of the West Branch of the Susquehanna, were free lands of opportunity for a better life, and the history of the westward movement of the American people gives ample proof of their conquest. But the new frontiers are not so clearly marked or so easily conquered. Perhaps a re-examination of the history of the old frontiers can give increased meaning to the problems of the new. This investigation was attempted, in part, to serve such a purpose.

The intelligent solution to the problem of survival for the pioneers of the West Branch Valley was fair play. The ethnography of the Fair Play settlers is the record of the democratic development of an American community under the impact of the new experience of the frontier.

FOOTNOTES:

[1] P. 2.

[2] *The Oxford Universal Dictionary* (Oxford, 1955), p. 637.

[3] Solon and Elizabeth Buck, *The Planting of Civilization in Western Pennsylvania* (Pittsburgh, 1939), pp. 431 and 451.

[4] See, for example, Dunaway, *A History of Pennsylvania*, p. 146, and *The Scotch-Irish of Colonial Pennsylvania*, pp. 159-160; also, Leyburn, *The Scotch-Irish*, p. 306.

[5] Turner, *The Frontier in American History*, p. 1.

[6] See [Chapter Two](#).

[7] Quoted by Ray Allen Billington in his introduction to Turner, *Frontier and Section*, p. 5.

[8] *Pennsylvania Archives*, Second Series, III, 217-218, 518-522.

[9] This pride was notably demonstrated in the insistence of the Fair Play settlers that a stand be made at Fort Augusta following the Great Runaway. Previous to this, they had pleaded for support for "our Common Cause" in the defense of this frontier. *Pennsylvania Archives*, Second Series, III, 217.

[10] *Pennsylvania Archives*, Second Series, X, 27-31, 417, and Fifth Series, II, 29-35.

[11] Quoted in Clinton Rossiter, *The First American Revolution* (New York, 1956), pp. 4-5.

[12] Turner, *The Frontier in American History*, p. 37.

[13] *Ibid.*

[14] See also, George D. Wolf, "The Tiadaghton Question," *The Lock Haven Review*, Series I, No. 5 (1963), 61-71.

[15] Buck, *The Planting of Civilization in Western Pennsylvania*, pp. 431, 451.

[16] Anna Jackson Hamilton to Hon. George C. Whiting, Commissioner of Pensions, Dec. 16, 1858, Wagner Collection, Muncy Historical Society.

[17] *Colonial Records*, X, 634-635. The following resolution of Congress was entered in the minutes of the Council of Safety on July 5, 1776:

Resolved, That Copies of the Declaration be sent to the several Assemblies, Conventions, and Councils of Safety, and to the several Commanding Officers of the Continental Troops, that it be proclaimed in each of the United States, and at the Head of the Army.

By order of Congress.
sign'd, JOHN HANCOCK, Presid't.

Provision was also made for the reading in Philadelphia at 12 noon on July 8, and letters were sent to Bucks, Chester, Northampton, Lancaster, and Berks counties with copies of the Declaration to be posted on Monday the 8th where elections for delegates were to be held. For some reason, the frontier counties of Bedford, Cumberland, Westmoreland, York, and Northumberland, contiguous to the Fair Play territory, were omitted from these instructions.

[18] Turner, *The Frontier in American History*, pp. 1, 18.

[19] *The Journal of William Colbert* gives frequent testimony to this statement, as indicated in [Chapter Five](#).

[20] See the [map](#) in Chapter One for the geographic boundaries of the Fair Play territory. Note the location of the top leaders, Henry and Frederick Antes and Robert Fleming, in [Chapter Six](#).

[21] The number of different office-holders runs to better than ten per cent of the population.

[22] Turner, *The Frontier in American History*, pp. 333-334.

[23] *Ibid.*, pp. 306-307.

[24] *Ibid.*, p. 306.

[25] *Ibid.*

[26] Meginness, *Otzinachson* (1857), pp. 163-164.

[27] See [Chapter Seven](#) for an evaluation of "Democracy on the Pennsylvania Frontier."

[28] Turner, *The Frontier in American History*, p. 307.

[29] Richard Hofstadter, "The Myth of the Happy Yeoman," *American Heritage*, VII, No. 3 (April, 1956), 43-53.

[30] The term "the personality of the law" is Turner's and emphasizes the men who carried out the law, rather than its structure. The fact that the ruling tribunal of the West Branch Valley was referred to as the "Fair Play men" rather than the "tribunal" illustrates this contention.

[31] Turner, *The Frontier in American History*, pp. 253-254.

[32] See [Chapter Three](#), n. 24.

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PERSONAL CORRESPONDENCE

Mrs. Solon J. Buck, Washington, D. C, June 22, 1963, to the author.

Alfred P. James, Pittsburgh, July 16, 1963, to the author.

Peter Marshall, Berkeley, Calif., May 19, 1962, to the author.

Mrs. Phyllis V. Parsons, Collegeville, Pa., October 21, 1962, to the author.

Paul A. W. Wallace, Harrisburg, February 16, 1961, July 30, August 24, and December 17, 1962, to the author.

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Transcriber's Endnotes

Minor typographical errors have been corrected without note.

Archaic spellings in quoted material have been retained.

The following discrepancies have been noted and corrected where possible:

Page 26, Chart 4. The data in column headed '1774' does not tally with the total below. With no obvious solution, the table remains as originally published.

Footnote 18, Chapter 3. 'See nn. 6 and 7, p. 4.' Corrected to *See nn. 6 and 7, p. 33.*

Footnote 20, Chapter 3. 'Supra, p. 4.' Corrected to *Supra, p. 33.*

Index entry '[Economic institutions](#)'. There is no index entry for '*Farming*', however the main references to farming can found in [Chapter Four](#).

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